

Amended from

Australian Standard®

**General conditions of contract for
design and construct**

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This Australian Standard® was prepared by Committee OB-003, General Conditions of Contract. It was approved on behalf of the Council of Standards Australia on 7 September 1999.

This Standard was published on 27 December 2000.

The following are represented on Committee OB/3:

- Association of Consulting Engineers Australia
 - Australasian Railways Association
 - Australian Chamber of Commerce and Industry
 - Australian Procurement and Construction Council
 - AUSTROADS
 - Construction Industry Engineering Services Group
 - Construction Policy Steering Committee
 - Electricity Supply Association of Australia
 - Institution of Engineers, Australia
 - Institution of Professional Engineers, New Zealand
 - Law Council of Australia
 - Master Builders Australia
 - National Construction Council / MTIA
 - Process Engineers and Constructors Association
 - Royal Australian Institute of Architects
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This Standard was issued in draft form for comment as DR 97528.

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Australian Standard®

General conditions of contract for design and construct

First published as AS 4300—1995.

Revised and redesignated AS 4902—2000.

Reissued incorporating Amendment No. 1 (March 2005).

Reissued in updated format only (August 2022).

Reissued incorporating Amendment No. 1 to Word Version 27 October 2022
(January 2023)

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Published by Standards Australia, GPO Box 476, Sydney, NSW
2001, Australia

ISBN 0 7337 3524 X

Preface

This Standard was prepared by the Joint Standards Australia/Standards New Zealand Committee OB/3, General Conditions of Contract.

This Standard incorporates Amendment No. 1 (March 2005). For information relating to Amendment No.1 contact Standards Australia: www.standards.org.au. This version has been prepared for reuse and details marking where changes were made by Amendment No.1 have been removed.

This Standard is the result of a consensus among Australian and New Zealand representatives on the Joint Committee to produce it as an Australian Standard.

AS 4902—2000, *General conditions of Contract* for design and construct, is a part of the suite of conditions of contract based on AS 4000—1997, *General conditions of Contract*.

This Standard covers the following types of project procurement methods:

- (a) design and construct;
- (b) design development and construct; and
- (c) design, novate and construct.

If the project procurement method chosen by the Principal is:

- (a) **design and construct**—the Principal would provide the Principal's Project Requirements, would not normally provide a detailed Preliminary Design and would not require novation;
- (b) **design development and construct**—the Principal would provide the Principal's Project Requirements, would always provide a Preliminary Design and accordingly would complete Annexure Part A Items 10 and 11;
- (c) **design, novate and construct**—the Principal would provide the Principal's Project Requirements, would always provide a Preliminary Design, would complete Annexure Part A Items 10 and 11 and would complete Annexure Part A Item 20 stating which subcontract (including consultant's agreement) or selected subcontract is to be novated to the Contractor.

Subclauses 8.6 and 29.2, suffixed by *, are optional, and may be omitted in the Contract, where necessary, without making consequential amendments but such omission should be clearly shown on the face of the document by striking out these subclauses or indicating clearly in Clause 1 of Annexure Part E or elsewhere that they are *not to apply*. See Clause 1(i) for the effect of stating deletions in Annexure Part E.

Word format notes: In this document, due to Clauses 16A and 16B, clause numbering at 17 has been set to commence at 17. If you add or delete clauses to this document before Clause 16A, you will need to manually alter clause numbering on these clauses.

WARNINGS

- 1) **Users of this Australian Standard are warned that Clause 15 (Damage to persons and property other than WUC) does not limit the liability of parties for special, indirect or consequential losses.**

This unlimited liability applies notwithstanding any limitations or exclusions permitted under insurance Clauses 16A (Insurance of the Works), 16B (Professional indemnity insurance) and 17 (Public liability insurance).

Parties wishing to limit their liability should seek insurance and legal advice before entering a contract under this Standard.

- 2) **Principals should ensure that their specific requirements are fully and completely incorporated in the Principal's project requirements obtaining specialist advice if necessary. Where a Contractor provides a proposed design as part of its tender, the parties should consider whether that design should form part of the preliminary design.**
- 3) **The risk allocation, drafting, interpretation and construction of this Standard are interrelated. Users who alter the Standard do so at their own risk and should obtain specialist advice as to whether it is suitable for a particular project.**
- 4) **Contractors should ensure that they satisfy the requirements of payment for unfixed plant and materials.**
- 5) **Legislation has come into force in some jurisdictions dealing with security of payments. Parties intending to use this Standard should seek expert advice as to their rights and obligations under such legislation.**

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1. Interpretation and construction of Contract

In the Contract, except where the context otherwise requires:

As-Built Drawings means drawings of the Works prepared by the Contractor to be provided to the Principal prior to Practical Completion in a format and size as advised by the Superintendent and are to be included in the Operation and Maintenance Manuals;

Business Day means a day that is not:

- (a) a Saturday, Sunday, public holiday, special holiday or bank holiday in the place in which the Works are being carried out; or
- (b) 27, 28, 29, 30 or 31 December;

Item means an Item in Annexure Part A;

Certificate of Practical Completion has the meaning in subclause 34.6;

Claim means any claim, action, proceeding, suit, cause of action, defence, set-off, or demand under arising out of, or in any way in connection with the Contract, WUC, the Works or either party's conduct under or before the Contract, whether at law (including breach of contract) or in equity (including restitution by statute, in tort (including negligence) or otherwise including any claim, action, proceeding, suit, cause of action, defence, set-off or demand for:

- (a) an extension of time, delay, disruption, acceleration, or associated costs and damages;
- (b) a Variation or an increase or adjustment in the Contract Sum; or
- (c) damages.

Claim Precondition means any condition or occurrence of any event that is a precondition to the date on which a Progress Claim may be made, including:

- (a) the Contractor has fully complied with its obligations to provide Security (if any) under Clause 5);
- (b) the Contractor has provided proof of insurance in accordance with subclause 19.1;
- (c) the Contractor has submitted all material or information in support of its Progress Claim required by subclause 37.1A and Clause 38, including, for the avoidance of doubt, the statutory declaration in accordance with subclause 37.1A(f);
- (d) the Contractor has become entitled to make a Progress Claim under subclause 37.1; and
- (e) anything else described as being a Claim Precondition or a precondition to the date on which a Progress Claim may be made (including as set out in Annexure Part A);

Compensable Cause means:

- (a) any act, default or omission of the Superintendent, the Principal or its consultants, agents or other contractors (not being employed by the Contractor); or
- (b) those listed in Item 31;

Confidential Information means any information relating to the business or affairs of the Principal whether provided or obtained by the Contractor prior to or after the Contract is formed,

including the Contract and information about the Principal's employees, agents and contractors but does not include that:

- (a) becomes publicly available other than as a result of a breach of any obligation of confidence;
- (b) is obtained by the Contractor from a third party without breach by that third party of any obligation of confidence concerning that confidential information; or
- (c) was already in a party's possession (as evidenced by written records) when provided by or on behalf of the other party;

Construction Plant means appliances and things used in the carrying out of WUC but not forming part of the Works;

Consultant means any person engaged by the Contractor to perform consultancy services in connection with WUC and includes any Principal's consultant whose prior contract is novated to the Contractor under subclause 9.4;

Contract has the meaning in Clause 6;

Contract Sum means:

- (a) where the Principal accepted a lump sum, the lump sum;
- (b) where the Principal accepted rates, the sum of the products ascertained by multiplying the rates by the corresponding quantities in the Schedule of Rates; or
- (c) where the Principal accepted a lump sum and rates, the aggregate of the sums referred to in paragraphs (a) and (b),

including Provisional Sums but excluding any additions or deductions which may be required to be made under the Contract;

Contractor means the person bound to carry out and complete WUC;

Contractor's Design Obligations means all tasks necessary to design and specify the Works required by the Contract, including preparation of the Design Documents and, if the documents stated in Item 10 as describing the Principal's Project Requirements include a Preliminary Design, developing the Preliminary Design;

CQU Act means *Central Queensland University Act 1998* (Qld);

Date for Practical Completion means:

- (a) where Item 7(a) provides a Date for Practical Completion, the date;
- (b) where Item 7(b) provides a period of time for Practical Completion, the last day of the period,

but if any EOT for Practical Completion is directed by the Superintendent or allowed in any arbitration or litigation, it means the date resulting therefrom;

Date of Acceptance of Tender means the date which appears on the written notice of acceptance of the tender, or, if there was no letter of acceptance the date the Formal Instrument of Agreement was executed;

Date of Practical Completion means:

- (a) the date evidenced in a Certificate of Practical Completion as the date upon which Practical Completion was reached; or
- (b) where another date is determined in any arbitration or litigation as the date upon which Practical Completion was reached, that other date;

Deed of Guarantee and Indemnity has the meaning in subclause 5.6;

Deed of Release and Waiver means the deed of release and waiver in the form set out in Annexure Part J;

Deed of Warranty means the deed of warranty in the form set out in Annexure Part H;

Defects means any WUC which is faulty, defective, inadequate or is otherwise not in accordance with the requirements of this Contract, and includes omissions;

Defects Liability Period has the meaning in Clause 35;

Design Documents means the drawings, specifications and other information, samples, models, patterns and the like required by the Contract and created (and including, where the context so requires, those to be created by the Contractor) for the construction of the Works;

Direction includes agreement, approval, assessment, authorisation, certificate, decision, demand, determination, explanation, instruction, notice, order, permission, rejection, request or requirement;

Dispute has the meaning in Clause 42;

EOT (from 'Extension of Time') has the meaning in subclause 34.3;

Eligible Data Breach has the meaning given in the *Privacy Act 1988* (Cth);

Excepted Risk has the meaning in subclause 14.3;

Existing Improvements means the existing buildings, plant, facilities, amenities and their car parks, loading bays, roadways, pedestrian ways or other facilities located at the Site;

Final Certificate has the meaning in subclause 37.4;

Final Payment has the meaning in Clause 37;

Final Payment Claim means the Final Payment Claim referred to in subclause 37.4;

Formal Instrument of Agreement means the formal instrument of agreement to be entered into by the parties;

GST Act means *A New Tax System (Goods and Services Tax) Act 1999* (Cth);

Health and Safety Plan means the plan the Contractor must prepare pursuant to subclause 11A.2;

Heavy Vehicle has the meaning given in the *Heavy Vehicle National Law Act 2012* (Qld);

Heavy Vehicle Law means any Legislative Requirement, principles of law or equity established by decisions of Australian Courts or requirements of persons with obligations relating to Heavy Vehicles, including the *Heavy Vehicle National Law Act 2012* (Qld), and the *Heavy Vehicle National Law Regulation 2014* (Qld);

Heavy Vehicle Safety Requirement means:

- (a) any Heavy Vehicle Law; and
- (b) the requirements of:
 - (i) industry standards, codes, practices and guidelines; and
 - (ii) any other provisions of this Contract,

relating to the operation of Heavy Vehicles;

Intellectual Property Right means all industrial and intellectual property rights in and relating to copyright, registered or unregistered trademarks, patents, registered or unregistered design and any other like rights, including rights to registration of such rights and rights to protect confidential information, know-how and trade secrets and includes Moral Rights;

Latent Condition has the meaning in subclause 25.1;

Legislative Requirement includes:

- (a) Acts, Ordinances, regulations, by-laws, orders, awards and proclamations of the jurisdiction where WUC or the particular part thereof is being carried out;
- (b) certificates, licences, consents, permits, approvals and requirements of organisations having jurisdiction in connection with the carrying out of WUC; and
- (c) fees and charges payable in connection with the foregoing;

Modern Slavery includes:

- (a) any conduct involving the use of any form of slavery, human trafficking, exploitation, forced labour practices or servitude to exploit children or other persons taking place in a supply chain;
- (b) any other slavery-like practices; and
- (c) any conduct defined as 'modern slavery' or constituting an offence under Modern Slavery Law;

Modern Slavery Law means any primary, delegated or subordinate legislation including the *Human Rights Act 2019* (Qld) and the *Modern Slavery Act 2018* (Cth) (and any binding or non-binding guidelines issued by any entity or person so authorised under Modern Slavery Law), applicable in Australia or otherwise applicable to the Principal from time to time with respect to reporting on or addressing the risks of Modern Slavery, including in business operations and supply chains and with respect to related purposes;

Moral Rights means rights of integrity of authorship, rights of attribution of authorship, rights not to have authorship falsely attributed, and rights of a similar nature conferred by statute, that exist, or may come to exist, anywhere in the world;

NGER Legislation means the *National Greenhouse and Energy Reporting Act 2007* (Cth);

Operation and Maintenance Manuals means the operations and maintenance manuals in respect of the Works, in the format and size required by the Superintendent, which are to:

- (a) set out a record of equipment specifications, drawings, commissioning data, supplier data and similar information as may be required for future alterations, fault finding and maintenance;

- (b) provide operating instructions to users; and
- (c) include a schedule of routine maintenance requirements for the guidance of tradespersons and introductory descriptions to familiarise tradespersons with the particular buildings and systems covered by the manual;

Payment Withholding Request has the meaning given in the Security of Payment Act;

PPSA means the *Personal Property Securities Act 2009* (Cth);

Practical Completion is that stage in the carrying out and completion of WUC when:

- (a) The Works are complete except for minor Defects:
 - (i) which do not prevent The Works from being reasonably capable of being used for their stated purpose;
 - (ii) which the Superintendent determines the Contractor has reasonable grounds for not promptly rectifying; and
 - (iii) the rectification of which will not prejudice the convenient use of The Works;
- (b) those Tests which are required by the Contract to be carried out and passed before The Works reach Practical Completion have been carried out and passed; and
- (c) documents and other information required under the Contract which, in the Superintendent's opinion, are essential for the use, operation and maintenance of The Works have been supplied, which includes but is not limited to Operation and Maintenance Manuals and As Built Drawings of the Works;
- (d) all Special Warranties referred to in the Contract or as reasonably required by the Superintendent have been provided by the Contractor to the Superintendent;
- (e) the Contractor has provided to the Superintendent any approvals, consents or certificates relating to (where necessary) for the completion, use or occupation of the Works (other than those expressly required to be obtained by the Principal under the Contract);
- (f) the Contractor has cleaned the Site and removed all rubbish and surplus material from the Site;
- (g) the Contractor has successfully completed, to the satisfaction of the Superintendent, all commissioning required by the Contract (if any);
- (h) the Contractor has provided to the Superintendent a certificate from a licensed surveyor certifying that the Works are located within the boundaries of the Site and in the place and position required by the Contract;
- (i) the Works or any relevant part of the Works are accepted as completed by any relevant municipal, public or other statutory authority (if required); and
- (j) any other conditions which the Contract requires to be satisfied prior to Practical Completion have been satisfied;

Preliminary Design means the documents stated in Item 11;

Prescribed Notice has the meaning in subclause 41.1;

Pre-Start Meeting means the meeting to be held between the Principal and the Contractor pursuant to Clause 6A;

Principal means the Principal stated in Item 1;

Principal's Project Requirements means the Principal's written requirements for The Works described in the documents stated in Item 10 which:

- (a) shall include the stated purpose for which The Works are intended;
- (b) may include the Principal's design, timing and cost objectives for The Works; and
- (c) where stated in Item 10, shall include a Preliminary Design;

Principal Supplied Information means any information or documentation (whether written or otherwise) supplied or made available to the Contractor by or on behalf of the Principal before or after the Date of Acceptance of Tender, including all information provided with or referred to in any invitation to tender or expression of interest and any other information provided to the Contractor:

- (a) prior to the Contractor commencing the Works; or
- (b) during the Contractor's performance of the Works;

Program means the program to be prepared by the Contractor in accordance with Clause 32;

Progress Certificate has the meaning in subclause 37.2;

Progress Claim means a claim for a Progress Payment made by the Contractor in accordance with the Contract (including subclause 11D and Clause 37) and includes a 'payment claim' for the purposes of the Security of Payment Act;

Progress Payment means a payment to which the Contractor is entitled to claim in accordance with the Contract (including subclause 11D and Clause 37) and includes a 'progress payment' for the purposes of the Security of Payment Act;

Provisional Sum has the meaning in Clause 3 and includes monetary sum, contingency sum and prime cost item;

Public Liability Policy has the meaning in Clause 17;

QBCC Act means the *Queensland Building and Construction Commission Act 1991* (Qld), as amended from time to time, and any of its regulations;

Qualifying Cause of Delay means:

- (a) any act, default or omission of the Superintendent, the Principal or its consultants, agents or other contractors (not being employed by the Contractor);
- (b) inclement weather occurring on or before the Date for Practical Completion, which prevents work from being undertaken on Site for a total of at least four hours in one working day;
- (c) Latent Conditions pursuant to Clause 25;
- (d) suspension of the WUC pursuant to Clause 33.1 where the suspension is not caused by an act, default or omission of the Contractor, its Subcontractors, employees or agents;

but excludes delay:

- (e) caused or contributed to by a breach, default, act or omission of the Contractor;

- (f) arising out of, or in connection with, inclement weather occurring after the Date for Practical Completion;
- (g) arising out of, or in connection with, the matters stated in Item 28;
- (h) arising out of, or in connection with a matter or occurrence which is within the reasonable control of the Contractor and/or its Subcontractors;
- (i) caused or contributed to by the Contractor failing to comply with its obligations under the Contract or any Legislative Requirement;
- (j) which not affect the Contractor's critical path for completion of the Works; and
- (k) arising out of, or in connection with an act, default and omission of the subcontractors (including selected subcontractors), suppliers, Consultants, employees or agents of the Contractor;

Queensland Procurement Policy means the Queensland Procurement Policy (2023), State of Queensland (Department of Housing and Public Works) (as that document may be updated, reviewed, amended or replaced from time to time), including the best practice principles and other guidelines;

Related Body Corporate has the meaning in the *Corporations Act 2001* (Cth);

Response Period means the period:

- (a) 10 Business Days; or
- (b) where the Progress Claim is made by the Contractor under the Security of Payment Act, any longer period permitted for the service of a corresponding payment schedule under the Security of Payment Act;

Schedule of Rates means any schedule included in the Contract which, in respect of any section or item of Work to be carried out, shows the rate or respective rates of payment for the execution of that Work and which may also include lump sums, Provisional Sums, other sums, quantities and prices;

Security means:

- (a) cash;
- (b) retention moneys;
- (c) bonds or inscribed stock or their equivalent issued by a national, state or territory government;
- (d) interest bearing deposit in a bank carrying on business at the place stated in Item 9(c);
- (e) an approved unconditional undertaking (the form in Annexure Part B is approved) or an approved performance undertaking given by an approved financial institution; or
- (f) other form approved by the party having the benefit of the security;

Security of Payment Act means the *Building Industry Fairness (Security of Payment) Act 2017* (Qld);

Selected Subcontract Work has the meaning in subclause 9.3;

Selected Subcontractor has the meaning in subclause 9.3;

Separable Portion means a portion of The Works identified as such in the Contract or by the Superintendent pursuant to Clause 4);

Separate Contractors means contractors other than the Contractor engaged by the Principal to carry out work on the Site concurrently with the Contractor's execution of the WUC;

Site means the lands and other places to be made available and any other lands and places made available to the Contractor by the Principal for the purpose of the Contract;

Special Warranties means the warranties described in Clause 28A;

Subcontractor includes a Consultant and any supplier to the Contractor;

Subcontractor Deed of Covenant means the subcontractor deed of covenant in the form set out in Annexure Part G;

Subcontractors' Charges Legislation means Part 4 of the *Building Industry Fairness (Security of Payment) Act 2017* (Qld);

Superintendent means the person stated in Item 5 as the Superintendent or other person from time to time appointed in writing by the Principal to be the Superintendent and notified as such in writing to the Contractor by the Principal and, so far as concerns the functions exercisable by a Superintendent's Representative, includes a Superintendent's Representative;

Superintendent's Representative means an individual appointed in writing by the Superintendent under Clause 21;

Survey Mark in Clause 26 means a survey peg, benchmark, reference mark, signal, alignment, level mark or any other mark for the purpose of setting out, checking or measuring WUC;

Temporary Works means Work used in carrying out and completing WUC, but not forming part of The Works;

Test has the meaning in subclause 30.1 and includes examine and measure;

The Works means the whole of the Work to be carried out and completed in accordance with the Contract, including Variations provided for by the Contract, which by the Contract is to be handed over to the Principal;

Variation has the meaning in Clause 36;

WH&S Act means the *Work Health and Safety Act 2011* (Qld), as amended from time to time, and any of its regulations;

Work includes the provision of materials;

WUC (from 'Work Under the Contract') means the Work which the Contractor is or may be required to carry out and complete under the Contract and includes Variations, remedial Work, Construction Plant and Temporary Works, and all things necessary or incidental to the Works and the performance by the Contractor of its obligations under the Contract whether or not specifically referred to in the Contract,

and like words have a corresponding meaning.

In the Contract:

- (a) references to days mean calendar days and references to a person include an individual, firm or a body, corporate or unincorporate;

- (b) time for doing any act or thing under the Contract shall, if it ends on a Saturday, Sunday or Statutory or Public Holiday, be deemed to end on the day next following which is not a Saturday, Sunday or Statutory or Public Holiday;
- (c) clause headings and subclause headings shall not form part of, nor be used in the interpretation of, the Contract;
- (d) words in the singular include the plural and words in the plural include the singular, according to the requirements of the context. Words importing a gender include every gender;
- (e) communications between the Principal, the Superintendent and the Contractor shall be in the English language;
- (f) measurements of physical quantities shall be in legal units of measurement of the jurisdiction in Item 8;
- (g) unless otherwise provided, prices are in the currency in Item 9(a) and payments shall be made in that currency at the place in Item 9(b);
- (h) the law governing the Contract, its interpretation and construction, and any agreement to arbitrate, is the law of the jurisdiction in Item 8;
- (i) if pursuant to Annexure Part E to these General Conditions, clauses or their parts in these General Conditions are deleted, the Contract shall be read and construed as though the clause or its part has been deleted, whether or not that particular clause or its part has been struck from these General Conditions;
- (j) this Contract is not to be interpreted against the Principal merely because the Principal was responsible for preparing this Contract;
- (k) the meaning of any general language is not restricted by any accompanying example, and the words 'includes', 'including', 'such as' or 'for example' (or similar phrases) do not limit what else might be included; and
- (l) a reference to legislation or a provision of legislation (including subordinate legislation) is to that legislation amended, re-enacted or replaced, and includes any subordinate legislation issued under it.

2. Nature of Contract

2.1 Performance and payment

The Contractor shall carry out and complete WUC in accordance with the Contract and Directions authorised by the Contract.

The Principal shall pay the Contractor:

- (a) for Work for which the Principal accepted a lump sum, the lump sum; and
- (b) for Work for which the Principal accepted rates, the sum of the products ascertained by multiplying the measured quantity of each section or item of Work actually carried out under the Contract by the rate accepted by the Principal for the section or item,

adjusted by any additions or deductions made pursuant to the Contract.

2.1A Acknowledgement by Contractor

The Contractor acknowledges that the Contract Sum and any rates to be applied in calculating the Contract Sum (together with any additions or deductions expressly provided for by the Contract):

- (a) include all costs, expenses, fees and charges incurred by the Contractor in performing all its obligations under the Contract;
- (b) include all items of WUC (including the supply of any labour, materials or other necessary items);
- (c) include the Contractor's profit, attendance, preliminaries, supervision and on-site and off-site overheads in connection with the performance of all of its obligations under the Contract;
- (d) will not be subject to any rise and fall in costs of materials or labour or otherwise, foreign exchange adjustment or any other adjustment for any reason except to the extent expressly provided in the Contract; and
- (e) includes minor items of work which are not expressly provided for in the Contract but which are necessary or incidental to the performance of the Contractor's obligations under the Contract.

2.2 Contractor's warranties

Without limiting the generality of subclause 2.1, the Contractor warrants to the Principal that:

- (a) the Contractor:
 - (i) at all times shall be suitably qualified, experienced and skilled in carrying out and completing projects with work of the kind described in the Contract, and shall exercise the professional skills, care and diligence expected of a professional contractor experience in providing the same or similar work in the carrying out and completion of WUC;
 - (ii) has a clear understanding of the WUC and is familiar with the detail of The Works and has examined and carefully considered the Principal's Project Requirements (including any Preliminary Design) and that such Principal's Project Requirements are suitable, appropriate and adequate for the purpose stated in the Principal's Project Requirements and for the design and construction of The Works;
 - (iii) shall carry out and complete the Contractor's Design Obligations to accord with the Principal's Project Requirements and, if subclause 9.4 applies, accept the novation and retain the Principal's consultants for any Work the subject of a prior contract with the Principal;
 - (iv) shall carry out and complete WUC in accordance with the Design Documents so that The Works, when completed, shall:
 - (A) be fit for their stated purpose;
 - (B) comply with all the requirements of the Contract;
 - (C) comply with all relevant standards of Standards Australia or standards specified in this Contract (and if more than one standard

applies, then the Contractor warrants the work will comply with the highest such standard); and

- (D) comply with all applicable Legislative Requirements;
- (b) the WUC will comprise the best available new materials to comply with the quality, quantity, number, nature, design, condition, application, installation and use required by the Contract or as specified, required or recommended by the manufacturer or his agent if not specified in the Contract and will be of good and merchantable quality free from latent defects and fit for their intended purpose;
- (c) subject to paragraph (d), to the extent that any WUC requires a licence pursuant to the QBCC Act, the Contractor holds a licence of the appropriate class under the QBCC Act and is in all other respects entitled to undertake the WUC;
- (d) to the extent that it is not currently holding the necessary licences under the QBCC Act, where permitted by the QBCC Act it will ensure that any 'building work' as defined in the QBCC Act is undertaken by a subcontractor with the required licence under the QBCC Act for such work;
- (e) the Contractor has at the date of the Contract and will continue to have during the currency of the Contract, an adequate, skilled and competent fully trained organisation capable in all respects of performing the WUC in an efficient and responsible manner;
- (f) the Contractor has complied with all of its obligations under any relevant privacy legislation, including the *Privacy Act 1988* (Cth) and *Information Privacy Act 2009* (Qld) in regards to information supplied by the Principal in respect of the Contractor's employees;
- (g) subject to Clause 9, the Consultants identified in the Contractor's tender are suitably qualified and experienced; and
- (h) the Contractor conducts its business in a manner that is consistent with Modern Slavery Laws.

The warranties contained in subclause 2.2 are additional to any other warranties contained elsewhere in the Contract or implied by law. Each warranty shall be read and construed as a separate and independent warranty and shall not be limited by reference to each other. Each warranty will remain unaffected and will not be limited, restricted or in any way affected notwithstanding any Variation directed under Clause 36.

The Contractor acknowledges that the Principal has entered into this Contract in reliance upon the warranties in this Clause.

2.3 Warranties unaffected

The warranties remain unaffected notwithstanding:

- (a) that design Work (including the Preliminary Design) has been carried out by or on behalf of the Principal and included in the Principal's Project Requirements;
- (b) that the Contractor has entered into a novation of any prior contract between the Principal and a Principal's consultant under subclause 9.4 and thereafter has retained that consultant in connection with WUC;

- (c) any receipt or review of, or comment or Direction on, the Design Documents by the Superintendent; or
- (d) any Variation.

2.4 Quantities

Quantities in a Schedule of Rates are estimated quantities only.

The Superintendent is not required to give a Direction by reason of the actual quantity of an item required to perform the Contract being greater or less than the quantity shown in the Schedule of Rates.

2.5 Adjustment for actual quantities

Where, otherwise than by reason of a Direction to vary WUC, the actual quantity of an item required to perform the Contract is greater or less than the quantity shown in the Schedule of Rates which forms part of the Contract:

- (a) the Principal accepted a lump sum for the item, the lump sum shall continue to apply to the actual quantity; and
- (b) the Principal accepted a rate for the item, the rate shall apply to the greater or lesser quantities.

If such a Schedule of Rates omits an item which should have been included, contains an item which should not have been included or contains an incorrect item, then such error will be at the Contractor's risk and the Contractor will have no Claim in relation to such error.

2A.1 Contractor's design obligations

The Contractor shall as part of the Contractor's Design Obligations:

- (a) ensure that an appropriately skilled, experienced and qualified person, reasonably acceptable to the Superintendent, who is licensed or registered in accordance with any Legislative Requirement for a person carrying out design work of that type (including that any engineer is registered with the Board of Professional Engineers of Queensland as a practising Registered Professional Engineer of Queensland (**RPEQ**)) at all times supervises and coordinates:
 - (i) the design and specification of The Works;
 - (ii) the performance of the Contractor's Design Obligations; and
 - (iii) the construction of The Works in accordance with the design documents;
- (b) where the Principal's Project Requirements or the Contract requires commissioning and testing of plant or equipment comprised within The Works, specify in the Design Documents performance criteria that must be met for the purposes of such commissioning and testing; and

- (c) if requested by the Superintendent, ensure that the Consultant or appropriately qualified employee of the Contractor engaged to carry out the Contractor's Design Obligations certifies to the Principal that:
 - (i) the Contractor's Design Obligations carried out by that person comply with the relevant Consultant's contract (if applicable), the Contract and all Legislative Requirements;
 - (ii) Design Documents and the Contractor's Design Obligations provided by that person are appropriate for construction; and
 - (iii) work carried out to the date of the certificate conforms to such Design Documents and the Contractor's Design Obligations provided by that person.

3. Provisional Sums

A Provisional Sum included in the Contract shall not itself be payable by the Principal but where pursuant to a Direction the Work or item to which the Provisional Sum relates is carried out or supplied by the Contractor, the Work or item shall be priced by the Superintendent, and the difference shall be added to or deducted from the Contract Sum.

Where any part of such Work or item is carried out or supplied by a Subcontractor, the Superintendent shall allow the amount payable by the Contractor to the Subcontractor for the Work or item, disregarding:

- (a) any damages payable by the Contractor to the Subcontractor or vice versa; and
- (b) any deduction of cash discount for prompt payment,

plus an amount for profit and attendance calculated by using the percentage thereon stated in Item 13 or elsewhere in the Contract, or, if not so stated, as assessed by the Superintendent.

The Contractor shall:

- (a) provide the Superintendent with the Contractor's estimate of the likely cost of the carrying out or supply by the Contractor of the Work or item to which a Provisional Sum relates when requested by the Superintendent; and
- (b) comply with the reasonable Directions of the Superintendent in respect of the subcontracting or procurement of the Work or item to which a Provisional Sum relates.

4. Separable Portions

Separable Portions may be directed by the Superintendent, who shall clearly identify for each, the:

- (a) portion of The Works;
- (b) Date for Practical Completion; and
- (c) respective amounts for Security, bonus, liquidated damages and delay damages (all calculated pro-rata according to the ratio of the Superintendent's valuation of the Separable Portion to the Contract Sum).

The Contractor shall have no entitlement to make a Claim for the creation of any Separable Portions of The Works created under this Clause or otherwise.

Where Separable Portions are identified in the Separable Portions section of Annexure Part A, the Date for Practical Completion and respective amounts for Security, bonus, liquidated damages and delay damages set out in the relevant Separable Portions section of Annexure Part A will apply.

Despite any other provision of the Contract, the Principal may in accordance with the Contract have recourse to Security provided in respect of any Separable Portion whether or not the Principal's entitlement to have recourse to Security arises in relation to that particular Separable Portion or any other Separable Portion.

5. Security

5.1 Provision

Security shall be provided in accordance with Item 14 or 15. All delivered Security, other than cash or retention moneys, shall be transferred in escrow.

If the Contract Sum increases at any time (including by Variations) by more than 10 percent of the Contract Sum at the date of this Contract, then the Superintendent may require the Contractor to increase the amount of Security provided by the Contractor under the Contract. If directed to do so under this Clause, the Contractor must provide the further amount of Security in a form in accordance with subclause 5.3 within 5 Business Days after receipt of the Direction.

5.2 Recourse

The Principal may have recourse to retention moneys and/or cash Security and/or may convert into money Security that does not consist of money where:

- (a) the Principal has become entitled to exercise a right under the Contract in respect of the retention moneys and/or Security;
- (b) the Contract has been terminated by the Principal or the Principal has taken Work out of the hands of the Contractor pursuant to subclause 39.4; or
- (c) the Superintendent has certified that monies are due and payable to the Principal.

5.3 Not used

5.4 Reduction and release

Subject to the second paragraph of this Clause 5.4, upon the issue of the Certificate of Practical Completion (or the last Certificate of Practical Completion if there are Separable Portions), the Principal's entitlement to Security (other than in Item 14(e)) shall be reduced by the percentage or amount in Item 14(f) or 15(d) as applicable (or, if no percentage is stated, to 50 percent thereof), and the reduction shall be released and returned within 14 days to the other party.

If the value of retention and securities held by the Principal after Practical Completion is in excess of 2.5% of the Contract Sum, then the parties acknowledge and agree that the amount in excess of 2.5% of the Contract Sum is not held to correct defects during the Defects Liability Period but is to ensure due and proper performance of the Contract and to compensate the Principal for any damage it may suffer as a result of a breach of this Contract by the Contractor.

The Principal's entitlement to Security in Item 14(e) shall cease 14 days after incorporation into The Works of the plant and materials for which that Security was provided.

The Principal's entitlement otherwise to Security shall cease 14 days after Final Certificate and the resolution of any claim that the Principal has notified to the Contractor prior to the issue of the Final Certificate.

Upon a party's entitlement to Security ceasing, that party shall release and return forthwith the Security to the other party.

5.5 Interest

Interest earned on Security shall belong to the Principal.

5.6 Deed of Guarantee and Indemnity

Where:

- (a) Item 15A in Annexure Part A states this Clause 5.6 applies; and
- (b) the Contractor is a related or subsidiary corporation (as defined in the applicable corporations law of the jurisdiction);

the Contractor shall, within 14 days after receiving a written request from the Principal, provide a Deed of Guarantee and Indemnity in the form set out in Annexure Part F, duly executed and enforceable.

5.6A Provision

Without limiting any other Clause of the Contract, provision of Security under subclauses 5.1 and 5.6 will be a precondition to payment, whether under subclause 37.1 or otherwise and the Principal may refuse payment until such Security has been produced by the Contractor.

5.6B Expiry of security

If the Security provided in accordance with subclauses 5.1 and 5.6 will expire prior to the date of the issue of the Final Certificate, the Contractor must give to the Principal, at least 5 Business Days before the expiry date of that Security, a substitute Security (stamped if required by law) in exactly the same terms and for the same amount as the Security which is to expire, except that:

- (a) the expiry date on the substitute Security must not be before the date that is 12 months from the date of issue of the substitute Security; and
- (b) if an amount has been drawn under the expiring Security, for an amount of the remaining balance of that Security.

This subclause 5.6B will separately apply (and will continue to apply) if the substitute Security supplied hereunder will expire prior to the date of issue of the Final Certificate except in circumstances where the Security expires due to the fact that the bank, approved financial institution or insurance company has paid the aggregate amount or the balance of the Security outstanding to the Principal.

If the Contractor does not comply with this subclause 5.6B, the Contractor agrees that, without limiting the Principal's other rights under the Contract, the Principal may call on and have recourse to the Security provided in accordance with subclause 5.2.

6. Evidence of Contract

Until a Formal Instrument of Agreement is executed by the parties, documents evidencing the parties' consensus shall constitute the Contract. If such Contract requires a Formal Instrument of Agreement, the Principal shall, within 28 days of the Date of Acceptance of Tender, send it in duplicate for execution by the Contractor. Within 14 days after receiving them, the Contractor shall (if they are correct) properly execute both copies and return them.

Within 14 days after receiving them, the Principal shall execute both copies, have them stamped as necessary and send one copy to the Contractor.

The Superintendent may extend the time under this clause by written notice to the parties.

6A Pre Start meeting

The Contractor shall prior to commencing any WUC on Site, attend a Pre-Start Meeting (to be held at an address, time and date nominated by the Principal) and at that time shall:

- (a) satisfy the Superintendent and provide evidence of:
 - (i) payment of all insurances required to be procured by the Contractor under the Contract;
 - (ii) lodgement of Security; and
 - (iii) payment of all government and statutory fees and charges (whether specifically required under this Contract or otherwise) pursuant to any applicable Legislative Requirements; and
- (b) provide (if required by the Contract or otherwise directed by the Superintendent):
 - (i) a Deed of Guarantee and Indemnity in the form set out in Annexure Part F;
 - (ii) a Subcontractor's Deed of Covenant in the form set out in Annexure Part G; and
 - (iii) a Deed of Warranty in the form set out in Annexure Part H.

No less than 10 Business Days before the Pre-Start Meeting, the Contractor must give the Superintendent (if required by Superintendent):

- (c) the program and confirmation of the Date for Practical Completion;
- (d) the Contractor's Health and Safety Plan and safe work method statements as required by subclause 11A.2;
- (e) the Contractor's Project Quality Plan as required by subclause 29.2; and

The Pre-Start Meeting may also address the following matters:

- (a) construction and Site specific issues;
- (b) lines of communication and authority levels;
- (c) access to Site;
- (d) frequency and venue of Site meetings;
- (e) progress payments;

- (f) Site induction/accreditation of employees of the Contractor who are to be engaged in The Works; and
- (g) working hours.

Until each of the issues described in this Clause 6A have been satisfactorily addressed and resolved to the absolute satisfaction of the Principal and the Superintendent, access to the Site shall not be given and no right to Claim on the part of the Contractor will arise as a consequence.

7. Service of notices

To be valid, a notice must be delivered by hand, by certified mail, or by facsimile, addressed to the other party at the address or fax number described in Annexure Part A.

Notice will be taken to be given or made:

- (a) in the case of delivery in person, when delivered;
- (b) in the case of delivery by post, 2 Business Days after the date of posting;
- (c) in the case of fax, on receipt by the sender of a transmission control report from the despatching machine showing the relevant number of pages and the correct destination fax machine number or name of recipient and indicating that the transmission has been made without error,

but if the result is that a notice would be taken to be given or made on a day that is not a Business Day in the place to which the notice is sent or is later than 4pm (local time) it will be taken to have been duly given or made at the commencement of business on the next Business Day in that place.

Any party may change the address to which notices can be sent to that party by giving the other parties notice of such change in accordance with this Clause 7.

Any notice given to the Contractor's representative (identified in a notice to the Superintendent under Clause 22) shall be deemed to have been given to the Contractor.

Any Progress Claim or other notice of any kind issued pursuant to the Security of Payment Act must be served on both the Superintendent and the Principal.

Electronic communication by email will not constitute a valid notice under the Contract but a hand copy of an email may be issued as a valid notice using any of the means listed in paragraphs (a) to (c).

8. Contract documents

8.1 Discrepancies

The several documents forming the Contract are to be taken as mutually explanatory of one another and are to be read and construed as a whole. If, despite that, either party discovers any inconsistency, ambiguity or discrepancy in any document prepared for the purpose of carrying out WUC, that party shall give the Superintendent written notice of it.

The parties agree that unless otherwise directed by the Superintendent:

- (a) where the inconsistency, ambiguity or discrepancy is between any documents forming part of the Contract, the documents shall be given precedence in accordance with the Formal Instrument of Agreement;
- (b) where paragraph (a) does not apply and the inconsistency, ambiguity or discrepancy relates to the required quality or standard of the WUC or The Works or the extent of the Contractor's obligations under the Contract, the Contractor shall comply with the highest quality or standard specified or perform the more onerous obligation;
- (c) where neither paragraph (a) or (b) apply, the Contractor shall comply with the Superintendent's Direction as to the interpretation and construction to be followed in respect of the inconsistency, ambiguity or discrepancy.

The Contractor shall have no entitlement to Claim as a result of the application of subclauses 8.1(a) and 8.1(b) inclusive.

If compliance with the Direction under subclause 8.1(c) causes the Contractor to incur more or less cost than otherwise would have been incurred had the Direction not been given, the difference shall be assessed by the Superintendent and added to or deducted from the Contract Sum.

Despite the definition of Direction, a direction by the Superintendent under this subclause 8.1 shall refer only to a direction in writing given by the Superintendent which expressly states that it is a direction given to the Contractor for the purposes of subclause 8.1, and the Contractor otherwise has no entitlement to make a Claim in relation to the Direction.

Where any discrepancy exists between figured and scaled dimensions, the figured dimensions shall prevail and the Contractor shall have no entitlement to Claim as a result.

8.2 Principal-supplied documents

The Principal shall supply to the Contractor the documents and number of copies thereof, both stated in Item 16.

They shall:

- (a) remain the Principal's property and be returned to the Principal on written demand; and
- (b) not be used, copied nor reproduced for any purpose other than WUC.

8.2A Principal Supplied Information

The Contractor agrees that:

- (a) unless the Principal expressly agrees otherwise in writing or the Principal-Supplied Information is expressly listed in Item 16A, any Principal-Supplied Information:
 - (i) has been or will be provided only for the Contractor's convenience; and
 - (ii) has not been and will not be relied upon by the Contractor for any purpose (including entering into the Contract or performing its obligations under the Contract);

- (b) the Principal does not:
 - (i) assume any responsibility or duty of care in respect of; or
 - (ii) warrant, guarantee or make any representation as to,
the Principal-Supplied Information (including its accuracy, completeness or adequacy for the purposes of the Contract);
- (c) the Principal shall not be liable to the Contractor in contract, tort, equity, under statute or otherwise arising from or in connection with the Principal-Supplied Information, the provision of the Principal-Supplied Information or the non-provision of any other information by the Principal; and
- (d) except as expressly provided by the Contract, the Contractor shall not be entitled to any EOT, adjustment to the Contract Sum or other Claim arising from or in connection with the inaccuracy, incompleteness or inadequacy of the Principal-Supplied Information.

8.3 Contractor-supplied documents

The Contractor shall supply to the Superintendent the documents and number of copies at the times or stages stated in Item 17 or elsewhere in the Contract.

Other documents and information required by the Contract, unless elsewhere stated in the Contract, shall be supplied not less than 14 days before the Work described in the documents is commenced and shall be in a form satisfactory to the Superintendent.

If the Contractor submits a document to the Superintendent, then except where the Contract otherwise provides:

- (a) the Superintendent shall not be required to check that document for errors, omissions, inconsistencies, ambiguities, discrepancies or compliance with the Contract;
- (b) notwithstanding subclause 2.1, any Superintendent's acknowledgment or approval shall not prejudice the Contractor's obligations; and
- (c) if the Contract requires the Contractor to obtain the Superintendent's Direction about that document, the Superintendent shall give, within the time stated in Item 18, the appropriate Direction, including reasons if the document is not suitable.

A Direction by the Superintendent to vary anything in the Design Documents shall be a Variation to WUC only to the extent that the Design Documents, before such Variation, complied, or would have complied, with the Principal's Project Requirements.

Copies of documents supplied by the Contractor shall be the Principal's property but shall not be used nor copied otherwise than for the use, repair, maintenance, upgrade or alteration of The Works.

8.3A Comment, approval or review

Without limiting any other Clause, any approval, comment or review by the Principal or the Superintendent in relation to any WUC (including any document or other thing submitted by the Contractor to the Superintendent for approval) is for contract management purposes only and does not relieve, limit, reduce or exclude any of the Contractor's obligations or liability:

- (a) under this Contract;

- (b) as a contractor to the Principal, owing a duty of care to the Principal; or
- (c) to comply with the requirements of any Legislative Requirements.

8.4 Availability

The Contractor shall keep available to the Superintendent and the Principal:

- (a) on Site, one complete set of documents affecting WUC and supplied by a party or the Superintendent; and
- (b) at the place of manufacture or assembly of any significant part of WUC off Site, a set of the documents affecting that part.

8.5 Confidential information

The Contractor shall not, without the prior written consent of the Principal, at any time disclose any Confidential Information provided by or relating to the Principal that is identified as being confidential or reasonably known to be confidential, including the existence of or terms and conditions of this Contract, to any third party except to its officers, employees and contractors who need to know to fulfil their obligations under the Contract and its professional advisers.

8.6 Media

The Contractor shall not disclose any information concerning the project for distribution through any communications media without the Principal's prior written approval (which shall not be unreasonably withheld). The Contractor shall refer to the Principal any enquiries from any media concerning the project.

The Contractor shall ensure that it, its employees, its Subcontractors and their employees:

- (a) direct all enquiries which it may receive in respect of WUC, The Works, the Site or the Principal from the media, government officers or representatives of any outside organisations to the Principal; and
- (b) do not make any statements to the media, government officers or to outside organisations in respect of matters concerning WUC, The Works, the Site or the Principal without the prior written consent of the Principal.

8.7 Records and Access to Records

The Contractor shall make and keep and shall ensure all Subcontractors make and keep accurate records of the WUC including all documents referred to in any specification, design calculations, calculations and make ups, records as to progress of The Works, diary records of daily tasks, complete photographic records, quality system documents and record, manning and equipment records, results of the examination and testing of any Work or materials, quality assurance records and reports, cost to date records, costs to complete calculations, time records, all cost records relating in any way to delays, Variations and day works, all consultants' reports and opinions obtained by the Contractor in relation to the matters referred to in this Clause and all necessary supporting documents, invoices, records and related financial statements whether in writing or stored on any other medium.

The Principal or Superintendent will have the right to inspect and copy at any time any record referred to in this subclause. The Contractor shall not be entitled to refuse inspection of any

record other than on the basis that legal professional privilege attaches to the record. The obligations in this subclause will survive termination of the Contract and will apply for a period of 7 years from the date of issue of the Final Certificate or, if no Final Certificate issues, from the date of termination of the Contract or the Date of Practical Completion, whichever is the later.

9. Assignment and Subcontracting

9.1 Assignment

The Contractor shall not, without the Principal's prior written approval, which may be conditional and which may be given in its absolute discretion, assign the Contract or any payment or any other right, benefit or interest under the Contract.

The Principal may assign the Contract or any other right, benefit or interest under the Contract at any time.

9.2 Subcontracting generally

The Contractor shall not without the Superintendent's prior written approval:

- (a) subcontract or allow a Subcontractor to subcontract any Work described in Item 19; or
- (b) allow a Subcontractor to assign a subcontract or any payment or any other right, benefit or interest thereunder.

With a request for approval, the Contractor shall give the Superintendent:

- (a) written particulars of the Work to be subcontracted and the name and address of the proposed Subcontractor; and
- (b) any other information which the Superintendent reasonably requests, including the proposed subcontract documents without prices.

Within 14 days of the Contractor's request for approval, the Superintendent shall give the Contractor written notice of approval or of the reasons why approval is not given.

The Superintendent shall only be required to give the Contractor written notice of approval or of the reasons why approval is not given where the Contractor has complied with its obligations under this Clause.

Approval may be conditional upon the subcontract including:

- (a) provision that the Subcontractor shall not assign nor subcontract without the Contractor's written consent;
- (b) provisions which may be reasonably necessary to enable the Contractor to fulfil the Contractor's obligations to the Principal;
- (c) provision that if the Contract is terminated and upon the Subcontractor being paid the sum certified by the Superintendent as owing to the Subcontractor, the Contractor and the Subcontractor shall, after the Principal has done so, promptly execute a deed of novation in the form of Annexure Part C. For the purpose of effecting such novation only, the Contractor hereby irrevocably appoints the Superintendent to be the Contractor's attorney with authority to execute such documents as are necessary to give effect to the novation and to bind the Contractor accordingly; and

- (d) where the Subcontractor is a Consultant, provision that the Subcontractor shall effect and maintain professional indemnity insurance on the same terms as are required under Items 24(c) and 24(d).

The Contractor agrees to assign or novate its rights and obligations in the subcontract to the Principal or a nominee of the Principal and sign any documents required by the Principal to give effect to such assignment or novation if both:

- (a) the Work is taken out of the hands of the Contractor or the Principal terminates the Contract for any reason; and
- (b) the Principal directs the Contractor to do so.

9.3 Selected Subcontract Work

If the Principal has included in the invitation to tender or in Item 19A a list of one or more Selected Subcontractors for particular Work, the Contractor shall subcontract that Work to a Selected Subcontractor and thereupon give the Superintendent written notice of that Selected Subcontractor's name.

If no Subcontractor on the Principal's list will subcontract to carry out the Selected Subcontract Work, including if that Selected Subcontractor refuses or is unable to perform the WUC or withdraws from negotiations with the Contractor or cannot agree to terms of the subcontract with the Contractor, the Contractor shall provide a list for the written approval of the Superintendent.

The Contractor will have no Claim against the Principal in respect of any actions or inaction by the Selected Subcontractors.

The Superintendent may request an unpriced copy of the subcontract between the Contractor and the relevant Selected Subcontractor, and the Contractor shall provide a copy of the subcontract to the Superintendent within 3 days.

In respect of work performed by a Selected Subcontractor, the Principal may make payment directly to the Selected Subcontractor in which case, such payment shall be deemed to have been made on behalf of the Contractor.

9.4 Novation

When directed by the Principal, the Contractor, without being entitled to compensation, shall promptly execute a deed of novation in the form of Annexure Part D, such deed being between the Principal, the Contractor and the Subcontractor or the Selected Subcontractor stated in Item 20 for the particular part of the Preliminary Design or WUC.

9.5 Contractor's responsibility

Except where the Contract otherwise provides, the Contractor shall be liable to the Principal for the acts, defaults and omissions of Subcontractors (including Selected Subcontractors) and employees and agents of Subcontractors as if they were those of the Contractor.

Approval to subcontract shall not relieve the Contractor from any liability or obligation under the Contract.

Any matter within the reasonable control of any Subcontractor shall be taken to be within the reasonable control of the Contractor.

9.5A Subcontractor Deed of Covenant

If so required by Item 20A of Annexure Part A, the Contractor will sign and procure those Subcontractors listed in Item 20A of Annexure Part A to sign a Subcontractor Deed of Covenant in the form provided in Annexure Part G and deliver it to the Superintendent prior to or at the Pre-Start Meeting or at any later time directed by the Superintendent.

9A Cooperation with Other Contractors

9A.1 Principal May Engage Other Contractors

The Contractor agrees that the Principal may engage Separate Contractors to carry out work on the Site concurrently with the Contractor's execution of the WUC. The Contractor will permit the concurrent execution of Work on the Site by any Separate Contractors and will provide reasonable access for and co-operate with such persons in the execution of that work.

9A.2 Sequence of Work

Prior to the Contractor commencing the WUC, the Superintendent will inform the Contractor regarding the Separate Contractors to be engaged by the Principal and the sequence in which the Work of the Separate Contractors will be performed. The Contractor shall ensure that the Program incorporates and makes all necessary allowance for the Work of the Separate Contractors. The Contractor shall further ensure that all WUC, the completion of which is necessary to allow any Separate Contractor to commence Work has been properly and fully completed by the Contractor by the date shown in the Program for the completion of such Work so as to allow the commencement of work by the relevant Separate Contractors.

The Contractor shall be liable to the Principal and shall indemnify the Principal in respect of any Claim which may be made against the Principal by any Separate Contractor caused by or in connection with any default of the Contractor under this Clause 9A.

9A.3 Work of Others

Where the Contractor is required to carry out the WUC upon, in relation to, or in connection with Works (including structure, surface, work, material, formation or foundation) prepared by Separate Contractors, Subcontractors prior to commencing that Work, the Contractor shall ensure that such other Works are suitable in all respects for the proper performances of the WUC. If the Contractor considers that the other Works are not suitable for this purpose, it shall notify the Superintendent in writing and seek instructions prior to commencing the relevant WUC.

10. Intellectual Property Rights

10.1A Warranties and indemnities

The Principal warrants that, unless otherwise provided in the Contract, the Principal's Project Requirements, design, materials, documents and methods of working, each specified in the Contract or provided or directed by the Principal or the Superintendent shall not infringe any Intellectual Property Right.

The Contractor warrants that any design, materials, documents and methods of working, provided by the Contractor, shall not infringe any Intellectual Property Right.

Each party shall indemnify the other against such respective infringements.

10.1B Intellectual Property Rights granted to Principal

The Contractor grants to the Principal an irrevocable, royalty-free, non-exclusive, perpetual licence (including the right to sublicense) to use any Intellectual Property Rights in the design, materials, documents (including the Design Documents) and methods of working provided by the Contractor for any purpose in connection with the business or operations of the Principal, including any subsequent repairs to, maintenance or servicing of (including the supply of replacement parts), or additions or alterations to, The Works and the copying of the documents for such purposes.

The Contractor shall indemnify the Principal against any claim, action, proceeding, suit, cause of action or demand made against the Principal or any loss, damage or expenses incurred by the Principal relating to the licence granted in the second paragraph of this subclause 10.1B.

10.1C Moral Rights

- (a) The Contractor shall obtain from any person (including each of its relevant employees and relevant employees of its contractors or other contributing parties) who is an author of any copyright (in this subclause 10.1C, 'authors'), express agreement that those authors will not enforce any Moral Rights that those authors may have in any works in or in connection with The Works ('**Copyright Works**'), including by executing any Moral Rights consents required by the Principal.
- (b) Without limiting subclause 10.1C, the Contractor agrees that the Principal (and its respective successors, assigns and licensees) may:
 - (i) exercise any and all rights in or in connection with the Copyright Works, without identifying any person as the individual responsible for creating those, or part of those, Copyright Works;
 - (ii) have the Copyright Works bear the name of the project, the Principal, or any other person associated with The Works; and
 - (iii) modify, alter, adapt, distort or otherwise change any of the Copyright Works as they deem fit in their absolute discretion including:
 - (A) adaptation or translation into other dimensions, format or media of those Copyright Works; and
 - (B) changing, relocating, demolishing or destroying any two or three dimensional reproduction of those Copyright Works without notice to or consultation with the author.
- (c) Upon request, the Contractor must promptly provide the Principal with all agreements and consents that are required to be given or have been obtained by the Contractor under subclause 10.1C(a).
- (d) The Contractor shall indemnify the Principal, its officers, employees and agents against any costs, expenses, claims, losses, damages or other liabilities whatsoever arising from or in connection with any breach of the warranties or obligations of the Contractor under this subclause.
- (e) Subclauses 10.1A, 10.1B and 10.1C survive expiry or termination of the Contract.

11. Legislative Requirements

11.1 Compliance

The Contractor shall satisfy all Legislative Requirements except those in Item 22(a) or directed by the Superintendent to be satisfied by or on behalf of the Principal.

The Contractor, upon finding that a Legislative Requirement is at variance with the Contract or the Principal's Project Requirements, shall promptly give the Superintendent written notice thereof.

The Contractor acknowledges that the Contract Sum is deemed to include the cost of complying with the CQU Act (including compliance with all university statutes created under the CQU Act and compliance with all instructions, directions and rulings of authorised persons and rendering any assistance reasonably required by authorised persons in fulfil their function under the CQU Act). The Contractor shall have no Claim in respect of compliance with the CQU Act.

For the purposes of this subclause 11.1, 'authorised person' has the meaning given in the CQU Act.

11.2 Changes

If a change to a Legislative Requirement:

- (a) necessitates a change:
 - (i) to the Principal's Project Requirements;
 - (ii) to The Works;
 - (iii) to so much of WUC as is identified in Item 22(b);
 - (iv) being the provision of services by a municipal, public or other statutory authority in connection with WUC; or
 - (v) in a fee or charge or payment of a new fee or charge to a municipal, public or statutory authority (which includes local government);
- (b) comes into effect after the 14th day before the closing of tenders but could not reasonably then have been anticipated by a competent Contractor; and
- (c) causes the Contractor to incur more or less cost than otherwise would have been incurred; and
- (d) the Contractor takes reasonable steps to reduce the additional Work, or the additional cost caused by the change in Legislative Requirements,

the difference shall be assessed by the Superintendent and added to or deducted from the Contract Sum.

11.2A Contractor to Obtain Approvals

The Contractor must obtain and pay for all certificates, licences, consents, permits and other approvals:

- (a) necessary for the lawful carrying out of WUC; or
- (b) relating to the completion, occupation or use of The Works,

other than the certificates, licences, consents, permits and other approvals expressly referred to in Item 22(a).

The Contractor shall give to the Superintendent copies of documents issued to the Contractor by any municipal, public or other statutory authorities in respect of the WUC and, in particular, any approvals of Work.

11.2B Taxes, Duties and Charges

Subject to the other provisions of the Contract and any Legislative Requirement, the Contractor shall:

- (a) pay and indemnify the Principal against all customs duties, stamp duties, goods and services tax and other duties, charges, taxes or imposts payable by the Contractor in connection with the carrying out of WUC; and
- (b) provide all security required under any Legislative Requirement as security for the payment of any duties, charges, taxes or imposts.

11A Workplace Health and Safety

11A.1 Work Health and Safety Act

From the date of execution of this Contract by the Principal:

- (a) the Principal is deemed to have appointed the Contractor to be principal contractor pursuant to regulation 293(3) of the *Work Health and Safety Regulations 2011* (Qld) (**WH&S Regulations**) for The Works;
- (b) the Contractor is deemed to have accepted the appointment;
- (c) the Contractor, in respect of The Works, becomes responsible for the performance of the principal contractor's functions under the WH&S Act and WH&S Regulations, including the payment of any fees or charges necessary to comply with the requirements of the WH&S Act and WH&S Regulations; and
- (d) the Contractor agrees to comply with the requirements of any applicable codes of practice made under, or preserved pursuant to the WH&S Act, as amended from time to time.

The Contractor's appointment as principal contractor shall continue until the issue of the Final Certificate under subclause 37.4, unless sooner revoked by the Principal giving 7 days notice in writing to Contractor of its revocation or by the Principal taking over or terminating the Contract pursuant to any provision of the Contract or at law.

Within 24 hours of the Contractor's appointment as principal contractor ending for any reason other than the completion of The Works, the Contractor must provide the Superintendent with all information and reports necessary and otherwise required by the Superintendent, or other parties nominated by the Superintendent, to fulfil the obligations as principal contractor pursuant to the WH&S Act and WH&S Regulations and otherwise ensure the health and safety of all persons at or near the Site.

The Contractor acknowledges and agrees that it will comply any obligations imposed by the WH&S Regulations on 'designers' of 'plant' or 'structures' (as those terms are defined in the WHS Regulations), including, without limitation, regulation 295.

The Contractor indemnifies the Principal against all liabilities to which it may be exposed or which may arise out of the enforcement of any section of the WH&S Act and WH&S Regulations as a result of any breach by the Contractor of its obligations as principal contractor.

11A.2 Health and Safety Plan and other obligations

The Contractor must comply with:

- (a) the Health and Safety Plan which the Superintendent determines is suitable in accordance with Clause 6A and subclause 8.3;
- (b) all applicable Legislative Requirements including the WH&S Act and WH&S Regulations;
- (c) any Direction given by the Superintendent relating to workplace health and safety;
- (d) all requirements, policies and procedures of the Principal concerning workplace health and safety, including where applicable, those contained in the Formal Instrument of Agreement; and
- (e) take any reasonable action necessary to ensure the health and safety of its employees, Subcontractors and their employees and any other person who may be affected by the Contractor's actions while undertaking the WUC.

The Health and Safety Plan must describe the systems that the Contractor has in place for:

- (f) managing health and safety; and
- (g) complying with any policies of the Principal and any Legislative Requirements concerning health and safety during the performance of the WUC.

11A.3 Safety audits and investigations

The Contractor must fully cooperate with the Superintendent, the Principal and any auditor or investigator appointed by the Superintendent, the Principal or the authority responsible for the WH&S Act in connection with:

- (a) any safety and health audit on the Health and Safety Plan and the Contractor's compliance with the WH&S Act; and
- (b) any health and safety investigation,

and must comply with any action plan, direction or recommendation arising out of any audit or investigation.

Audits and investigations may be carried out at any time. During any audit or investigation, the Contractor must provide the Superintendent or their nominee with all documents, access and assistance required to complete the audit or investigations to the satisfaction of the Superintendent or their nominee.

If any non-conformance is detected, the Contractor must immediately rectify the non-conformance to the Superintendent's satisfaction.

The Contractor shall bear all costs and expenses in connection with:

- (c) any audit or investigation carried out under subclause 11A.3 (including all costs and expenses in connection with the appointment of an auditor or investigator by the Superintendent, the Principal or the authority responsible for the WH&S Act); and
- (d) complying with any action plan, direction or recommendation arising out of any audit or investigation, or rectifying the non-conformance.

11A.4 Australian Government WHS Accreditation Scheme

To the extent that the Work Under the Contract is 'building work' as defined in section 6 of the *Federal Safety Commissioner Act 2022* (Cth), the Contractor warrants that it complies with and until the issue of the Final Certificate under Clause **Error! Reference source not found.** will remain compliant with, the requirement of the WHS Accreditation Scheme as defined in the *Federal Safety Commissioner Act 2022* (Cth). The Contractor acknowledges that the Principal has entered into this Contract in reliance on this warranty.

11B Environment

11B.1 Compliance

The Contractor must comply with:

- (a) all Legislative Requirements, including the *Environmental Protection Act 1994* (Qld); and
- (b) all requirements, policies and procedures of the Principal concerning the environment.

11B.2 Duty to not cause damage or nuisance

The Contractor warrants that it will use reasonable care to ensure that there is nothing provided by it or in the Construction Plant used by it to construct The Works which would reasonably be expected to:

- (a) cause nuisance, death, injury or ill health to any persons;
- (b) cause damage to property; or
- (c) cause contamination to the air, water or ground.

11D Security of Payment Act Requirements

11D.1 Provisions subject to the Security of Payment Act

- (a) The rights and obligations of the parties under the Contract are subject to the provisions of the Security of Payment Act to the extent that they apply and have not been contracted out of.
- (b) Where there is any inconsistency between the Contract and the Security of Payment Act, the Security of Payment Act will prevail to the extent necessary to avoid the inconsistency.

- (c) Terms used in this Clause and defined in the Security of Payment Act, will have the meaning given to them by the Security of Payment Act.

11D.2 Definition of Reference Date for the Purposes of Security of Payment Act

- (a) The Contractor will only be entitled to make a Progress Claim from each date stated in or worked out under the Contract (including paragraph (b)).
- (b) Despite any other provision of the Contract to the contrary, where the Contract provides that until the satisfaction of any Claim Precondition, then the only date on which a claim for that Progress Payment may be made by the Contractor will be the later of:
 - (i) the date of satisfaction of the last Claim Precondition to be satisfied; and
 - (ii) the date after which that Progress Payment can otherwise be made under the Contract.
- (c) For the purposes of this Clause, Clauses 37.1 and 44A, the Claims Preconditions are as stated in Annexure Part A.

11D.3 Calculations or Valuation of Progress Payments under the Security of Payment Act

Despite any other provision of the Contract and notwithstanding subclause 37.1, in calculating any Progress Payment to which the Contractor is entitled to in relation to the Contract, and in respect of which the Contractor is entitled to any Progress Claim:

- (a) the following amounts must not be included:
 - (i) any amount which the Contract provides cannot be claimed or is not payable because of the failure by the Contractor to take any action (including to give notice to the Principal or Superintendent);
 - (ii) any amount which represents unliquidated damages claimed against the Principal (whether for breach of contract, in tort or otherwise);
 - (iii) any amount released under subclauses 34.6 or 37.4;
 - (iv) any amount which the Contract provides is not payable until certain events have occurred or conditions have been satisfied, to the extent those events have not occurred or those conditions have not been satisfied; or
 - (v) any amount in respect of which the obligation of the Principal to make payment has been suspended under the Contract;
- (b) the following amounts must be deducted:
 - (i) any amounts which:
 - (A) have become due from the Contractor to the Principal under the Contract;
 - (B) have been claimed by the Principal (acting bona fide) under or in connection with the Contract at any time;
 - (C) the Principal is entitled under the Contract to set off against the Progress Payment; or

- (D) are estimated to be amounts likely to become due from the Contractor to the Principal under or in connection with the Contract as a result of any act or omission of the Contractor (including breach of the Contract); and
- (ii) any amounts which the Principal is entitled under the Contract to withhold, deduct or retain from the Progress Payment (including pursuant to Clause 5); and
- (iii) any amounts stated in the statutory declaration provided by the Contractor in accordance with subclause 37.1A(f) as remaining payable to subcontractors or workers;
- (c) in determining amounts to be excluded or deducted under paragraphs (a) and (b), regard must be had to matters or circumstances occurring at any time before the date that the determination is being made; and
- (d) the value of any work under the Contract relevant to the Progress Payment must:
 - (i) be determined having regard to the Contract Sum (with additions or deductions provided for by the Contract);
 - (ii) include a deduction equal to the greater of:
 - (A) the diminution in value of WUC resulting from; and
 - (B) the estimated cost of rectifying in accordance with the Contract, any omitted or defective work under the Contract;
 - (iii) exclude the value of any unfixed plant or materials (unless the Contract expressly provides for payment for the unfixed plant or materials and the Contractor has fully satisfied those requirements which the Contract provides are to be fulfilled before the Principal is required to pay for those items); and
 - (iv) not include any amount in respect of which the Contractor has failed to provide supporting material or information as required by the Contract or in respect of which the Superintendent has not been able inspect any record to properly determine the amount pursuant to subclause 8.7.

11D.4 Service under the Security of Payment Act on Superintendent

Notwithstanding any other provision of the Contract, the Contractor agrees that in the event it is seeking to serve any claims, notices and other documents upon the Principal under the Security of Payment Act, the Contractor must only do so by serving such claim, notice or other document upon the Superintendent in accordance with Clause 7 and the Superintendent is the Principal's agent for such purpose.

11D.5 Payment Schedule issued by Superintendent

- (a) If within the time allowed by the Security of Payment Act for the service of a payment schedule by the Principal, the Principal does not:
 - (i) serve the payment schedule itself; or

- (ii) notify the Contractor that the Superintendent does not have authority from the Principal to issue the payment schedule on its behalf,

then a Progress Certificate issued by the Superintendent under the Contract which relates to the period relevant to the payment schedule must be taken to be the payment schedule for the purpose of the Security of Payment Act (whether or not it is expressly stated to be a payment schedule).

- (b) The Principal authorises the Superintendent to issue payment schedules on its behalf (without affecting the Principal's right to issue a payment schedule itself).
- (c) Nothing in paragraphs (a) or (b) will prejudice the obligations of the Principal relating to the manner in which the Superintendent is to exercise its function of issuing a Progress Certificate, whether or not the Progress Certificate is or may also be a payment schedule.
- (d) In responding to the Contractor under the Security of Payment Act, the Superintendent also acts as the agent of the Principal.

11D.6 Notice of Communications to the Superintendent

The Contractor must:

- (a) ensure that a copy of any written communication it delivers or arranges to deliver to the Principal of whatever nature in relation to the Security of Payment Act or the QBCC Act, (including a Progress Claim under the Security of Payment Act), is provided to the Superintendent at the same time;
- (b) promptly (and within one Business Day) give the Superintendent a copy of any written communication of whatever nature in relation to the Security of Payment Act or the QBCC Act (including a Progress Claim, adjudication application, adjudication determination or notice to suspend works under the Security of Payment Act), which the Contractor receives from a subcontractor; and
- (c) ensure that each subcontractor promptly (and within one Business Day) gives the Superintendent a copy of any written communication of whatever nature in relation to the Security of Payment Act or the QBCC Act (including a Progress Claim, adjudication application, adjudication determination, or notice to suspend works under the Security of Payment Act), which the subcontractor receives from another party.

11D.7 Contractor's Remedies Limited

Nothing in the Contract will be construed to:

- (a) make any act or omission of the Principal in contravention of the Security of Payment Act (including failure to pay an amount becoming due under the Security of Payment Act), a breach of the Contract (unless the Principal would have been in breach of the Contract had the Security of Payment Act had no application); or
- (b) give to the Contractor rights or remedies under the Contract which extend or are in addition to rights or remedies given to the Contractor by the Security of Payment Act in respect of any act or omission of the Principal in contravention of the Security of Payment Act.

11D.8 Suspension by Contractor

If the Contractor, at any time suspends the whole or any part of the work under the Contract pursuant to the Security of Payment Act then, despite any other provision of the Contract:

- (a) the Date for Practical Completion will not be affected but the suspension will be a cause of delay for which the Contractor may claim an extension of time in accordance with the Contract;
- (b) except as expressly provided in paragraph (a), subclause 11D.7 will apply; and
- (c) except to the extent as expressly provided under the Security of Payment Act, the Principal will not be liable for any costs, expenses, damages, losses or other liability whatsoever suffered or incurred by the Contractor as a result of the suspension.

11D.9 Suspension by Subcontractors

If any subcontractor at any time suspends the provision by it of work, services, materials or other things (which form part of the work under the Contract) pursuant to the Security of Payment Act, despite any other provision of the Contract:

- (a) the Contractor will not be relieved of any of its obligations under the Contract and the suspension by the subcontractor will not entitle the Contractor to any claim (including without limitation, for an extension of time under subclause 34.5 or delay or disruption costs under subclause 34.9); and
- (b) the Contractor must immediately provide to the Superintendent full details of the circumstances giving rise to the subcontractor's right or alleged right to suspend or take any other action.

11D.10 Adjudication

Where an adjudication occurs under the Security of Payment Act and, if required by the Security of Payment Act to do so, the Principal has paid the adjudicated amount to the Contractor:

- (a) the Principal may provide a copy of the adjudicator's determination to the Superintendent; and
- (b) where an adjudicator's determination is quashed, overturned or declared to be void, the adjudicated amount will become a debt due and immediately payable by the Contractor to the Principal.

11D.11 Construction of Contract Provisions

To the extent any provision of the Contract is (or may, if not for the operation of this Clause, be) found to be void under the Security of Payment Act, the provision must be construed or severed from the Contract in a manner which:

- (a) avoids the provision or any other provision of the Contract being void; and
- (b) subject to paragraph (a), preserves to the maximum possible extent:
 - (i) the enforceability of the provision and the other provisions of the Contract; and
 - (ii) the original effect and intent of the Contract.

11E NGER Legislation

The Contractor acknowledges that the Principal is or may become subject to NGER legislation. The Contractor shall provide all reasonable assistance to the Principal to enable it to comply with its obligations under the NGER legislation including, but not limited to:

- (a) keeping and maintaining for a period of seven years accurate records of:
 - (i) the amount of greenhouse gases directly emitted; and
 - (ii) the amount of energy (including diesel, electricity or other fuels) used in performing any of its obligations under this document; and
- (b) allowing the Principal access to those records and provide a copy of those records to the Principal upon request.

The Contract Sum is deemed to include the Contractor's costs of complying with its obligations under this Clause.

11F Personal Property Securities Act 2009 (Cth)

The words 'Accession', 'Commingle', 'Financing Statement', 'Grantor', 'Personal Property', 'Proceeds', 'Security Interest' and 'Verification Statement' have the meaning given to them in the PPSA.

The parties acknowledge that this Contract may constitute a Security Interest in favour of the Principal.

If the Principal determines that this Contract (or a transaction in connection with it) is or contains a Security Interest, the Contractor agrees to do anything (including obtaining consents, signing and producing documents, getting documents completed and signed and supplying information) which the Principal asks and considers necessary for the purposes of:

- (a) ensuring that the Security Interest is enforceable, perfected and otherwise effective;
- (b) enabling the Principal to apply for any registration, complete any Financing Statement or give any notification, in connection with the Security Interest; or
- (c) enabling the Principal to exercise rights in connection with the Security Interest.

The Principal is not required to give any notice under the PPSA (including notice of a Verification Statement) unless the notice is required by the PPSA to be given (even though the parties have waived the right to receive notice).

The Contractor must notify the Principal as soon as the Contractor becomes aware of any of the following:

- (d) if any Personal Property which does not form part of the Principal's Personal Property becomes an Accession to the Principal's Personal Property and is subject to a Security Interest in favour of a third party;
- (e) if any of the Principal's Personal Property is located or situated outside Australia or, upon request by the Principal, of the present location or situation of any of the Principal's Personal Property; or
- (f) if the Contractor parts with possession of the Principal's Personal Property.

The Contractor must not:

- (g) create any Security Interest or lien over Personal Property that the Principal has an interest in (other than Security Interests granted in favour of the Principal);
- (h) sell, lease or dispose of its interest in the Principal's Personal Property that the Principal has a Security Interest in;
- (i) give possession of the Contractor's Personal Property that the Principal has a Security Interest in or the Principal's Personal Property to another person;
- (j) permit any of the Principal's Personal Property to become an Accession to or Commingled with any asset that is not part of The Works or the Site; or
- (k) change its name without first giving the Principal 15 Business Days notice of the new name or relocate its Principal place of business outside Australia or change its place of registration or incorporation.

Everything the Contractor is required to do under this Clause 11F is at the Contractor's expense.

Neither the Principal nor the Contractor will disclose information of the kind mentioned in section 275(1) of the PPSA and the Contractor will not authorise, and will ensure that no other party authorises, the disclosure of such information. This Clause 11F does not prevent disclosure where such disclosure is required under section 275 of the PPSA because of the operation of section 275(7) (b), (d) and (e) of the PPSA.

11G Labour Relations

The Contractor must:

- (a) ensure all employees (including employees of Subcontractors) carrying out the work under the Contract are employed in accordance with any applicable laws (including the *Fair Work Act 2009* (Cth) and, where relevant, the *Industrial Relations Act 2016* (Qld)), awards, enterprise agreements or other enforceable industrial instruments certified, registered or otherwise approved under relevant Legislative Requirements;
- (b) actively manage and do all things necessary to avoid disputes or disturbances in industrial relations and limit the impact of disputes or disturbances in industrial relations if they occur;
- (c) keep the Principal and Superintendent informed of, and upon request by the Superintendent, provide all reasonable assistance and information required by and consult fully with the Principal and Superintendent in connection with, any actual or potential industrial dispute or disturbance;
- (d) allow the Principal to attend and participate at any conference or negotiation with union or employee bargaining representative and in any hearing, conference or other proceedings before any tribunal or court in connection with any industrial dispute or disturbance;
- (e) prior to the dismissal of any of its employees on the Site, give written notice to the Principal of the reasons for such dismissal;
- (f) establish and maintain all necessary policies to secure harmonious industrial relations in connection with the WUC; and
- (g) ensure that all subcontracts include provisions which reflect this Clause 11G.

11H Subcontractors' Charges Legislation

Where any person at any time lodges, or purports to lodge:

- (a) under the Subcontractors' Charges Legislation, a charge over any moneys (including retention moneys or security); or
- (b) a Payment Withholding Request for any moneys,

payable under this Contract by the Principal to the Contractor, the Contractor agrees that any additional losses, costs or expenses that the Principal suffers or incurs arising from or in connection with the lodgement of the charge (including in responding to any notice of claim or paying any moneys into court) or the Payment Withholding Request will be a debt due and payable to the Principal by the Contractor, whether or not the charge or Payment Withholding Request is validly lodged or any action taken by the person lodging the charge or Payment Withholding Request is successful.

11I Heavy Vehicles

- (a) The Contractor must ensure that all WUC is carried out in accordance with Heavy Vehicle Laws and Heavy Vehicle Safety Requirements.
- (b) Without limiting Clause 11I(a), the Contractor must at all times:
 - (i) discharge its duties under Heavy Vehicle Law;
 - (ii) ensure the Contractor's employees and subcontractors (Personnel) discharge their respective duties under Heavy Vehicle Law, in connection with all WUC.
- (c) The Contractor must ensure that all Heavy Vehicles operated by the Contractor or the Contractor's Personnel in connection with WUC comply with Heavy Vehicle Laws and Heavy Vehicle Safety Requirements.
- (d) The Contractor:
 - (i) must ensure that the Program:
 - (A) enables the Contractor to discharge its duties under Heavy Vehicle Law; and
 - (B) allows for the use and operation of Heavy Vehicles associated with WUC to comply with Heavy Vehicle Safety Requirements, including but not limited to mass, dimensions, loading, speed and fatigue; and
 - (ii) warrants that it has taken into account the Heavy Vehicle Safety Requirements before:
 - (A) submitting any revised Program; and
 - (B) committing to execute the Works to Practical Completion by the Date for Practical Completion and any other time based obligation.
- (e) The Principal or the Superintendent may at any time conduct their own audit of the Contractor's records for its Heavy Vehicles and compliance with Heavy Vehicle Safety Requirements (including any safety management systems of the Contractor) and the Contractor must:

- (i) co-operate fully with the Principal or the Superintendent in connection with that audit (including by providing all necessary access, policies and plans or other information); and
 - (ii) immediately address, and ensure the Contractor's Personnel address, any issues identified by the Principal or the Superintendent from their audit and notified to the Contractor.
- (f) The Superintendent may issue a Direction at any time if it considers that the Contractor has not complied or may potentially not comply with the requirements in this Clause 11I. The Contractor shall have no claim due to the Superintendent issuing, or failing to issue, any such Direction.
- (g) The Contractor must immediately notify the Principal and the Superintendent of:
 - (i) any breach or potential breach by the Contractor or any of the Contractor's Personnel of the Heavy Vehicle Safety Requirements; or
 - (ii) any notice or direction received by the Contractor or any of the Contractor's Personnel under or in connection with Heavy Vehicle Law (including by providing a copy of the notice or direction to the Principal and the Superintendent).

11J Eligible Data Breach

Without limiting any other provision of this Contract, including subclause 2.2(f), if the Contractor becomes aware of an Eligible Data Breach involving information obtained from the Principal, the Superintendent or any consultant of the Principal, it:

- (a) must immediately notify the Principal of the Eligible Data Breach;
- (b) must not notify any other party of the information pertaining to the Eligible Data Breach unless advised by the Principal to do so;
- (c) must provide the Principal, at the Contractor's cost, with all reasonable assistance required by the Principal (including access to records, employees and agents of the Contractor) for it to investigate the Eligible Data Breach and meet any notification requirements the Principal may have under the *Privacy Act 1988* (Cth) or any other Legislative Requirements; and
- (d) will indemnify the Principal against all damages, expenses (including, without limitation, lawyers' fees and expenses) loss or liability of any nature suffered or incurred by the Principal arising out of the Eligible Data Breach.

12. Protection of people and property

Insofar as compliance with the Contract permits, the Contractor shall:

- (a) take measures necessary to protect people and property;
- (b) avoid unnecessary interference with the passage of people and vehicles; and
- (c) prevent nuisance and unreasonable noise and disturbance, including without limitation in the form of dust and vibrations.

If the Contractor fails to comply with Clauses 12(a), 12(b) or 12(c), the Contractor shall promptly rectify the damage and pay any compensation which the law requires the Contractor to pay.

If the Contractor fails to comply with an obligation under this Clause, the Principal, after the Superintendent has given reasonable written notice to the Contractor and in addition to the Principal's other rights and remedies, may have the obligation performed by others. The cost thereby incurred shall be certified by the Superintendent as moneys due from the Contractor to the Principal.

The Contractor shall indemnify the Principal against any costs, damage, loss, claim or liability arising from the Contractor's breach of this Clause 12.

13. Urgent protection

If urgent action is necessary to protect WUC, other property or people and the Contractor fails to take the action, in addition to any other remedies of the Principal, the Superintendent may take the necessary action. If the action was action which the Contractor should have taken at the Contractor's cost, the Superintendent shall certify the cost incurred as moneys due from the Contractor to the Principal.

If time permits, the Superintendent shall give the Contractor prior written notice of the intention to take action pursuant to this Clause.

This Clause also applies if urgent action is necessary or considered desirable by the Superintendent to ensure that:

- (a) the operation of or continuing use by the Principal of the Site or lands in the vicinity of the Site is not threatened; and
- (b) any harm or damage to the environment is avoided or minimised.

14. Care of the work and reinstatement of damage

14.1 Care of WUC

Except as provided in subclause 14.3, the Contractor shall be responsible for care of:

- (a) the whole of WUC from and including the date of commencement of WUC to 4:00 pm on the Date of Practical Completion, at which time responsibility for the care of The Works (except to the extent provided in paragraph (b)) shall pass to the Principal; and
- (b) outstanding Work and items to be removed from the Site by the Contractor after 4:00 pm on the Date of Practical Completion until completion of outstanding Work or compliance with Clauses 29, 30 and 35.

Without limiting the generality of paragraph (a), the Contractor shall be responsible for the care of unfixed items accounted for in a Progress Certificate and the care and preservation of things entrusted to the Contractor by the Principal or brought onto the Site by Subcontractors for carrying out WUC.

14.2 Reinstatement

If loss or damage, other than that caused by an Excepted Risk, occurs to WUC during the period of the Contractor's care, the Contractor shall at its cost, promptly rectify such loss or damage.

In the event of loss or damage being caused by any of the Excepted Risks (whether or not in combination with other risks), the Contractor shall to the extent directed by the Superintendent, rectify the loss or damage and such rectification shall be a deemed Variation. If loss or damage is caused by a combination of Excepted Risks and other risks, the Superintendent in pricing the Variation shall assess the proportional responsibility of the parties.

14.3 Excepted Risks

The Excepted Risks causing loss or damage, for which the Principal is liable, are:

- (a) any negligent act or omission of the Superintendent, the Principal or its consultants, agents, employees or other contractors (not being employed by the Contractor);
- (b) any risk specifically excepted elsewhere in the Contract;
- (c) war, invasion, acts of foreign enemies, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection or military or usurped power, martial law or confiscation by order of any Government or public authority;
- (d) ionising radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel not caused by the Contractor or its Subcontractors or either's employees or agents;
- (e) use or occupation of any part of WUC by the Principal or its consultants, agents or other contractors (not being employed by the Contractor); and
- (f) not used,

but excluding any risk causing 'eligible terrorism loss' to which the *Terrorism and Cyclone Insurance Act 2003* (Cth) applies.

15. Damage to persons and property other than WUC

15.1 Indemnity by Contractor

Insofar as this subclause applies to property, it applies to property other than WUC.

The Contractor shall indemnify the Principal against:

- (a) loss of or damage to the Principal's property; and
- (b) claims by any person in respect of personal injury or death or loss of, or damage to, any other property,

arising out of or as a consequence of the carrying out of WUC, but the indemnity shall be reduced proportionally to the extent that the negligent act or omission of the Superintendent, the Principal or its consultants, agents or other Contractors (not being employed by the Contractor) may have contributed to the injury, death, loss or damage.

This subclause shall not apply to:

- (c) the extent that the Contractor's liability is limited by another provision of the Contract;
- (d) exclude any other right of the Principal to be indemnified by the Contractor;
- (e) things for the care of which the Contractor is responsible under subclause 14.1; and

- (f) Claims in respect of the Principal's right to have WUC carried out.

15.2 Indemnity by Principal

The Principal shall indemnify the Contractor in respect of Claims referred to in paragraph (d) of subclause 15.1.

16A Insurance of the Works

The Alternative in Item 23(c) applies.

Alternative 1: Contractor to insure

Before commencing WUC, the Contractor shall insure all the things referred to in subclause 14.1 against loss or damage resulting from any cause until the Contractor ceases to be responsible for their care.

Without limiting the generality of the obligation to insure, such insurance shall cover the Contractor's liability under subclause 14.2 and things in storage off Site and in transit to the Site but may exclude:

- (a) the cost of making good fair wear and tear or gradual deterioration, but shall not exclude the loss or damage resulting therefrom;
- (b) the cost of making good faulty design, workmanship and materials, but shall not exclude the loss or damage resulting therefrom;
- (c) consequential loss of any kind, but shall not exclude loss of or damage to The Works;
- (d) damages for delay in completing or for the failure to complete The Works;
- (e) loss or damage resulting from ionising radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel resulting from any cause;
- (f) loss or damage resulting from the Excepted Risks referred to in paragraphs (b) and (c) of subclause 14.3.

The insurance cover shall be for an amount not less than the aggregate of the:

- (a) Contract Sum;
- (b) provision in Item 23(d) to provide for costs of demolition and removal of debris;
- (c) provision in Item 23(e) for Consultants' fees and Principal's consultants' fees;
- (d) value in Item 23(f) of any materials or things to be supplied by the Principal for the purposes of WUC; and
- (e) additional amount or percentage in Item 23(g) of the total of the items referred to in subparagraphs (a) to (d) of this paragraph.

Insurance shall be in the joint names of the parties, shall cover the parties, Consultants and Subcontractors whenever engaged in WUC for their respective rights, interests and liabilities and, except where the Contract otherwise provides, shall be with an insurer and in terms both approved in writing by the Principal (which approvals shall not be unreasonably withheld).

The insurance shall be maintained until the Contractor ceases to be responsible under subclause 14.1 for the care of anything.

The cost of obtaining and maintaining the insurance required under this Clause must be included in the Contract Sum.

Alternative 2: Principal to insure

Before the Date of Acceptance of Tender, the Principal shall insure WUC in the terms of the policy included in the tender documents and nominating or stating the insurer. The Principal shall maintain such insurance while ever the Contractor has an interest in WUC.

16B Professional indemnity insurance

Before commencing WUC, the Contractor shall effect and maintain professional indemnity insurance with levels of cover not less than stated in Item 24(a).

The insurance shall be maintained until the Final Certificate is issued and thereafter for the period as stated in Item 24(b).

The Contractor shall ensure that every Consultant, if within a category stated in Item 24(c), shall effect and maintain professional indemnity insurance with levels of cover not less than stated in Item 24(c) applicable to that category.

Each such Consultant's professional indemnity insurance shall be maintained until the Final Certificate is issued and thereafter for the period as stated in Item 24(d).

17. Public liability insurance

The Alternative in Item 25(a) applies.

Alternative 1: Contractor to insure

Before commencing WUC, the Contractor shall effect and maintain for the duration of the Contract, a Public Liability Policy.

The policy shall:

- (a) be in the joint names of the parties;
- (b) cover the:
 - (i) respective rights and interests; and
 - (ii) liabilities to third parties,

of the parties, the Superintendent, Consultants and Subcontractors from time to time, whenever engaged in WUC;

- (c) cover the parties' respective liability to each other for loss or damage to property (other than property required to be insured by Clause 16A) and the death of or injury to any person (other than liability which the law requires to be covered under a workers compensation insurance policy);
- (d) be endorsed to cover the use of any Construction Plant not covered under a comprehensive or third party motor vehicle insurance policy;

- (e) provide insurance cover for an amount in respect of any one occurrence of not less than the sum in Item 25(b);
- (f) be with an insurer and otherwise in terms both approved in writing by the Principal (which approvals shall not be unreasonably withheld); and
- (g) be maintained until the Contractor has completed all of the WUC.

The cost of obtaining and maintaining the insurance required under this Clause must be included in the Contract Sum.

Alternative 2: Principal to insure

Before the Date of Acceptance of Tender, the Principal shall effect in relation to WUC, a Public Liability Policy in the terms of the policy included in the tender documents and nominating or stating the insurer. The Principal shall maintain such insurance while ever the Contractor has an interest in WUC.

18. Insurance of employees

Before commencing WUC, the Contractor shall insure against statutory and common law liability for death of or injury to persons employed by the Contractor. The insurance cover shall be maintained until completion of all WUC.

Where permitted by law, the insurance policy or policies shall be extended to provide indemnity for the Principal's statutory liability to the Contractor's employees.

The Contractor shall ensure that all Consultants and Subcontractors have similarly insured their employees.

18A Additional insurance

The Contractor must also maintain the following:

- (a) insurance covering any plant and equipment belonging to or leased by the Contractor used in the performance of the Works for their replacement value against all usually insured risks; and
- (b) comprehensive motor vehicle, including third party liability insurance in respect of all motor vehicles used by the Contractor in the performance of the Works, including for third party property damage and for personal injury in accordance with relevant Legislative Requirements.

The cost of obtaining and maintaining the insurances required under this Clause must be included in the Contract Sum.

19. Inspection and provisions of insurance policies

19.1 Proof of insurance

Any insurance required to be effected or maintained by the Contractor under the Contract must be in a form and with an insurer acceptable to the Principal.

The Contractor shall at the Pre-Start Meeting and whenever requested in writing by the Principal provide satisfactory evidence of such insurance effected and maintained in the form of a

certificate of insurance which should give details of the amount of cover, the company issuing the insurance and the currency or expiry date of the insurance.

Insurance shall not limit liabilities or obligations under other provisions of the Contract.

19.2 Failure to produce proof of insurance

If after being so requested, a party liable to insure fails promptly to provide evidence of satisfactory compliance, then without prejudice to other rights or remedies, the other party may insure and the cost thereof shall be certified by the Superintendent as moneys due and payable from the party in default to the other party. Compliance with this Clause 19 is precondition to the making of a valid Claim for payment under subclause 37.1. Where the defaulting party is the Contractor, the Principal may refuse payment or set off the cost thereof against any money due and payable to the Contractor until such evidence is produced by the Contractor. The rights given by this subclause 19.2 are in addition to any other right.

19.3 Notices from or to insurer

The party insuring under Clause 16A or 17 shall ensure that each insurance policy contains provisions acceptable to the other party which:

- (a) requires the insurer to inform both parties, whenever the insurer gives a party or a Consultant or a Subcontractor a notice in connection with the policy;
- (b) provides that a notice of claim given to the insurer by either party, the Superintendent, a Consultant or a Subcontractor shall be accepted by the insurer as a notice of claim given by both parties, the Superintendent, the Consultant and the Subcontractor; and
- (c) requires the insurer, whenever the party fails to maintain the policy, promptly to give written notice thereof to both parties and prior to cancellation of the policy.

19.4 Notices of potential claims

A party shall, as soon as practicable, inform the other party in writing of any occurrence that may give rise to a claim under an insurance policy required by Clause 16A or 17 and shall keep the other party informed of subsequent developments concerning the claim. The Contractor shall ensure that Consultants and Subcontractors in respect of their operations similarly inform the parties.

19.5 Settlement of claims

Upon settlement of a claim under the insurance required by Clause 16A:

- (a) to the extent that reinstatement has been the subject of a payment or allowance by the Principal to the Contractor, if the Contractor has not completed such reinstatement, insurance moneys received shall, if requested by either party, be paid into an agreed bank account in the joint names of the parties. As the Contractor reinstates the loss or damage, the Superintendent shall certify against the joint account for the cost of reinstatement; and
- (b) to the extent that reinstatement has not been the subject of a payment or allowance by the Principal to the Contractor, the Contractor shall be entitled immediately to receive

from insurance moneys received, the amount of such moneys so paid in relation to any loss suffered by the Contractor.

19.6 Cross liability

Any insurance required to be effected in joint names in accordance with the Contract shall include a cross liability Clause in which the insurer agrees to waive all rights of subrogation or action against any of the persons constituting the insured and for the purpose of which the insurer accepts the term 'insured' as applying to each of the persons constituting the insured as if a separate policy of insurance had been issued to each of them (subject always to the overall sum insured not being increased thereby).

19.7 Deductibles

Any excess or deductible payable in respect of any claim made against an insurance policy required under this Contract shall be payable by the Contractor except to the extent the claim is caused by a negligent act or omission of the Principal.

20. Superintendent

The Principal shall ensure that at all times there is a Superintendent, and that the Superintendent in the exercise of its assessment and certification functions fulfils all aspects of the role honestly and fairly. The Contractor acknowledges in all other aspects of the role the Superintendent acts as agent for and is subject to the direction of the Principal.

Despite the definition of Direction, a direction by the Superintendent relied upon by the Contractor is only a Direction if it is:

- (a) in writing given by the Superintendent; and
- (b) expressly states it is a Direction given to the Contractor for the purposes of a particular Clause of the Contract,

and otherwise there is no entitlement to the Contractor to make a Claim.

If the Contractor considers that any Direction given by the Superintendent will give rise to any Claim, it will provide the Superintendent with notification of that fact within 5 Business Days of the date of the Direction.

The Superintendent shall have:

- (c) access to the Site and The Works; and
- (d) after reasonable notice to the Contractor, access to any place other than the Site where WUC is being carried out or materials are being prepared or stored,

for the purposes of discharging the functions of the Superintendent under the Contract.

21. Superintendent's Representative

The Superintendent may from time to time appoint individuals to exercise delegated Superintendent's functions, provided that:

- (a) no aspect of any function shall at any one time be the subject of delegation to more than one Superintendent's Representative;

- (b) delegation shall not prevent the Superintendent exercising any function;
- (c) the Superintendent forthwith gives the Contractor written notice of respectively:
 - (i) the appointment, including the Superintendent's Representative's name and delegated functions; and
 - (ii) the termination of each appointment; and
- (d) if the Contractor makes a reasonable objection to the appointment of a Superintendent's Representative, the Superintendent shall terminate the appointment.

22. Contractor's representative

The Contractor shall superintend WUC personally or by a competent representative. Matters within a Contractor's representative's knowledge (including Directions received) shall be deemed to be within the Contractor's knowledge.

The Contractor shall forthwith give the Superintendent written notice of the representative's name and any subsequent changes.

If the Superintendent makes a reasonable objection to the appointment of a representative, the Contractor shall terminate the appointment and appoint another representative.

The Contractor's representative shall have authority to bind the Contractor in connection with all matters under the Contract.

23. Contractor's employees and Subcontractors

23.1 Removal of employees and subcontractors

The Superintendent may direct the Contractor to have removed (at the Contractor's cost), within a stated time, from the Site or from any activity of WUC, any person employed on WUC who, in the Superintendent's opinion, is incompetent, negligent, guilty of misconduct, including breaching any of the Principal's safety requirements, policies and procedures or Legislative Requirements.

23.2 Key Personnel

The Contractor:

- (a) must ensure the key personnel listed in Item 25B in Annexure Part A are engaged in the provision of the WUC in their respective capacities; and
- (b) must only replace key personnel listed in Item 25B in Annexure Part A:
 - (i) in circumstances of death, serious illness, change of employment or request by the Superintendent; and
 - (ii) with others (having equivalent skill and experience) approved by the Superintendent.

24. Site

24.1 Access

Before the expiry of the time stated in Item 26(c), the Principal shall give the Contractor access to the Site sufficient to enable the Contractor to commence and carry out the Contractor's Design Obligations.

Provided the Contractor has complied with subclause 19.1, the Principal shall before the expiry of the time in Item 26(d), give the Contractor access of sufficient of the Site for commencement of WUC on Site. If the Principal has not given the Contractor access of the whole Site, the Principal shall give the Contractor access of such further portions of the Site as may, from time to time, be necessary for carrying out WUC. Subject to subclause 39.7, delay by the Principal in giving access shall not be a breach of the Contract.

Access of the Site shall confer on the Contractor a right to only such use and control as is necessary to enable the Contractor to carry out WUC and shall exclude camping, residential purposes and any purpose not connected with WUC, unless approved by the Superintendent.

The Contractor shall have no right of exclusive occupation of any part of the Site and shall access the Site only in accordance with the Directions of the Superintendent.

24.1A Access to Site

The Contractor shall ensure that the Contractor, its employees, its Subcontractors and their employees:

- (a) do not enter upon any place notified by the Principal to the Contractor in writing as a place to which the Contractor is not to have access, without the prior written consent of the Principal;
- (b) have completed such safety or other training or induction as the Superintendent from time to time directs before accessing the Site;
- (c) at all times:
 - (i) keep themselves informed as to the requirements of, comply with and not do anything which may place the Principal in breach of any Legislative Requirements applying to the Site;
 - (ii) comply with all procedures, policies or rules adopted from time to time by the Principal in connection with the Site; and
 - (iii) comply with the Directions (if any) given to the Contractor by the Principal or the Superintendent at any time in connection with the Site (including access to and use of the Site);
- (d) only access the Site during the hours and on the days provided for in the Contract; and
- (e) ensure the Site is kept safe and secure.

The Contractor must access the Site only at the point of entry and exit and via the routes which:

- (f) ensure minimum disturbance and inconvenience to users of the Existing Improvements; and
- (g) the Superintendent approves from time to time.

The Superintendent may revoke any approval given at any time.

The Contractor shall ensure the Superintendent and its agents and employees are allowed access to any place where any part of The Works is situated or any WUC is being carried out (including at a location other than the Site or the Contractor's premises), for the purpose of inspection and testing.

24.1B Access to Adjoining Properties

The Contractor shall:

- (a) at its own cost, obtain all necessary approvals, permissions and consents for any access to, over, or use of any land adjoining the Site or property which may be required for execution of WUC;
- (b) comply with all conditions attaching to such approvals, permissions and consents; and
- (c) indemnify the Principal against:
 - (i) any Claim for personal injury, death, loss of, or damage to the Principal's property or any other property in respect of the Contractor's access to, over, or use of any adjoining Site or property; and
 - (ii) any Claim, action, cost, expense, damages, loss or liability arising from breach of any condition attaching to any approval, permission or consent referred to in paragraph (a).

24.2 Access for Principal and others

The Principal and the Principal's employees, consultants and agents may at any time after reasonable written notice to the Contractor, have access to any part of the Site for any purpose. The Contractor shall permit persons engaged by the Principal to carry out Work on the Site other than WUC and shall cooperate with them. The Principal shall give to the Contractor the names and roles of the persons so engaged.

The Contractor shall at all reasonable times give the Superintendent access to WUC.

The Principal shall ensure that none of the persons referred to in this subclause impedes the Contractor.

24.3 Minerals, fossils and relics

Valuable minerals, fossils, articles or objects of antiquity or of anthropological or archaeological interest, treasure trove, coins and articles of value found on the Site shall as between the parties be and remain the property of the Principal. Immediately upon the discovery of these things the Contractor shall:

- (a) take precautions to prevent their loss, removal or damage; and
- (b) give the Superintendent written notice of the discovery.

All costs so incurred by the Contractor shall be assessed by the Superintendent and added to the Contract Sum.

24A Services and Facilities

The Contractor shall provide all facilities which are necessary to comply with its obligations for the safe and satisfactory performance of the WUC and keep these serviced and in good condition.

The Contractor shall provide all other services and facilities on the Site for its use as may be necessary for the proper and timely completion by it of the WUC including:

- (a) safety clothing and/or equipment for all persons engaged on Site on the WUC;
- (b) task lighting necessary to carry out the WUC;
- (c) all other services and facilities which are necessary for the proper and timely execution and completion of the Works; and
- (d) any other specific requirements described in this Contract.

The Principal does not warrant the availability of space on the Site for the Contractor's intended services and facilities. Unless agreed otherwise with the Superintendent, services and facilities provided on the Site by the Contractor shall be promptly demobilised and removed from the Site when no longer required for the performance of the WUC.

The Contractor acknowledges that no warranty or other liability on the part of the Principal or of other contractors shall be created or implied with regard to the fitness, condition, suitability or performance of any services or facilities provided by the Principal.

24B Contractor's Responsibilities Regarding Existing Improvements

24B.1 Existing Improvements Operations

The Contractor acknowledges that the Principal is to continue to allow the operation and use of Existing Improvements during the course of the carrying out of the WUC and the Contractor must take all measures to allow those Existing Improvements to continue to be operated and used during the carrying out of WUC.

24B.2 Use of Existing Facilities

Without limiting any other obligations of the Contractor, the Contractor shall:

- (a) not interfere with the free movement of traffic (vehicular and pedestrian) into and out of, adjacent to, around, on or about the Site or Existing Improvements or block or impair access to any premises, car parks, loading bays, roadways, pedestrian ways or other facilities associated with the Existing Improvements;
- (b) not use nor allow any Subcontractor or their respective agents or employees to use whether for parking or any other purposes, any part of any of the Existing Improvements other than as allowed by the Contract or as directed by the Superintendent from time to time;
- (c) comply with the Superintendent's Directions as to use of or access to the Existing Improvements, including the times of day and days of the week (if any) that any particular Existing Improvements may be used by the Contractor, Subcontractors or their agents or employees; and

- (d) at the Contractor's own cost immediately:
 - (i) repair and make good any damage to pavements, kerbs, roadways or other Existing Improvements arising from or in connection with the WUC (to the Superintendent's satisfaction); and
 - (ii) when directed by the Superintendent take such action as is required to ensure that its obligations in paragraphs (a), (b) and (c) are complied with.

24B.3 Interference with Services to Existing Improvements

The Contractor shall:

- (a) give the Superintendent at least 14 days (or such longer period as may be specified in the Contract) prior written notice of any disconnection or other interference with services to the Existing Improvements;
- (b) ensure that any disconnection or other interference with services to the Existing Improvements takes place outside the trading or operating hours of the Existing Improvements;
- (c) provide at the Contractor's cost such alternative temporary services as are required to ensure that there is no disruption to the trading or operations of the Existing Improvements; and
- (d) at the Contractor's own cost immediately repair and make good any damage to the services to the Existing Improvements arising from or in connection with the WUC (to the Superintendent's satisfaction).

24B.4 Interference with Users

Except to the extent expressly permitted by the Contract or agreed with the Superintendent, the Contractor shall:

- (a) not disrupt or interfere in any way with the daily operations, use and trading of the Existing Improvements, except where:
 - (i) the disruption or interference is an unavoidable consequence of performing the WUC; and
 - (ii) the time for the disruption or interference is included in a Program that has been approved by the Superintendent in accordance with Clause 32;
- (b) not cause any nuisance, inconvenience or disruption to users of the Existing Improvements; and
- (c) program and co-ordinate all WUC so as to minimise the effect that the carrying out of the WUC has on the Existing Improvements.

24B.5 Indemnity by Contractor

The Contractor shall indemnify the Principal in respect of all demands, Claims, costs, expenses, damages and other liabilities arising from the breach by the Contractor of the provisions of this Clause 24B including any Claim by a user of the Existing Improvements for compensation or damages arising from disruption to their business, provided that the obligation to indemnify shall

be reduced to the extent that a negligent act or negligent omission of the Principal or the Superintendent caused the event that gave rise to the obligation to indemnify.

25. Latent Conditions

25.1 Scope

Latent Conditions are physical conditions on the Site and its near surrounds, including artificial things but excluding weather conditions, or the consequences of a weather condition, which differ materially from the physical conditions which:

- (a) should reasonably have been anticipated by a competent Contractor at the time of the Contractor's tender if the Contractor had complied with subclause 25.1A; and
- (b) will materially affect the performance of the Work;

but excludes:

- (c) water ingress (whether from external source or as a consequence of groundwater) including any need to dewater;
- (d) direct or indirect impediments, difficulties or inefficiencies regarding access to or Work on the Site (including as caused by or contributed to by weather conditions at, on or adjacent to the Site);
- (e) encountering and dealing with any rock, irrespective of the size, hardness, weight or quantity of rock encountered;
- (f) encountering and dealing with any actual acid sulphate soils or potential acid sulphate soils;
- (g) encountering any condition different in any respect to the conditions foreshadowed in any Principal Supplied Information; and
- (h) relocating or repairing existing services that the Contractor has damaged to the Existing Improvements.

25.1A Investigations

The Contractor shall be deemed for all purposes to have:

- (a) examined the Contract and all other information made available by the Principal to the Contractor for the purpose of tendering for the Works;
- (b) examined all information which is relevant to the risks, contingencies and other circumstances which could affect its performance of the Works and which is obtainable by the making of reasonable enquiries;
- (c) visited the Site prior to execution of the Contract and to have made itself fully aware of all matters relating to:
 - (i) the Site and local conditions affecting the Works both above and below the surface, and the condition of any structures or previous Work of any kind on the Site or adjoining the Site; and
 - (ii) the nature and location of the Site and its surroundings;

- (d) undertaken appropriate soil investigations and other investigations of the Site relevant for carrying out WUC;
- (e) informed itself as far as practicable of the climatic conditions (including cyclonic activity, rainfall, evaporation rates, prevailing winds and temperatures) at or near the Site;
- (f) informed itself as far as practicable of the surface water courses (including those affecting access to the Site), underground water tables and flow rates relevant to the performance of The Works;
- (g) informed itself as far as practicable of the nature of the Work and the materials necessary for the execution of the Works, the means of access to and facilities at the Site, and the transport facilities for deliveries to the Site and to have made allowance for these matters;
- (h) informed itself as to the availability of labour, including transport and accommodation required and all other industrial relations factors;
- (i) satisfied itself as to the correctness and sufficiency of its tender for The Works and that the Contract Sum covers the cost of the Contractor performing all its obligations under the Contract;
- (j) ascertained the extent, location and nature of all services, including existing services and temporary services necessary to undertake The Works and to ensure the continuing operation of any existing use of the Site; and
- (k) ascertained and ensured compliance with all Legislative Requirements.

25.2 Notification

The Contractor, shall, within 3 Business Days of encountering a Latent Condition while carrying out the WUC, and where possible before the Latent Condition is disturbed or additional costs are incurred, give the Superintendent written notice accompanied by a report in reasonable detail setting out:

- (a) the Latent Condition encountered and the respects in which it differs materially;
- (b) the additional Work and resources which the Contractor estimates to be necessary to deal with the Latent Condition;
- (c) the time the Contractor anticipates will be required to deal with the Latent Condition and the expected delay in achieving Practical Completion or any other date or milestone in the Program;
- (d) the Contractor's estimate of the cost of the measures necessary to deal with the Latent Condition; and
- (e) any other details reasonably required by the Superintendent.

25.3 Deemed Variation

The effect of the Latent Condition shall be a deemed Variation, priced having no regard to additional cost incurred more than 28 days before the date on which the Contractor gave the notice required by the first paragraph of subclause 25.2. The parties agree that the Contractor is only entitled to its direct additional costs for Latent Conditions.

26. Setting out the Works

26.1 Setting out

The Principal shall ensure that the Superintendent gives the Contractor the data, Survey Marks and like information necessary for the Contractor to set out The Works, together with those Survey Marks specified in the Contract. Thereupon the Contractor shall set out The Works in accordance with the Contract.

26.2 Errors in setting out

The Contractor shall rectify every error in the position, level, dimensions or alignment of any WUC after promptly notifying the Superintendent and unless the Superintendent within 3 days directs otherwise.

If the error was caused by incorrect data, Survey Marks or information given by the Superintendent, the cost incurred by the Contractor in rectifying the error shall be assessed by the Superintendent and added to the Contract Sum.

26.3 Care of Survey Marks

The Contractor shall keep in their true positions all Survey Marks supplied by the Superintendent.

The Contractor shall reinstate any Survey Mark disturbed, after promptly notifying the Superintendent and unless the Superintendent within 3 days directs otherwise.

If the disturbance was caused by a person referred to in subclause 24.2 other than the Contractor, the cost incurred by the Contractor in reinstating the Survey Mark shall be assessed by the Superintendent and added to the Contract Sum.

27. Cleaning up

The Contractor shall keep the Site and WUC clean and tidy and regularly remove rubbish and surplus material.

Within 14 days after the Date of Practical Completion, the Contractor shall remove Temporary Works and Construction Plant. The Superintendent may extend the time to enable the Contractor to perform remaining obligations.

If the Contractor fails to comply with the preceding obligations in this Clause, the Superintendent may direct the Contractor to rectify the non-compliance and the time for rectification.

If:

- (a) the Contractor fails to comply with such a Direction; and
- (b) that failure has not been made good within 5 days after the Contractor receives written notice from the Superintendent that the Principal intends to have the subject Work carried out by others,

the Principal may have that Work so carried out and the Superintendent shall certify the cost incurred as moneys due from the Contractor to the Principal. The rights given by this paragraph are additional to any other rights and remedies.

28. Materials, labour and Construction Plant

Except where the Contract otherwise provides, the Contractor shall supply everything necessary for the proper performance of the Contractor's obligations and discharge of the Contractor's liabilities.

In respect of any materials, machinery or equipment to be supplied by the Contractor in connection with the Contract, the Superintendent may direct the Contractor to:

- (a) supply particulars of the mode and place of manufacture, the source of supply, the performance capacities and other related information; and
- (b) arrange reasonable inspection at such place or sources by the Superintendent, the Principal and persons authorised by the Principal.

The Superintendent may give the Contractor a written Direction not to remove materials or Construction Plant from the Site. Thereafter the Contractor shall not remove them without the Superintendent's prior written approval (which shall not be unreasonably withheld).

The Contractor must ensure all materials, machinery and equipment used on the Site complies with all relevant Legislative Requirements, codes of practice and Australian Standards.

28A Warranty Requirements

28A.1 Special Warranty Requirements

The Contractor shall deliver to the Superintendent before Practical Completion, Deeds of Warranty in the form set out in Annexure Part H:

- (a) from the Subcontractors;
- (b) in respect of the items or Work,

as described or identified in Item 26A or elsewhere in the Contract (Special Warranties).

28A.2 Other Obligations Preserved

The Contractor agrees that the requirement for or provision of Special Warranties (on any terms) shall not limit, restrict or affect in any way the obligations, warranties or liabilities of the Contractor under or in connection with the Contract (including as to the rectification of defects during the Defects Liability Period).

28A.3 Other Warranties

The Contractor agrees that despite any other provision of the Contract, where a Subcontractor, manufacturer or supplier offers a warranty on goods, materials, workmanship or labour, in addition to or on terms more favourable to the Principal than those required by the Contract, such additional warranties shall be provided to the Principal by the Contractor at no cost and expense to the Principal prior to Practical Completion.

28B Training and instruction

If the Contractor is required to provide any training or instruction to the Superintendent, the Principal or employees or contractors of the Principal in connection with the Works, the Contractor shall ensure that all training or instruction is:

- (a) carried out by suitably qualified and skilled persons who are familiar with the operation, use and maintenance of the plant, equipment or services;
- (b) carried out in accordance with the requirements of the Contract and in accordance with all applicable Legislative Requirements and all applicable Australian Standards and applicable industry codes of practice; and
- (c) provide the training and instruction prior to Practical Completion being achieved.

29. Quality

29.1 Quality of material and Work

Unless otherwise provided, the Contractor shall use suitable new materials in conformity with their description, of merchantable quality and fit for the purpose or purposes for which they are used and proper and tradesmanlike workmanship.

Where the Contract or any Direction by the Principal or Superintendent:

- (a) nominates or describes (by a proprietary or brand name, model number or other specific means) any material or component to be used in connection with WUC; or
- (b) nominates or describes the design, manufacturer or place of manufacture for any material, component or sub-assembly to be used in connection with WUC,

then:

- (c) such nomination or description shall in no way relieve, limit or exclude any of the Contractor's obligations or liabilities under or in connection with the Contract; and
- (d) the Contractor shall obtain the prior written consent of the Superintendent to any change to or deviation from such nomination or description.

29.2 Quality assurance

If the Contract elsewhere requires further quality assurance, the Contractor shall plan, establish and maintain a conforming quality system; and ensure that the Superintendent has access to the quality system of the Contractor, as well as any similar systems maintained by Consultants and Subcontractors so as to enable monitoring and quality auditing.

Any such quality system shall be used only as an aid to achieving compliance with the Contract and to document such compliance. Such system shall not discharge the Contractor's other obligations under the Contract.

29.3 Defective Work

If the Superintendent becomes aware of Work done (including material provided) by the Contractor which does not comply with the Contract, the Superintendent shall as soon as practicable give the Contractor written details thereof. If the subject Work has not been rectified,

the Superintendent may direct the Contractor to do any one or more of the following (including times for commencement and completion):

- (a) remove the material from the Site;
- (b) demolish the Work;
- (c) redesign, reconstruct, replace or correct the Work; and
- (d) not deliver it to the Site.

If:

- (a) the Contractor fails to comply with such a Direction; and
- (b) that failure has not been made good within 8 days after the Contractor receives written notice from the Superintendent that the Principal intends to have the subject Work rectified by others,

the Principal may have that Work so rectified and the Superintendent shall certify the cost incurred as moneys due from the Contractor to the Principal.

29.4 Acceptance of defective Work

Instead of a Direction pursuant to subclause 29.3, the Superintendent may direct the Contractor that the Principal elects to accept the subject Work, whereupon there shall be a deemed Variation.

In assessing the adjustment to be made to the Contract Sum following the Variation the Superintendent may have regard to:

- (a) the reduction in the value of the Works resulting from that acceptance or Variation; and
- (b) the costs which would have been incurred by the Contractor in rectifying the subject Work if it had not been accepted or the Variation had not been directed.

29.5 Timing

The Superintendent may give a Direction pursuant to this Clause at any time before the expiry of the last Defects Liability Period.

29.6 Rights of Principal Regarding Defects

The Contractor agrees:

- (a) no progress certificate or payment, test or failure to test, approval or acceptance by the Superintendent or Principal in respect of any WUC prejudice the exercise by the Superintendent of his or her powers under this Clause 29; and
- (b) the powers of the Superintendent under this Clause 29 do not prejudice or otherwise affect any other rights of the Superintendent or Principal in respect of defective Work.

30. Examination and testing

30.1 Tests

At any time before the expiry of the last Defects Liability Period, the Superintendent may direct that any WUC be tested. The Contractor shall give such assistance and samples and make accessible such parts of WUC as may be directed by the Superintendent.

30.2 Covering up

The Superintendent may direct that any part of WUC shall not be covered up or made inaccessible without the Superintendent's prior written Direction.

30.3 Who conducts

Tests shall be conducted as provided elsewhere in the Contract or by the Superintendent or a person (which may include the Contractor) nominated by the Superintendent.

30.4 Notice

The Superintendent or the Contractor (whichever is to conduct the Test) shall give reasonable written notice to the other of the date, time and place of the Test. If the other does not attend, the Test may nevertheless proceed.

30.5 Delay

Without prejudice to any other right, if the Contractor or the Superintendent delays in conducting a Test, the other, after giving reasonable written notice of intention to do so, may conduct the Test.

30.6 Completion and results

On completion of the Tests, the Contractor shall make good WUC so that it fully complies with the Contract.

Results of Tests shall be promptly made available by each party to the other and to the Superintendent.

Where the Contract or the Superintendent requires any Test of any material or WUC, receipt by the Superintendent of an engineering certificate (approved by the Superintendent) and the result of that test showing to the Superintendent's satisfaction that the relevant material or WUC has been carried out and are in accordance with the Contract shall, unless the Superintendent otherwise agrees, be a condition precedent to the Contractor being entitled to make any Claim for payment, or receive any payment for such material or WUC at any time.

30.7 Costs

Costs in connection with Testing pursuant to this Clause shall be borne by the Principal except where the Contract otherwise provides or the Test is consequent upon, or reveals a failure of the Contractor to comply with the Contract (including this Clause).

30.7A Results of Tests

A satisfactory inspection or Test of any part of The Works or WUC by the Superintendent or the Principal shall not constitute evidence of the Contractor having satisfactorily complied with the Contract, and shall not prejudice or relieve the Contractor from any of its obligations or liabilities under or in connection with the Contract.

31. Working hours

If the working hours and working days on the Site are not stated in Item 26B of Annexure Part A, they shall be as notified by the Superintendent to the Contractor before commencement of Work on Site. They shall not be varied without the Superintendent's prior written approval, except when, in the interests of safety of persons or property, the Contractor finds it necessary to carry out WUC otherwise, whereupon the Contractor shall give the Superintendent written notice of those circumstances as early as possible.

32. Programming

The Superintendent shall give to the Contractor the information, materials, documents and instructions by the times or within the periods both stated in Item 27.

The Contractor shall give the Superintendent reasonable advance notice of when the Contractor needs other information, materials, documents or instructions from the Superintendent or the Principal.

The Principal and the Superintendent shall not be obliged to give any information, materials, documents or instructions earlier than the Principal or the Superintendent, as the case may be, should reasonably have anticipated at the Date of Acceptance of Tender.

The Superintendent may direct in what order and at what time the various stages or portions of WUC shall be carried out. If the Contractor can reasonably comply with the Direction, the Contractor shall do so. If the Contractor cannot reasonably comply, the Contractor shall give the Superintendent written notice of the reasons.

A Program is a written statement showing the dates by which, or the times within which, the various stages or portions of WUC are to be carried out or completed. It does not form part of the Contract.

The Contractor shall revise the Program on at least a monthly basis and whenever it is more than 14 days behind the current Program.

The Superintendent may direct the Contractor to give the Superintendent a Program within the time and in the form directed.

The Contractor shall not, without reasonable cause, depart from a Program.

If compliance with any such Directions under this Clause, except those pursuant to the Contractor's default, causes the Contractor to incur more or less cost than otherwise would have been incurred had the Contractor not been given the Direction, the difference shall be assessed by the Superintendent and added to or deducted from the Contract Sum.

The Program may be used by the Superintendent to evaluate claims for extension of time under Clause 34.

Despite the definition of 'Direction', a direction by the Superintendent under this Clause 32 shall refer only to a direction in writing given by the Superintendent which expressly states that it is a direction given to the Contractor for the purposes of Clause 32 and otherwise there is no entitlement to the Contractor to make a Claim.

No Direction as to use of nor any other comment or Direction by the Superintendent regarding the suitability of or any change to any Program or revised Program submitted under the Contract shall:

- (a) relieve, limit or exclude any of the Contractor's liabilities or obligations under the Contract, including its obligations to execute the WUC to Practical Completion by the Date for Practical Completion and its responsibility for all planning, scheduling, sequences, methods and techniques necessary for the due performance of its obligations under the Contract;
- (b) constitute a Direction to accelerate, disrupt, prolong or vary any or all of the Contractor's activities or the WUC or any part of it;
- (c) constitute the granting of an EOT for Practical Completion or a determination in relation to any application for an EOT for Practical Completion; or
- (d) affect the time for performance by the Principal or the Superintendent of any of their obligations or oblige either of them to do anything earlier than is necessary to enable the Contractor to bring the WUC to Practical Completion by the date for Practical Completion.

33. Suspension

33.1 Superintendent's suspension

The Superintendent may direct the Contractor to suspend the carrying out of the whole or part of WUC for such time as the Superintendent thinks fit, if the Superintendent is of the opinion that it is necessary:

- (a) because of an act, default or omission of:
 - (i) the Superintendent, the Principal or its employees, consultants, agents or other Contractors (not being employed by the Contractor); or
 - (ii) the Contractor, a Consultant, a Subcontractor or the employees or agents of any of them;
- (b) for the protection or safety of any person or property; or
- (c) to comply with a court order.

The Superintendent may also direct the Contractor to suspend the carrying out of the whole or part of the WUC under this Clause if required by the Principal for its convenience, for such time as the Superintendent thinks fit.

33.2 Contractor's suspension

If the Contractor wishes to suspend the carrying out of the whole or part of WUC, otherwise than pursuant to subclause 39.9 or pursuant to the rights under the Security of Payment Act, the

Contractor shall obtain the Superintendent's prior written approval. The Superintendent may approve the suspension and may impose conditions of approval.

The Contractor shall not be entitled to any EOT in connection with a suspension approved by the Superintendent under this Clause.

33.3 Recommencement

As soon as the Superintendent becomes aware that the reason for any suspension no longer exists, the Superintendent shall direct the Contractor to recommence suspended WUC as soon as reasonably practicable.

The Contractor may recommence WUC suspended pursuant to subclause 33.2 or 39.9 at any time after reasonable notice to the Superintendent.

33.4 Cost

Any cost, expense, loss or damage (including delay and disruption costs) incurred by the Contractor by reason of any suspension under this Clause shall be borne by the Contractor but if:

- (a) the suspension is directed by the Superintendent or the Principal; and
- (b) the suspension has been directed by the Superintendent or Principal:
 - (i) for the convenience of the Principal; or
 - (ii) as a result of an act or omission of the Principal, the Superintendent or an employee, consultant or agent of the Principal which does not arise from or in connection with:
 - (A) any industrial dispute affecting the Site or the employees of the Principal; or
 - (B) circumstances which are beyond the reasonable control of the Principal; and
- (c) the suspension causes the Contractor to incur more or less cost than otherwise would have been incurred but for the suspension,

the difference in cost shall be assessed by the Superintendent and added to or deducted from the Contract Sum, as the case may be.

34. Time and progress

34.1 Progress

The Contractor shall ensure that WUC reaches Practical Completion by the Date for Practical Completion.

34.2 Notice of delay

If the Contractor becomes aware of anything which will probably cause delay to WUC, the Contractor must promptly give the Superintendent and the Principal written notice of that cause and the estimated delay.

34.3 Claim

The Contractor shall be entitled to such extension of time for carrying out WUC (including reaching Practical Completion) as the Superintendent assesses (**EOT**), only if:

- (a) the Contractor is or will be delayed in reaching Practical Completion by a Qualifying Cause of Delay;
- (b) the delay has caused a delay to activities on the critical path shown in the Program;
- (c) the Contractor gives the Superintendent, within 10 Business Days of when the Contractor should reasonably have become aware of that causation occurring, a written claim for an EOT which includes a clear statement, by reference to the activities in the Program required under Clause 32, including:
 - (i) a detailed statement of the facts on which the Claim is based;
 - (ii) a comparison of the planned and as-executed critical path at the time when the delay occurred;
 - (iii) identification of the activities effects to the Contractor's progress, including details of the steps the Contractor has taken to anticipate, avoid and mitigate the effect of the qualifying cause of delay; and
 - (iv) the number of days claimed as an EOT.

If the Contractor fails to give notice within the period required by this Clause, the Contractor has no Claim arising out of or in connection with the event or events that have caused delay.

If further delay results from a Qualifying Cause of Delay evidenced in a claim under paragraph (c) of this subclause, the Contractor shall claim an EOT for such delay by promptly giving the Superintendent a written claim evidencing the facts of that delay and in any event within 14 days of the expiry of the period of delay set out in any prior Claim under subclause 34.4 being exceeded.

34.4 Assessment

When both non-qualifying and Qualifying Causes of Delay overlap, the Contractor shall not be entitled to an EOT in respect of the overlapping period of delay.

In assessing each EOT the Superintendent shall disregard whether the Contractor can accelerate, but shall have regard to what prevention and mitigation of the delay has been effected by the Contractor and whether the activity affected lies on the critical path of the WUC.

34.5 Extension of time

Within 28 days after receiving the Contractor's claim for an EOT, the Superintendent shall give to the Contractor and the Principal a written Direction evidencing the EOT so assessed.

A failure by the Superintendent to grant an EOT, or to grant an EOT within 28 days shall not:

- (a) cause the Date for Practical Completion to be set at large;
- (b) be a deemed assessment and Direction for an EOT as claimed; or
- (c) prejudice any Claim of the Contractor in relation to the EOT.

The Superintendent may at any time and from time to time before issuing the Final Certificate grant an EOT:

- (d) whether or not the Contractor has given notice of a claim for an EOT;
- (e) whether or not the Contractor is entitled to an EOT; or
- (f) where the Contractor has given notice of and applied for an EOT and the Superintendent has either rejected the claim or failed to make a determination within the time required by this Clause.

The preceding paragraph operates for the benefit of the Principal and the Contractor shall not be entitled to an additional payment or to make any Claim because of the granting of such EOT. The Superintendent is not required to exercise its discretion under this Clause for the benefit of the Contractor.

If the Contractor fails to dispute an assessment of an EOT by the Superintendent within 20 Business Days of receipt of the written Direction evidencing the EOT so assessed, the Contractor shall be deemed to have irrevocably accepted the assessment directed and shall not be entitled to an EOT (other than the EOT assessed) or to any other Claim in connection with the event or events that have caused delay.

34.6 Practical Completion

The Contractor shall give the Superintendent at least 14 days written notice of the date upon which the Contractor anticipates that Practical Completion will be reached.

When the Contractor is of the opinion that Practical Completion has been reached, the Contractor shall in writing request the Superintendent to issue a Certificate of Practical Completion. Within 14 days after receiving the request, the Superintendent shall give the Contractor and the Principal either a Certificate of Practical Completion evidencing the Date of Practical Completion or written reasons for not doing so.

If the Superintendent is of the opinion that Practical Completion has been reached, the Superintendent may issue a Certificate of Practical Completion even though no request has been made.

34.7 Liquidated damages

If WUC does not reach Practical Completion by the Date for Practical Completion, the Superintendent shall certify, as due and payable to the Principal, liquidated damages in Item 29 for every day after the Date for Practical Completion to and including the earliest of the Date of Practical Completion or termination of the Contract or the Principal taking WUC out of the hands of the Contractor. The Superintendent when issuing a certificate pursuant to subclause 37.2(b) may include a provisional assessment of the amount then due as liquidated damages.

If an EOT is directed after the Contractor has paid or the Principal has set off liquidated damages, the Principal shall forthwith repay to the Contractor such of those liquidated damages as represent the days the subject of the EOT.

The payment of liquidated damages shall not relieve the Contractor from its obligation to complete The Works.

The parties acknowledge and agree that all sums payable by the Contractor to the Principal pursuant to this subclause 34.7 are a genuine pre estimate of the damages likely to be suffered

by the Principal if The Works do not reach Practical Completion by the Date for Practical Completion.

34.8 Not used

34.9 Delay damages

For every day the subject of an EOT for a Compensable Cause and for which the Contractor gives the Superintendent a claim for delay costs pursuant to subclause 41.1, costs certified by the Superintendent under subclause 41.3 shall be due and payable to the Contractor.

The Contractor's delay costs shall be calculated:

- (a) at the rate stated in Item 32A of Annexure Part A; or
- (b) if there is no rate in Item 32A of Annexure Part A, as assessed by the Superintendent.

Any delay costs paid by the Principal to the Contractor shall be in full satisfaction of the Contractor's entitlements arising from the event of delay and the Contractor agrees that the payment of any delay costs by the Principal will be a full release and discharge of any Claim resulting from such event of delay.

34.9A Acceleration

Where:

- (a) a claim for an EOT to the Date for Practical Completion has been made to the Superintendent in accordance with the requirements of this Contract and the Superintendent has made a determination that the Contractor is entitled to an EOT but the Principal wishes to bring the Date for Practical Completion forward to an earlier date; or
- (b) for any reason the Principal considers that the Date for Practical Completion should be brought forward to an earlier date,

then the Superintendent may require the Contractor to submit within 7 days, or such longer period as may be directed, a proposal which sets out the manner in which the Contractor proposes to perform The Works to achieve an earlier Date for Practical Completion than the Date for Practical Completion together with details of any additional costs which will be incurred by the Contractor (**Acceleration Proposal**).

The Superintendent will consider the Acceleration Proposal as soon as practicable after its receipt and issue a Direction to the Contractor which either:

- (c) adopts the Acceleration Proposal and changes the Date for Practical Completion of the Works to the new date shown in the Acceleration Proposal; or
- (d) does not alter any Date for Practical Completion and rejects the Acceleration Proposal.

Where an Acceleration Proposal approved by the Superintendent requires the payment of additional costs by the Principal, the amount of such additional costs (if not otherwise agreed) will be valued by the Superintendent under subclause 37.4 and the Contractor will have or make no other Claim.

Any acceleration of The Works by the Contractor prior to receipt by the Contractor of written approval of the Acceleration Proposal from the Superintendent will not affect the Contract Sum and the Contractor will not have or make any Claim.

The Contractor shall have no Claim arising from any acceleration unless it receives a written direction from the Superintendent pursuant to this Clause.

35. Defects liability

The Defects Liability Period stated in Item 32 shall commence on the Date of Practical Completion at 4:00 pm.

The Contractor shall carry out rectification at times and in a manner causing as little inconvenience to the occupants or users of The Works as is reasonably possible.

As soon as possible after the Date of Practical Completion, the Contractor shall rectify all Defects existing at the Date of Practical Completion.

During the Defects Liability Period, the Superintendent may give the Contractor a Direction to rectify a Defect which:

- (a) shall identify the Defect and the date for completion of its rectification; and
- (b) may state a date for commencement of the rectification and whether there shall be a separate Defects Liability Period therefor (not exceeding that in Item 32, commencing at 4:00 pm on the date the rectification is completed and governed by this clause).

If the rectification is not commenced or completed by the stated dates, the Principal may have the rectification carried out by others but without prejudice to any other rights and remedies the Principal may have. The cost thereby incurred shall be certified by the Superintendent as moneys due and payable to the Principal.

36. Variations

36.1 Directing Variations

The Contractor shall not vary WUC except as directed in writing.

The Superintendent, before the Date of Practical Completion, may direct the Contractor to vary WUC by any one or more of the following which is nevertheless of a character and extent contemplated by, and capable of being carried out under, the provisions of the Contract (including being within the warranties in subclause 2.2):

- (a) increase, decrease or omit any part;
- (b) change the character or quality;
- (c) change the levels, lines, positions or dimensions;
- (d) carry out additional Work;
- (e) demolish or remove material or Work no longer required by the Principal.

If the Superintendent directs a Variation omitting any part or all of the WUC, the Principal will not be in breach of this Contract if it thereafter either performs this omitted Work or employs or engages another person to carry out and execute the omitted Work. The Work which has been

omitted shall be valued under subclause 36.4 and the Contractor shall have no other Claim of any nature against the Principal.

Where the provision of an item is deemed by the Superintendent to be necessary for the normal, safe working, operation or protection of The Works or the Site, it will not be a Variation to the Contract.

Despite the definition of Direction, a direction by the Superintendent under this Clause shall refer only to a direction in writing given by the Superintendent which expressly states it is a direction given to the Contractor for the purposes of this Clause and otherwise there is no entitlement to the Contractor to make a Claim.

36.2 Proposed Variations

The Superintendent may give the Contractor written notice of a proposed Variation.

The Contractor shall as soon as practicable after receiving such notice, notify the Superintendent whether the proposed Variation can be effected, together with, if it can be effected, the Contractor's estimate of the:

- (a) effect on the Program (including the Date for Practical Completion); and
- (b) cost (including all warranties and time-related costs, if any) of the proposed Variation.

The Superintendent may direct the Contractor to give a detailed quotation for the proposed Variation supported by measurements or other evidence of cost.

The Contractor shall have no Claim against the Principal for complying with the requirements of this subclause 36.2.

36.3 Variations for convenience of Contractor

If the Contractor requests the Superintendent to direct a Variation for the convenience of the Contractor, the Superintendent may do so. The Direction shall be written and may be conditional. Unless the Direction provides otherwise, the Contractor shall be entitled to neither extra time nor extra money.

36.4 Pricing

The Superintendent shall, as soon as possible, price each Variation using the following order of precedence:

- (a) prior agreement;
- (b) applicable rates or prices in the Contract;
- (c) rates or prices in a Schedule of Rates or schedule of prices, even though not Contract documents, to the extent that it is reasonable to use them; and
- (d) reasonable rates or prices, which shall include a reasonable amount for profit and overheads,

and any deductions shall include a reasonable amount for profit but not overheads.

That price shall be added to or deducted from the Contract Sum.

If the Contractor fails to dispute the price determined by the Superintendent within 20 Business Days of receipt of the written Direction of the determination, the Contractor shall be deemed to have irrevocably accepted the determination directed and shall not be entitled to any Claim (other than the price of the variation so determined) in connection with the event or events that resulted in the variation.

For the avoidance of doubt, the Contractor may only Claim in connection with a valuation which is to be made under this subclause 36.4, subject to and in accordance with this Contract (including subclauses 36.1 and 41 if applicable), as part of a Progress Claim.

36.4A Notification of Variations

Despite any other provision of the Contract, if the Superintendent at any time gives the Contractor a Direction which the Contractor believes involves a Variation (other than a Direction which the Superintendent expressly acknowledges in writing involves a Variation) the Contractor must notify the Superintendent of:

- (a) the fact that the Contractor believes the Direction involves a Variation; and
- (b) the Contractor's estimate of the additional Work necessary to give effect to the Variation (including additional time and cost),

within 5 Business Days after receipt by the Contractor of the Direction and, unless the Superintendent directs otherwise before the Contractor gives effect to the Direction, failing which the Contractor shall not be entitled to an EOT, adjustment to the Contract Sum or any other Claim in connection with the variation or the Superintendent's Direction.

36.4B No Variation

Despite any other provision of the Contract, the Contractor shall not be entitled to any Claim, if a Variation results from:

- (a) a defect in the WUC;
- (b) any WUC not in accordance with the Contract;
- (c) the Contractor otherwise being in breach of the Contract; and
- (d) any negligent or wilful act or omission of the Contractor, its Subcontractors and Consultants and their respective employees, contractors or agents.

37. Payment

37.1 Progress claims

The Contractor shall claim payment progressively in accordance with Item 33.

An early Progress Claim shall be deemed to have been made on the date for making that claim.

Each Progress Claim shall be given in writing to the Superintendent and shall include details of the value of WUC done and may include details of other moneys then due to the Contractor pursuant to provisions of the Contract.

A claim for payment of any nature arising out of or in connection with the Contract must be in the form of a Progress Claim.

37.1A Further Conditions for Payment Claims, Certificates, Calculations and Time for Payment

In addition to subclause 37.1:

- (a) if the time for delivery of any Progress Claim or payment of any claim under subclause 37.1 falls due on a day that is not a Business Day, the claim may be delivered or the payment made on the next Business Day;
- (b) the Contractor shall not submit Progress Claims more frequently than at the times specified in Item 33;
- (c) if the Contractor lodges a Progress Claim:
 - (i) earlier than at the times specified in Item 33; or
 - (ii) which does not include all the information or evidence required by the Contract,the Superintendent shall not be obliged to issue the Progress Certificate in respect of that Progress Claim earlier than it would have been obliged had the Contractor submitted the Progress Claim in accordance with the Contract;
- (d) if the Superintendent requests further information or evidence about a Progress Claim, the Superintendent shall not be obliged to issue a Progress Certificate until the later of 10 Business Days after the further information or evidence is received by it or the expiry of the period specified in subclause 37.2;
- (e) despite the amount certified by the Superintendent as payable by the Principal under any Progress Certificate, the Principal shall not be obliged to pay any amount which relates to an unliquidated claim for damages by the Contractor; and
- (f) the Contractor shall submit with each Progress Claim a completed statutory declaration in the form set out in Annexure Part J.

The issue of a payment schedule under the Security of Payment Act will not in any way waive, affect or alter the rights of the Superintendent to assess a Progress Claim under this Clause nor affect or alter the right of the Principal to refer to dispute a decision of the Superintendent under this Clause.

37.2 Certificates

The Superintendent shall, within the Response Period after receiving such a Progress Claim, issue to the Principal and the Contractor:

- (a) a Progress Certificate evidencing the Superintendent's opinion of the moneys due from the Principal to the Contractor pursuant to the Progress Claim and reasons for any difference (**Progress Certificate**); and
- (b) a certificate evidencing the Superintendent's assessment of retention moneys and moneys due from the Contractor to the Principal pursuant to the Contract.

If the Contractor does not make a Progress Claim in accordance with Item 33, the Superintendent may issue the Progress Certificate with details of the calculations and shall issue the certificate in paragraph (b).

Subject to Clause 37.1A the Principal shall within 5 Business Days after receiving both such certificates, or within 15 Business Days after the Superintendent receives the Progress Claim,

pay to the Contractor the balance of the Progress Certificate after setting off such of the certificate in paragraph (b) as the Principal elects to set off. If that setting off produces a negative balance, the Contractor shall pay that balance to the Principal within 5 Business Days of receiving written notice thereof.

Neither a Progress Certificate nor a payment of moneys shall be evidence that the subject WUC has been carried out satisfactorily. Payment other than Final Payment shall be payment on account only.

At any time and from time to time, the Superintendent may by a further certificate correct any error which has been discovered in any previous certificate, other than a certificate of Practical Completion or Final Certificate

Without limiting the above or any other part of the Contract, at the time of each claim for payment and of any payments made under the Contract and at any other time, the Superintendent (in consultation with the Contractor if requested by the Principal) may undertake a reconciliation of payments made to date and of any adjustments to those payments, and the Superintendent may give further notice of approval, non approval or adjustment to any prior or subsequent claim for payment or payment certificate.

37.3 Unfixed plant and materials

The Principal shall not be liable to pay for unfixed plant and materials unless they are listed in Item 34 and the Contractor:

- (a) provides the additional Security in Item 14(e); and
- (b) satisfies the Superintendent that the subject plant and materials have been paid for, properly stored and protected, and labelled the property of the Principal.

Upon payment to the Contractor and the release of any additional Security in paragraph (a), the subject plant and materials shall be the unencumbered property of the Principal.

37.4 Final Payment Claim and Certificate

Within 28 days after the expiry of the last Defects Liability Period, the Contractor shall give the Superintendent a written Final Payment Claim endorsed 'Final Payment Claim' being a Progress Claim together with all other claims whatsoever in connection with the subject matter of the Contract.

Within the Response Period after the expiry of the last Defects Liability Period, the Superintendent shall, subject to Clause 37.4A issue to both the Contractor and the Principal a Final Certificate evidencing the moneys finally due and payable between the Contractor and the Principal on any account whatsoever in connection with the subject matter of the Contract.

Those moneys certified as due and payable shall be paid by the Principal or the Contractor, as the case may be, within 7 days after the debtor receives the Final Certificate.

The Final Certificate shall be conclusive evidence of accord and satisfaction, and in discharge of each party's obligations in connection with the subject matter of the Contract except for:

- (a) fraud or dishonesty relating to WUC or any part thereof or to any matter dealt with in the Final Certificate;

- (b) any Defect or omission in The Works or any part thereof which was not apparent at the end of the last Defects Liability Period, or which would not have been disclosed upon reasonable inspection at the time of the issue of the Final Certificate;
- (c) any accidental or erroneous inclusion or exclusion of any Work or figures in any computation or an arithmetical error in any computation; and
- (d) unresolved issues the subject of any notice of Dispute pursuant to Clause 42, served before the 7th day after the issue of the Final Certificate.

37.4A Release, Indemnity and Waiver

Upon receiving from the Contractor the Final Payment Claim in accordance with subclause 37.4, the Superintendent shall after the expiration of the Defects Liability Period provide the Contractor with a Deed of Release and Waiver in the form included in Annexure Part I completed by the Superintendent with the appropriate details.

The Contractor must sign and return it to the Superintendent.

The return by the Contractor to the Superintendent of the completed Deed of Release and Waiver shall be a condition precedent to:

- (a) the issue of the Final Certificate pursuant to subclause 37.4; and
- (b) the release to the Contractor of any Security pursuant to this Contract.

37.5 Interest

Interest in Item 35 shall be due and payable after the date of default in payment.

37.6 Other moneys due

The Principal may elect that moneys due and owing otherwise than in connection with the subject matter of the Contract also be due to the Principal pursuant to the Contract.

37.6A Set offs by Principal

Without limiting the Principal's rights under any other provision in the Contract, and notwithstanding the provisions of or the issue of a certificate by the Superintendent under subclauses 37.2 and 37.4, the Principal may deduct from any moneys due to the Contractor any sum which is payable by the Contractor to the Principal whether or not the Principal's right to payment arises by way of damages, debt, restitution or otherwise and whether or not the factual basis giving rise to the Principal's right to payment arises out of this Contract, any other contract, or is independent of any contract. If the moneys payable by the Contractor are insufficient to discharge the liability of the Contractor to pay such sum to the Principal, the Principal may, subject to subclause 5.2, have recourse to retention moneys and, if they are insufficient, then to Security under the Contract. Nothing in this Clause shall affect the right of the Principal to recover from the Contractor the whole of such moneys or any balance that remains owing.

37B GST

37B.1 Definitions

The words 'GST', 'Input Tax Credit', 'Joint Venture Operators', 'Progressive or Periodic Supply', 'Recipient', 'Representative Member', 'Supplier', 'Taxable Supply' and 'Tax Invoice' have the meaning given to them in the GST Act.

37B.2 GST exclusive

Except under this Clause, the consideration for a Supply made under or in connection with the Contract does not include GST.

37B.3 Taxable Supply

If a Supply made under or in connection with the Contract is a Taxable Supply, then at or before the time any part of the consideration for the Supply is payable:

- (a) the Recipient must pay the Supplier an amount equal to the total GST for the Supply, in addition to and in the same manner as the consideration otherwise payable under the Contract for that Supply; and
- (b) the Supplier must give the Recipient a Tax Invoice for the Supply.

37B.4 Later GST change

For clarity, the GST payable under Clause 37B.3 is correspondingly increased or decreased by any subsequent adjustment to the amount of GST for the Supply for which the Supplier is liable, however caused.

37B.5 Reimbursement or indemnity

If either party has the right under the Contract to be reimbursed or indemnified by another party for a cost incurred in connection with the Contract, that reimbursement or indemnity excludes any GST component of that cost for which an Input Tax Credit may be claimed by the party being reimbursed or indemnified, or by its Representative Member, Joint Venture Operator or other similar person entitled to the Input Tax Credit (if any).

37B.6 Warranty that Tax Invoice is issued regarding a Taxable Supply

Where a Tax Invoice is given by the Supplier, the Supplier warrants that the Supply to which the Tax Invoice relates is a Taxable Supply and that it will remit the GST (as stated on the Tax Invoice) to the Australian Taxation Office.

37B.7 Progressive or Periodic Supplies

Where a Supply made under or in connection with the Contract is a Progressive or Periodic Supply, Clause 37B.3 applies to each component of the Progressive or Periodic Supply as if it were a separate Supply.

38. Payment of workers, Consultants and Subcontractors

38.1 Workers, Consultants and Subcontractors

The Contractor shall give in respect of a Progress Claim, documentary evidence of the payment of moneys due and payable to:

- (a) workers of the Contractor and of the Subcontractors;
- (b) Consultants; and
- (c) Subcontractors,

in respect of WUC the subject of that claim.

If the Contractor is unable to give such documentary evidence, the Contractor shall give other documentary evidence of the moneys so due and payable to workers, Consultants and Subcontractors.

Documentary evidence, except where the Contract otherwise provides, shall be to the Superintendent's satisfaction and shall include:

- (d) a statutory declaration in the form set out in Annexure Part J by the Contractor attesting that:
 - (i) the Contractor has paid all of its Subcontractors all that is due and payable to them up to the date of submission by the Contractor of a Progress Claim in respect of the WUC;
 - (ii) all its workers and Subcontractors who at any time have been engaged on the WUC by the Contractor have been paid, in accordance with any relevant award or Industrial Agreement, all monies due and payable to them up to the date of submission by the Contractor of a Progress Claim in respect of their engagement on the WUC; and
 - (iii) the Contractor is solvent and is not subject to an act of insolvency as defined by subclause 39.11;
- (e) a statutory declaration in the form set out in Annexure Part J by any Subcontractor attesting that:
 - (i) all workers who have been engaged by the Subcontractor have been paid, in accordance with a relevant award or managed due and payable to them up to the date of submission by the Contractor of a Progress Claim in respect of their engagement on the WUC; and
 - (ii) all subcontractors (including consultants) of the Subcontractor have been paid all that is due and payable to them up to the date of submission by the Contractor of a Progress Claim in respect of the WUC; and
- (f) reasonable supporting documentary evidence of the matters contained above.

38.2 Withholding payment

Subject to the next paragraph, the Principal may withhold moneys certified due and payable in respect of the Progress Claim until the Contractor complies with subclause 38.1.

The Principal shall not withhold payment of such moneys in excess of the moneys evidenced pursuant to subclause 38.1 as due and payable to workers, Consultants and Subcontractors.

38.3 Direct payment

Before Final Payment, the Principal, if not aware of a relevant relation-back day (as defined in the *Corporations Act 2001* (Cth)) may pay unpaid moneys the subject of subclause 38.1 directly to a worker, Consultant or Subcontractor where:

- (a) permitted by law;
- (b) given a court order in favour of the worker, Consultant or Subcontractor; or
- (c) requested in writing by the Contractor.

Such payment and a payment made to a worker, Consultant or Subcontractor in compliance with a Legislative Requirement shall be deemed to be part-satisfaction of the Principal's obligation to pay pursuant to subclause 37.2 or 37.4, as the case may be.

39. Default or insolvency

39.1 Preservation of other rights

If a party breaches (including repudiates) the Contract, nothing in this clause shall prejudice the right of the other party to recover damages or exercise any other right or remedy.

39.2 Contractor's default

If the Contractor commits a substantial breach of the Contract, the Principal may, by hand or by registered post, give the Contractor a written notice to show cause.

Substantial breaches include, but are not limited to:

- (a) failing to:
 - (i) perform properly the Contractor's Design Obligations;
 - (ii) provide Security;
 - (iii) provide evidence of insurance;
 - (iv) comply with a Direction of the Superintendent pursuant to subclause 29.3; or
 - (v) use the materials or standards of Work required by the Contract;
- (b) wrongful suspension of Work;
- (c) substantial departure from a Program without reasonable cause or the Superintendent's approval;
- (d) where there is no Program, failing to proceed with due expedition and without delay;
- (e) breach of any warranty in this Contract;
- (f) failing to lodge a Deed of Guarantee and Indemnity in breach of subclause 5.6;
- (g) failing to comply with Clause 11A;
- (h) failure to observe and comply with a Legislative Requirement relevant to the Works;

- (i) providing statutory declaration or documentary evidence required under the Contract, or a statement or record of payment which is false, misleading or deceptive in any respect;
- (j) failing to provide a statutory declaration required under the Contract; and
- (k) failing to comply with or breaching in any respect the requirements of Clause 44.

39.3 Principal's notice to show cause

A notice under subclause 39.2 shall state:

- (a) that it is a notice under Clause 39 of these General Conditions;
- (b) the alleged substantial breach;
- (c) that the Contractor is required to show cause in writing why the Principal should not exercise a right referred to in subclause 39.4;
- (d) the date and time by which the Contractor must show cause (which shall not be less than 7 clear days after the notice is received by the Contractor); and
- (e) the place at which cause must be shown.

39.4 Principal's rights

If the Contractor fails to show reasonable cause by the stated date and time, the Principal may by written notice to the Contractor:

- (a) take out of the Contractor's hands the whole or part of the Work remaining to be completed and suspend payment until it becomes due and payable pursuant to subclause 39.6; or
- (b) terminate the Contract.

Upon giving a notice under subclause 39.2, the Principal may suspend payments to the Contractor until the earlier of:

- (c) the date upon which the Contractor shows reasonable cause; or
- (d) the date which is 7 days after the last date for showing cause in the notice under subclause 39.2.

If the Principal exercises the right under subclause 39.4(a), the Contractor shall not be entitled to any further payment in respect of the Work taken out of the hands of the Contractor unless payment becomes due to the Contractor under subclause 39.6.

The Contractor agrees that the Principal may determine in its absolute discretion whether the Contractor has failed to show reasonable cause why the Principal should not exercise a right referred to in subclause 39.4 (for the purposes of subclause 39.4).

39.5 Take out

The Principal shall complete or procure the completion of Work taken out of the Contractor's hands and may:

- (a) use materials, equipment and other things intended for WUC; and

- (b) without payment of compensation to the Contractor:
- (i) take possession of, and use, such of the Construction Plant and other things on or in the vicinity of the Site or on or in the vicinity of any land in addition to the Site procured by the Contractor pursuant to subclause 24.1B as were used by the Contractor;
 - (ii) contract with such of the Consultants and Subcontractors; and
 - (iii) take possession of, and use, such of the Design Documents,
- as are reasonably required by the Principal to facilitate completion of the WUC taken out.

If the Principal takes possession of Construction Plant, Design Documents or other things, the Principal shall maintain them and, subject to subclause 39.6, on completion of the Work taken out, shall return such of them as are surplus.

The Superintendent shall keep records of the cost of completing the Work taken out.

39.6 Adjustment on completion of Work taken out

When Work taken out of the Contractor's hands has been completed, the Superintendent shall assess the cost and damages thereby incurred or suffered by the Principal arising from the Contractor's breach and shall certify as moneys due and payable accordingly the difference between those costs (showing the calculations therefore) and the amount which would otherwise have been paid to the Contractor if the Work had been completed by the Contractor.

If the Contractor is indebted to the Principal, the Principal may retain Construction Plant or other things taken under subclause 39.5 until the debt is satisfied. If after reasonable notice, the Contractor fails to pay the debt, the Principal may sell the Construction Plant or other things and apply the proceeds to the satisfaction of the debt and the costs of sale. Any excess shall be paid to the Contractor.

39.7 Principal's default

If the Principal commits a substantial breach of the Contract, the Contractor may, by hand or by registered post, give the Principal a written notice to show cause.

Substantial breaches are:

- (a) failing to:
- (i) provide Security;
 - (ii) produce evidence of insurance;
 - (iii) rectify inadequate Contractor's access to the Site if that failure continues for longer than the time stated in Item 36(a);
 - (iv) rectify inadequate Contractor's possession of the Site if that failure continues for longer than the time stated in Item 36(b); or
 - (v) make a payment due and payable pursuant to the Contract provided that payment is not the subject of a dispute under Clause 42; and

- (b) the Superintendent not giving a Certificate of Practical Completion or reasons as referred to in subclause 34.6.

39.8 Contractor's notice to show cause

A notice given under subclause 39.7 shall state:

- (a) that it is a notice under Clause 39 of these General Conditions;
- (b) the alleged substantial breach;
- (c) that the Principal is required to show cause in writing why the Contractor should not exercise a right referred to in subclause 39.9;
- (d) the date and time by which the Principal must show cause (which shall not be less than 7 clear days after the notice is received by the Principal); and
- (e) the place at which cause must be shown.

39.9 Contractor's rights

If the Principal fails to show reasonable cause by the stated date and time, the Contractor may, by written notice to the Principal, suspend the whole or any part of WUC.

The Contractor shall remove the suspension if the Principal remedies the breach.

The Contractor may, by written notice to the Principal, terminate the Contract, if within 28 days of the date of suspension under this subclause the Principal fails:

- (a) to remedy the breach; or
- (b) if the breach is not capable of remedy, to make other arrangements to the reasonable satisfaction of the Contractor.

Damages suffered by the Contractor by reason of the suspension shall be assessed by the Superintendent, who shall certify them as moneys due and payable to the Contractor.

39.10 Termination

If the Contract is terminated pursuant to subclause 39.4(b) or 39.9, the parties' remedies, rights and liabilities shall be the same as they would have been under the law governing the Contract had the defaulting party repudiated the Contract and the other party elected to treat the Contract as at an end and recover damages.

If the Principal has terminated the Contract, the Principal may also, without payment of compensation, take possession of the Design Documents.

39.11 Insolvency

If:

- (a) a party makes a statement, or conducts itself in a manner, from which it may reasonably be deduced that the person is insolvent;
- (b) a person stops or suspends payment of all or a class of its debts, or threatens to stop or suspend payment of all or a class of its debts;

- (c) the Contractor is seeking, or makes a statement, or conducts itself in a manner, from which it may reasonably be deduced that it is seeking, to take advantage of safe harbour against insolvent trading available under Division 3, Part 5.7B of the *Corporations Act 2001* (Cth);
- (d) a party informs the other in writing, or creditors generally, that the party is insolvent or is financially unable to proceed with the Contract;
- (e) execution is levied against a party by a creditor;
- (f) a party is an individual person or a partnership including an individual person, and if that person:
 - (i) commits an act of bankruptcy;
 - (ii) has a bankruptcy petition presented against him or her or presents his or her own petition;
 - (iii) is made bankrupt;
 - (iv) makes a proposal for a scheme of arrangement or a composition; or
 - (v) has a deed of assignment or deed of arrangement made, accepts a composition, is required to present a debtor's petition, or has a sequestration order made, under Part X of the *Bankruptcy Act 1966* (Cth) or like provision under the law governing the Contract; or
- (g) the Contractor is a corporation and:
 - (i) notice is given of a meeting of creditors with a view to:
 - (A) the corporation entering a deed of company arrangement or placing the corporation into external administration pursuant to Chapter 5 of the *Corporations Act 2001* (Cth);
 - (B) it becomes an externally administered body as defined in section 9 of the *Corporations Act 2001* (Cth);
 - (ii) a controller or administrator is appointed;
 - (iii) an application is made to a court for its winding up and not stayed within 14 days;
 - (iv) a winding up order is made in respect of it;
 - (v) it resolves by special resolution that it be wound up voluntarily (other than for a member's voluntary winding up); or
 - (vi) a mortgagee of any of its property takes possession of that property; or
 - (vii) any event analogous to any of the above events occurs,then, where the other party is:
 - (A) the Principal, the Principal may, without giving a notice to show cause, exercise the right under subclause 39.4(a); or
 - (B) the Contractor, the Contractor may, without giving a notice to show cause, exercise the right under subclause 39.9.

The rights and remedies given by this subclause are additional to any other rights and remedies. They may be exercised notwithstanding that there has been no breach of contract.

39.11A Modern Slavery

If the Contractor breaches the Modern Slavery Laws then the Principal may, without giving a notice to show cause, exercise the rights under subclauses 39.4(a) or 39.4(b).

39.11B Principal may remedy Contractor's breach

In addition to any other rights of the Principal, the Principal may perform or have others perform at the Contractor's cost any obligation of the Contractor which the Contractor has failed to perform after reasonable notice from the Principal requiring such performance and the moneys paid under this Clause will be a debt due from the Contractor to the Principal.

39.11C Statutory declaration

The Contractor agrees that:

- (a) at any time, the Superintendent may request that the Contractor provides a completed and signed statutory declaration (in a form and containing such detail as reasonably required by the Superintendent) from a representative of the Contractor who is in a position to know the facts confirming that the Contractor is solvent, not subject to any act of insolvency as defined by subclause 39.11 and is not seeking to take advantage of the safe harbour against insolvent trading available under Division 3, Part 5.7B of the *Corporations Act 2001* (Cth); and
- (b) the Contractor must provide such completed and signed statutory declaration within 2 Business Days of the request from the Superintendent.

39.11D Termination not valid

- (a) If the Principal terminates, or purports to terminate, under Clause 39 or otherwise at law and it is subsequently held to be invalid, void or otherwise unenforceable then the Principal will be deemed to have terminated for convenience under Clause 40A as at the same date and time as the original notice of termination.
- (b) The Contractor waives any Claim it has or would have had, but for this subclause 39.11C, arising out of or in connection with any termination, or purported termination, by the Principal under Clause 39 or otherwise at law being subsequently held to be invalid, void or otherwise unenforceable.

40. Termination by frustration

If the Contract is frustrated:

- (a) the Superintendent shall issue a Progress Certificate for WUC carried out to the date of frustration, evidencing the amount which would have been payable had the Contract not been frustrated and had the Contractor been entitled to and made a Progress Claim on the date of frustration;

- (b) the Principal shall pay the Contractor:
 - (i) the amount due to the Contractor evidenced by all unpaid certificates;
 - (ii) the cost of materials and equipment reasonably ordered by the Contractor for WUC and which the Contractor is liable to accept, but only if they will become the Principal's property upon payment; and
 - (iii) the costs reasonably incurred:
 - (A) removing Temporary Works and Construction Plant;
 - (B) returning to their place of engagement the Contractor, Consultants, Subcontractors and their respective employees engaged in WUC at the date of frustration; and
 - (C) by the Contractor in expectation of completing WUC and not included in any other payment; and
- (c) each party shall promptly release and return all Security provided by the other.

40A Termination for Convenience

40A.1 Notice of Termination

At any time and for any reason (including to contract with a third party for the whole or part of The Works) the Principal may by written notice terminate this Contract in respect of any part, or the whole, of the Works.

40A.2 Contractor's Obligations

Upon receipt of a notice of termination in accordance with subclause 40A.1, the Contractor shall immediately:

- (a) cease the part, or the whole, of The Works, as the case requires; and
- (b) comply with any Directions by the Superintendent, including to the extent directed to:
 - (i) protect property in the possession of the Contractor which the Principal has or may acquire an interest;
 - (ii) remove from the Site persons, Construction Plant, materials and other things which are not required by the Principal;
 - (iii) assign to the Principal or its nominee all rights and benefits under contracts with third parties;
 - (iv) do all things necessary in cooperation with the Principal and the subcontractors concerned to arrange that the Subcontractor's contracts be novated to the Principal; and
 - (v) provide the Principal with possession of all materials and other things on the Site or off-Site which are required for the Works or for incorporation in the Works.

The Principal may also take possession of the Site and of such things on or in the vicinity of the Site as are owned by the Contractor and are reasonably required to facilitate completion of The Works.

40A.3 Termination Payments

Subject to the Principal's rights under or in connection with the Contract, including without limitation the rights to withhold or set off payment and recovery of damages, following a termination for convenience, the Principal shall:

- (a) if the Contractor:
 - (i) is subject to an act of insolvency as defined in subclause 39.11;
 - (ii) has not provided a statutory declaration in accordance with subclause 39.11C; or
 - (iii) has provided a statutory declaration which the Contractor is required to provide in accordance with the Contract and such statements are determined by the Principal (acting reasonably) to be untrue, false or misleading (as applicable),

the Principal shall not be required to make further payment to the Contractor; or

- (iv) in all other circumstances pay the Contractor:
 - (A) for Work executed prior to the date of termination, the amount which would have been payable if the termination had not occurred and the Contractor had made a claim for payment on the date of termination;
 - (B) the cost of materials reasonably ordered by the Contractor for the Works, which the Contractor cannot return or use elsewhere and is legally liable to accept, but only if the materials become the property of the Principal or its nominee upon payment;
 - (C) the applicable contractual payment due to the Contractor for any Work properly performed after the termination;
 - (D) to the extent that paragraph (iii) does not apply, the reasonable direct costs of complying with any directions given by the Superintendent upon, or subsequent to, termination; and
 - (E) return any Security,

and the Principal shall not otherwise be liable to the Contractor for any cost, loss, expense or damage incurred by the Contractor as a consequence of, or in connection with, the Contract, the Works, or the termination and the Contractor otherwise may make no Claim.

41. Notification of claims

41.1 Communication of claims

The Prescribed Notice is a written notice of a Claim specifying:

- (a) that it is a Claim made pursuant to Clause 41;

- (b) the legal basis for the Claim, whether based on a term of the Contract or otherwise, and if based on a term of the Contract, clearly identifying the specific term;
- (c) the facts relied upon in support of the Claim in sufficient detail to permit verification and assessment; and
- (d) details of the quantum of the Claim in all cases showing the basis of the calculations.

This subclause and subclause 41.3 shall not apply to any Claim, including a claim for payment (except for claims which would, other than for this subclause, have been included in the Final Payment Claim), the communication of which is required by another provision of the Contract.

41.2 Liability for failure to communicate

If the Contractor does not:

- (a) give to the Principal and the Superintendent a Prescribed Notice of a Claim to which subclause 41.1 applies within 10 Business Days of the Contractor first becoming aware of the circumstances giving rise to the Claim; or
- (b) give to the Superintendent in accordance with the requirements of the Contract any Claim or notice required or contemplated to be communicated by a provision of the Contract (other than subclause 41.1) either:
 - (i) within the time specified by the Contract; or
 - (ii) if no time is specified, within 10 Business Days of the Contractor first becoming aware of the circumstances giving rise to the Claim or notice,

the Principal shall not be liable in connection with the Claim or to any Claim arising from those circumstances and the Contractor shall be absolutely barred from proceeding with such Claim or any Claim arising from those circumstances.

For the avoidance of doubt, if the Contractor does not make any Claim for an EOT within the time specified in subclause 34.3, the Contractor shall not be entitled to an EOT.

41.3 Superintendent's decision

If within 15 Business Days of giving the Prescribed Notice the party giving it does not notify the other party and the Superintendent of particulars of the Claim, the Prescribed Notice shall be deemed to be the Claim.

Within 40 Business Days of receipt of the Prescribed Notice the Superintendent shall assess the Claim and notify the parties in writing of the decision. Unless a party within a further 15 Business Days of such notification gives a notice of Dispute under subclause 42.1 which includes such decision, the Superintendent shall certify the amount of that assessment to be moneys then due and payable.

41.4 No other payments

Where the Contractor is expressly entitled to submit a claim (other than a Progress Claim under Clause 37) or notice of claim (or similar) during the Contract:

- (a) the relevant document submitting or notifying the claim:
 - (i) must not be in the form of (and is not) an invoice; and

- (ii) is not a document requesting payment, or notifying an obligation on the Principal to make any payment, of the amount submitted or notified; and
- (b) the Principal's liability for, and payment to the Contractor of, the amount submitted or notified is expressly dealt with in accordance with the Contract.

42. Dispute resolution

42.1 Notice of Dispute

If a difference or Dispute (together called a 'Dispute') between the parties arises in connection with the subject matter of the Contract, including a Dispute concerning:

- (a) a Superintendent's Direction; or
- (b) a Claim:
 - (i) in tort;
 - (ii) under statute;
 - (iii) for restitution based on unjust enrichment or other quantum meruit; or
 - (iv) for rectification or frustration,

or like Claim available under the law governing the Contract,

then either party shall, by hand or by registered post, give the other and the Superintendent a written notice of Dispute adequately identifying and providing details of the Dispute.

Notwithstanding the existence of a Dispute, the parties shall, subject to Clauses 39 and 39.11A and subclause 42.4, continue to perform the Contract.

42.2 Conference

Within 10 Business Days after receiving a notice of Dispute, the parties shall confer at least once to resolve the Dispute or to agree on methods of doing so. At every such conference each party shall be represented by a person having authority to agree to such resolution or methods. All aspects of every such conference except the fact of occurrence shall be privileged.

If the Dispute has not been resolved within 28 days of service of the notice of Dispute, the parties may proceed to litigation.

42.3 Not used

42.4 Summary relief

Nothing herein shall prejudice the right of a party to institute proceedings to enforce payment due under the Contract or to seek injunctive or urgent declaratory relief.

43. Waiver of conditions

Except as provided at law or in equity or elsewhere in the Contract, none of the terms of the Contract shall be varied, waived, discharged or released, except with the prior written consent of the parties.

Without in any way limiting the last preceding paragraph or the operation or effect of the notification provisions in Clause 41:

- (a) no failure to exercise and no delay in exercising, on the part of the Principal or the Superintendent, of any right, remedy or power under this Contract shall operate as a waiver of that right, remedy or power;
- (b) no single or partial excuse, on the part of the Principal or the Superintendent, of any right, remedy or power under this Contract shall preclude any other or further exercise of that or any other right, remedy or power;
- (c) no waiver by the Principal or the Superintendent of any right, remedy or power on any particular occasion shall operate as a waiver by the Principal or the Superintendent of that right, remedy or power or preclude any other or further exercise of that right, remedy or power on any other occasion; and
- (d) no relaxation by the Principal or the Superintendent of any requirement of the Contract (including a requirement to comply with a time limit, a notice provision or a condition precedent) on any particular occasion shall operate as a relaxation or waiver by the Principal or the Superintendent of that requirement in respect of any other occasion.

44. Project Trusts

- (a) This Clause 44 will apply only to the extent that:
 - (i) Chapter 2 of the Security of Payment Act applies to the Contract; or
 - (ii) the Principal advises the Contractor that it applies to the Contract (including in Item 37A).
- (b) If this Clause 44 applies pursuant to subclause 44(a), then the Contractor:
 - (i) agrees to comply with all the obligations of a “Trustee” pursuant to Chapter 2 of the Security of Payment Act;
 - (ii) agrees to:
 - (A) promptly upon establishing of a project trust account in accordance with Chapter 2 of the Security of Payment Act, and upon request by the Principal, provide to the Principal documentary evidence, to the reasonable satisfaction of the Principal, of the Contractor’s compliance with subparagraph (b)(i) of this Clause;
 - (B) without limiting subparagraph (A) provide all documentation which the Contractor is required to provide to the Principal under Chapter 2 of the Security of Payment Act (including as may be prescribed by any regulations in connection with Chapter 2 of the Security of Payment Act; and
 - (C) provide all assistance to the Principal reasonably necessary for Principal to comply with its obligations under Chapter 2 of the Security of Payment Act;
 - (iii) warrants the accuracy of the information provided by the Contractor to the Principal pursuant to this Clause;

- (iv) in relation to the information provided by the Contractor to the Principal pursuant to this Clause, agrees to notify the Principal of any change to the information provided or circumstances which give rise to that information otherwise becoming incomplete, outdated or inaccurate;
- (v) agrees that it will not, by any act or omission, do anything that would cause the Principal to be in breach of Chapter 2 of the Security of Payment Act;
- (vi) allow the Principal (or a nominated auditor) to undertake, an audit of the Contractor's records to ensure that all information provided by the Contractor is complete and accurate and the Contractor must cooperate with the Principal or its nominated the auditor in performing its functions under this Clause;
- (vii) to the extent permitted by law, agrees to indemnify the Principal for all loss or liability suffered or incurred by the Principal arising from or in connection with the Contractor's failure to comply with this Clause or the Principal's exercise of its rights or obligations under the Security of Payment Act as a consequence of the Contractor's failure to comply with this Clause or the Security of Payment Act; and
- (viii) agrees that despite any other provision of the Contract, the Principal may make payments due to the Contractor under the Contract by making those payments in accordance with the Security of Payment Act.

44A Termination

- (a) Notwithstanding anything else in the Contract to the contrary or which would otherwise limit the operation of this paragraph (including termination of the Contract), in the event of termination of the Contract for any reason, the Contractor is entitled to make a single Progress Claim in accordance with subclause 37.1 (whether or not the Contractor has satisfied the Claim Preconditions which would otherwise apply in respect of that Progress Claim) on and from the termination date, such termination date being considered a 'reference date' for the purposes of the Security of Payment Act (**Termination Reference Date**).
- (b) For the avoidance of doubt, nothing prevents the Superintendent or the Principal setting off or withholding any amount arising out of, or in connection with, a failure of the Contractor to satisfy any Claim Precondition, where such failure is also a breach of this Contract or results in any other claim of the Principal against the Contractor.
- (c) The Contractor may only include in the Progress Claim contemplated by this Clause 44A (such claim to be assessed in accordance with the Contract, including being subject to Clause 41), any amount which is due and payable to the Contractor under the Contract in respect of WUC properly undertaken prior to or on the Termination Reference Date.
- (d) Unless instructed by the Principal to act otherwise, the Superintendent must not assess any other amounts and the Principal shall have no obligation to pay another amounts, including additional amounts contemplated under either Clause 39 or Clause 40A, until such time as the Progress Claim contemplated by this Clause 44A has been made and assessed in a Progress Certificate by the Superintendent (or the time for making such a Progress Claim has elapsed under the Security of Payment Act).

- (e) The parties acknowledge and agree that where the Contract is terminated for any reason the Termination Reference Date will be the sole and final 'reference date' under the Security of Payment Act to survive beyond termination.
- (f) At any time following a termination, including after the submission and assessment of any Progress Claim contemplated by this Clause 44A, the Principal may request the Superintendent to issue a Progress Certificate, including to assess any amounts owing either to the Principal from the Contractor, or to the Contractor from the Principal, as the case may be.
- (g) Within 15 Business Days of receipt of such a request, the Superintendent must issue a Progress Certificate to the Principal and the Contractor. Any amount owing under the Progress Certificate must be paid by the Contractor to the Principal, or the Principal to the Contractor, as the case may be, within 15 Business Days of the date of the Progress Certificate.
- (h) Without limitation, the provisions of subclauses 11D.3 and 37.1A apply to the Progress Claim contemplated by this Clause 44A and in issuing the Progress Certificate contemplated under this Clause 44A the Superintendent must also have regard to the principles under subclauses 11D.3 and 37.1A.

45. COVID-19 Emergency

- (a) The parties agree that this Clause 45 applies despite any other provision of the Contract to the contrary and applies only with respect to impact on the WUC of the COVID-19 Emergency.
- (b) For the purposes of this Clause, 'COVID-19 Emergency' has the meaning given in s 315 of the *Public Health Act 2005* (Qld), namely 'the public health emergency declared by the Minister on 29 January 2020 under s 319(2), as extended and also refers to any similar emergency or state of affairs declared or existing in any other jurisdiction, whether in Australia or otherwise, to the extent relating to the 'COVID-19' virus.
- (c) The Principal, Superintendent or both (as the case may require) may by notice to the Contractor (expressly referring to COVID-19 Emergency):
 - (i) extend any period of time permitted, allowed or required under the Contract for the Principal or Superintendent to perform any function or obligation under the Contract in response to the impacts of COVID-19 Emergency;
 - (ii) direct a suspension under subclause 33.1 arising out of, or in connection with, COVID-19 Emergency;
 - (iii) direct a Variation under subclause 36.1, to the extent a Variation would impact only the methodology or performance of WUC (as opposed to the final form of The Works) arising out of or in connection with COVID-19 Emergency;
 - (iv) give a Direction which alters or restricts access to the Site; or
 - (v) take any other action permitted under this Contract, arising out of or in connection with COVID-19 Emergency,

and, to the extent the Superintendent or Principal gives such a Direction or takes such action then Clause 45(e) applies.

- (d) To the extent a change in Legislative Requirement within the meaning of subclause 11.2 has arisen out of or in connection with COVID-19 Emergency, then Clause 45(e) applies.
- (e) Where this Clause 45(e) applies then:
 - (i) without limiting the discretion provided under Clause 45(e)(ii), if the Contractor is delayed due to COVID-19 Emergency, then to the extent the Contractor cannot mitigate, avoid or otherwise overcome the impacts of COVID-19 Emergency through careful planning complying with best industry practice of the industry, it may submit a Claim under subclause 34.3. The Contractor's sole entitlement to Claim shall be an EOT;
 - (ii) the Principal may, without any obligation to do so, and in its absolute discretion, by further notice to the Contractor, permit an adjustment to the Contract Sum, as assessed by the Superintendent under subclause 36.4, to allow the Contractor compensation for:
 - (A) any reasonable additional direct costs, necessarily incurred by the Contractor in demobilisation and remobilisation from the Site; and
 - (B) any reasonable additional direct costs, necessarily incurred by the Contractor in implementing additional emergency measures to facilitate the continuation of the WUC in a manner which avoids, mitigates or overcomes the impacts of COVID-19 Emergency,and in order to assist the Principal or Superintendent, the Contractor must provide all information requested to substantiate any costs incurred and take all steps necessary to mitigate such costs; and
 - (iii) where more than one event causes overlapping delays and the cause of at least one of those events, but not all of them, arises out of or in connection with this Clause 45, then to the extent that the delays are overlapping, the Contractor agrees this Clause 45(e) applies (and it will not be entitled to any other Claim in connection with that other cause of delay).

46. Modern Slavery

- (a) The Principal is a reporting entity as defined in the Modern Slavery Laws. In the conduct of its activities, and in managing its supply chain, the Contractor and each of the Contractor's officers, employees, agents and Subcontractors (**Contractor's Personnel**) must not breach or cause the Principal to be in breach of the provisions of the *Modern Slavery Act 2018* (Cth).
- (b) The Contractor warrants that, in performing its obligations in connection with this Contract, the Contractor and each of the Contractor's Personnel:
 - (i) shall hold themselves to the highest ethical standards;
 - (ii) comply with the Modern Slavery Laws;
 - (iii) will not engage in any activity, practice or conduct that would contravene the Modern Slavery Laws;

- (iv) do all things required or necessary to mitigate or reduce Modern Slavery risks in its operations and supply chains and remain compliant with the Modern Slavery Laws;
 - (v) promptly notify the Principal as soon as it becomes aware of a potential, suspected or actual breach by the Contractor or any of the Contractor's Personnel of the Modern Slavery Laws in connection with this Contract;
 - (vi) will cooperate in good faith with the Principal in investigating circumstances relevant to any potential, suspected or actual breach of the Modern Slavery Laws; and
 - (vii) will implement due diligence procedures for its Subcontractors' suppliers and other participants in its supply chains to ensure that there is no activity, practice or conduct that would contravene the Modern Slavery Laws in its supply chains.
- (c) The Contractor represents and warrants that at the date of this Contract:
- (i) the Contractor and the Contractor's Personnel have not been convicted of or committed any offence under the Modern Slavery Laws or been involved or connected with Modern Slavery or human trafficking, or are the subject of any investigation, inquiry or enforcement proceedings by any government department or municipal, public or statutory authority or any local government **(Authority)** in connection with any offence or alleged offence under the Modern Slavery Laws;
 - (ii) the Contractor and the Contractor's Personnel will not engage in any activity, practice or conduct which may involve human trafficking, slavery and slavery-like practices, forced labour, the sale or exploitation of children, debt-bonded labour or other exploitative practices, either directly or indirectly; and
 - (iii) if the Contractor and/or the Contractor's Personnel are investigated, convicted of or commit any offence under the Modern Slavery Laws or are involved in or connected with Modern Slavery or human trafficking, or are the subject of any investigation, inquiry or enforcement proceedings by any Authority or other governmental, administrative or regulatory body in connection with any offence or alleged offence under the Modern Slavery Laws during the term of the Contract, they will notify the Principal in writing immediately.
- (d) The Contractor indemnifies the Principal against any Claims, losses, liabilities, charges, costs or expenses, including legal fees, incurred by, or awarded against, the Principal which arises out of or in connection with any breach of the Modern Slavery Laws in respect of this Contract.

47. INTENTIONALLY LEFT BLANK

Annexure Part A

This Annexure shall be completed and issued as part of the tender documents and, subject to any amendments to be incorporated into the Contract, is to be attached to the General Conditions of Contract and shall be read as part of the Contract.

Item		
1	Principal (Clause 1)	Central Queensland University ABN 39 181 103 288
2	Principal's address	554-700 Yaamba Road, North Rockhampton, Queensland 4701 Phone Click or tap here to enter text. Fax Click or tap here to enter text.
3	Contractor (Clause 1)	To be confirmed following Tender Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text.
4	Contractor's address	To be confirmed following Tender Click or tap here to enter text. Phone Click or tap here to enter text.
5	Superintendent (Clause 1)	William Glasby (Central Queensland University)
6	Superintendent's address	554-700 Yaamba Road, North Rockhampton, Queensland 4701 Phone 0472 996 799
7	(a) Date for Practical Completion (Clause 1)	See Separable Portions.
	OR	
	(b) Period of time for Practical Completion (Clause 1)	See Separable Portions.
	Guidance note: If applicable, delete and instead complete equivalent Item (7) in the Annexure Part A — Separable Portions	
8	Governing law	Queensland

Item		
	(Clause 1(h))	If nothing stated, that of the jurisdiction where the Site is located
9	(a) Currency	Australian Dollars
	(Clause 1(g))	If nothing stated, that of the jurisdiction where the Site is located
	(b) Place for payments	Click or tap here to enter text.
	(Clause 1(g))	If nothing stated, the Principal's address
	(c) Place of business of bank	Click or tap here to enter text.
	(Clause 1(d))	If nothing stated, the place nearest to where the Site is located
10	The Principal's Project Requirements are described in the following documents (Clause 1)	1. Preliminary Design (if included in Item 11). 2. Appendix A – Scope of Requirements and Specifications 3. Appendix C - CQU Design Standards Manual 4. Click or tap here to enter text. 5. Click or tap here to enter text.
11	Preliminary Design (Clause 1)	(a) A Preliminary Design is included in the Principal's Project Requirements. If neither selected, a Preliminary Design is not included (b) The Preliminary Design documents are: 1. Appendix D 2. Click or tap here to enter text. 3. Click or tap here to enter text. 4. Click or tap here to enter text. 5. Click or tap here to enter text.
12	Quantities in Schedule of Rates, limits of accuracy (subclause 2.5)	Not applicable
13	Provisional Sum, percentage for profit and attendance	To be confirmed following Tender Click or tap here to enter text. %

Item		
	(Clause 3))	
14	Contractor's Security	
	(a) Form (Clause 5)	See Separable Portions.
	(b) Amount or maximum percentage of Contract Sum (Clause 5)	See Separable Portions.
	(c) If retention moneys, percentage of each Progress Certificate (Clause 5 and subclause 37.2)	See Separable Portions.
	(d) Time for provision (except for retention moneys) (Clause 5)	See Separable Portions.
	(e) Additional Security for unfixed plant and materials (subclauses 5.4 and 37.2)	See Separable Portions.
	(f) Contractor's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	See Separable Portions.
	Guidance note: If applicable, delete and instead complete equivalent Item (14) in the Annexure Part A — Separable Portions	
15	Principal's Security	
	(a) Form (Clause 5)	Not applicable

Item			
	(b) Amount or maximum percentage of Contract Sum (Clause 5)	Nil	
	(c) Time for provision (Clause 5)	Not applicable	
	(d) Principal's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	Not applicable	
	(e) The period of notice required of a party's intention to have recourse to retention moneys and/or to convert security (subclause 5.2)	Not applicable.	
	Guidance note: If applicable, delete and instead complete equivalent Item (15) in the Annexure Part A — Separable Portions		
15A	Deed of Guarantee and Indemnity (subclause 5.6)	To be confirmed following Tender Subclause 5.6 Choose an item.	
16	Principal-supplied documents (subclause 8.2)	Document	No. of copies
		1. Principal's Project Requirements	1 - Electronic
		2. Click or tap here to enter text.	List
		3. Click or tap here to enter text.	List
		4. Click or tap here to enter text.	List
		5. Click or tap here to enter text.	List
		If nothing stated, 5 copies	
16A	Principal-supplied information which the Contractor can rely upon (subclause 8.2A)	None.	

Item				
17	Documents, numbers of copies, and the times or stages at which they are to be supplied by the Contractor (subclause 8.3)	Document	No. of copies	Time/stage
		1. As-Built drawings in PDF and AutoCAD format (including shop and construction details)	1	Prior to PC
		2. All approvals, permits, ITPs	1	Prior to PC
		3. Operation and maintenance manuals (O&M) for all services, equipment and general maintenance of the buildings	1	Prior to PC
		4. Commissioning Documentation for all services, equipment and materials	1	Prior to PC
		5. Material Safety Data Sheets (MSDS)	1	Prior to PC
		6. Training programmes / operations	1	Prior to PC
		7. Component / equipment data	1	Prior to PC
		8. Mechanical and Electrical Asset Management Plan	1	Prior to PC
		9. Warranties and Certification for all services, equipment and materials.	1	Prior to PC
		10. Asset registers in CQU format	1	Prior to PC
		11. Click or tap here to enter text.	List	List
18	Time for Superintendent's Direction about documents (subclause 8.3)	Click or tap here to enter text. days If nothing stated, 14 days		
19	Subcontracting (subclause 9.2) To be confirmed following Tender	Work by Consultants	Work by others	
		Click or tap here to enter text.	Click or tap here to enter text.	
		Click or tap here to enter text.	Click or tap here to enter text.	
		Click or tap here to enter text.	Click or tap here to enter text.	
		Click or tap here to enter text.	Click or tap here to enter text.	
		Click or tap here to enter text.	Click or tap here to enter text.	

Item			
19A	Selected Subcontractors (subclause 9.3)	Selected Subcontractor	Selected Subcontract Work
		Thomson Adsett Pty Ltd ABN 76 105 314 654	Contractor's Design Obligations
		WSP	Engineering (Mechanical, Electrical, Hydraulic, Fire, Structural, Civil, Acoustic, Sustainability)
		Tract	Landscape Architecture
		VideoPro	Audio Visual Design
20	Novation (subclause 9.4)	Subcontractor, or Selected Subcontractor, as the case may be:	Particular part of the Preliminary Design or Selected Subcontract Work, as the case may be:
		Selected Subcontractor - Thomson Adsett Pty Ltd ABN 76 105 314 654	Preliminary Design
		Choose an item.	Click or tap here to enter text.
		Choose an item.	Click or tap here to enter text.
		Choose an item.	Click or tap here to enter text.
		Choose an item.	Click or tap here to enter text.
20A	Subcontractor Deed of Covenant (subclause 9.5A)	To be confirmed following Tender A Subcontractor Deed of Covenant is Choose an item. from the following: Click or tap here to enter text.	
	Guidance note: If it is required, list above the names of the relevant Subcontractors or, if the names are not known, describe the relevant Subcontract Works that they will be performing.		
21	Not used		
22	Legislative Requirements		
	(a) Those excepted (subclause 11.1 and 11.2A)	Nil. Click or tap here to enter text.	
	(b) Identified WUC (subclause 11.2(a)(iii))	Not applicable	

Item		
22A	Has Commonwealth funding been received for the project?	No
22B	Any other Claim Preconditions	To be confirmed following Tender Choose an item.
23	Insurance of The Works (Clause 16A)	
	(a) Alternative applying	Alternative 1
	If Alternative 1 applies	
	(b) Provision for demolition and removal of debris	Click or tap here to enter text. \$Click or tap here to enter amount. OR 10% of the Contract Sum
	(c) Provision for Consultants' fees and Principal's consultants' fees	Click or tap here to enter text. OR 10% of the Contract Sum
	(d) Value of materials or things to be supplied by the Principal	Not applicable.
	(e) Additional amount or percentage	Click or tap here to enter text. \$Click or tap here to enter text. OR 10% of the total of (a) to (d) in Clause 16A
24	Professional indemnity insurance (Clause 16B and subclause 9.2(d))	
	(a) Levels of cover of Contractor's professional indemnity insurance shall be not less than	\$ 10,000,000
	(b) Period for which Contractor's professional indemnity insurance shall be maintained after issue of the Final Certificate	Click or tap here to enter text. If nothing stated, 6 years
	Category	Levels of cover

Item			
	(c) Categories of Consultants and levels of cover of Consultants' professional indemnity insurance	Design	\$ 10,000,000
		Click or tap here to enter text.	\$ List
		Click or tap here to enter text.	\$ List
		Click or tap here to enter text.	\$ List
		Click or tap here to enter text.	\$ List
		If nothing stated, \$1 000 000	
	(d) Period for which each Consultant's professional indemnity insurance shall be maintained after issue of the Final Certificate	Click or tap here to enter text. If nothing stated, 6 years	
25	Public liability insurance (Clause 17)		
	(a) Alternative applying	Alternative 1	
	If Alternative 1 applies		
	(b) Amount per occurrence shall be not less than	\$ 20,000,000	
25A	Superintendent's Representative (Clause 21)	Maddie Crigan (Central Queensland University)	
25B	Key Personnel	To be confirmed following Tender	
	(subclause 23.1)	Click or tap here to enter text.	
26	(a) Time for giving access (subclause 24.1)	Within 14 days of Date of Acceptance of Tender If nothing stated, 14 days	
	(b) Time for giving possession (subclause 24.1)	Within 21 days of 90% Design Approval by the Principal, or earlier at the Principal's discretion	
26A	Special Warranties	To be confirmed following Tender	
	(Clause 28A)	Click or tap here to enter text.	

Item			
26B	Working Hours (Clause 31)	6.30am – 6.30pm Monday to Friday Weekends by agreement with the Principal only	
27	The information, materials, documents or instructions and the times by, or periods within which they are to be given to the Contractor (Clause 32)	Documents or instructions	Times/Periods
		1. Click or tap here to enter text.	List
		2. Click or tap here to enter text.	List
		3. Click or tap here to enter text.	List
		4. Click or tap here to enter text.	List
		5. Click or tap here to enter text.	List
28	Not used.		
29	Liquidated damages, rate (subclause 34.7)	See Separable Portions.	
	Guidance note: If applicable, delete and instead complete equivalent Item (29) in the Annexure Part A — Separable Portions		
30	Bonus for early Practical Completion (subclause 34.8) Not used		
	(a) Rate	See Separable Portions.	
	(b) Limit	See Separable Portions.	
	Guidance note: If applicable, delete and instead complete equivalent Item (30) in the Annexure Part A — Separable Portions		
31	Other Compensable Causes (subclause 1(b) and subclause 34.9)	See Separable Portions.	
	Guidance note: If applicable, delete and instead complete equivalent Item (31) in the Annexure Part A — Separable Portions		
32	Defects Liability Period (Clause 35)	12 months	
32A	Delay Cost Rate	To be confirmed following Tender	

Item		
	(subclause 34.9)	Click or tap here to enter text. If nothing stated, 52 weeks
33	Progress Claims (subclause 37.1)	
	(a) Times for progress claims	25 th day of each month for WUC done to the last day of that month
	OR	
	(b) Stages of WUC for progress claims	Click or tap here to enter text.
34	Unfixed plant and materials for which payment claims may be made (subclause 37.3)	None.
35	Interest rate on overdue payments (subclause 37.4A)	The rate applicable under section 67P of the QBCC Act of, if s 67P of the QBCC Act does not apply, 3% above the annual rate published from time to time by the Reserve Bank of Australia for 90 day bills. If nothing stated, 18% per annum
36	(a) Time for Principal to rectify inadequate access (subclause 39.7(a)(iii))	Click or tap here to enter text.days If nothing stated, 14 days
	(b) Time for Principal to rectify inadequate possession (subclause 39.7(a)(iv))	Click or tap here to enter text.days If nothing stated, 14 days
37	Not used.	
37A	Has the Principal advised the Contractor that Chapter 2 of the Security of Payment Act applies? (Clause 44)	No

Annexure Part A — Separable Portions

	Separable Portion (Clause 1)	No. 1.1
	Description of Separable Portion (Clause 1)	New Trades Building (Building ROK092)
Item		
7	(a) Date for Practical Completion (Clause 1)	28 April 2028
	OR	
	(b) Period of time for Practical Completion (Clause 1)	Not applicable.
14	Contractor's Security	
	(a) Form (Clause 5)	Two unconditional undertakings (the form in Annexure Part B is approved) given by a financial institution approved by the Principal, each for 50% of the amount in Item 14(b).
	(b) Amount or maximum percentage value of this Separable Portion (Clause 5)	5% of the value of this Separable Portion. If nothing stated, 5% of value of this Separable Portion
	(c) If retention moneys, percentage of each Progress Certificate applicable to this Separable Portion (Clause 5 and subclause 37.2)	Not applicable. If nothing stated, 10%, until the limit in Item 14(b)
	(d) Time for provision (except for retention moneys) (Clause 5)	Within Click or tap here to enter text. days after Date of Acceptance of Tender If nothing stated, 28 days
	(e) Additional Security for unfixed plant and materials	The value of the unfixed plant and materials.

	(subclauses 5.4 and 37.3)	
	(f) Contractor's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	50% of amount held If nothing stated, 50% of amount held
15	Principal's Security	
	(a) Form (Clause 5)	Not applicable
	(b) Amount or maximum percentage of value of this Separable Portion (Clause 5)	Nil If nothing stated, nil
	(c) Time for provision (Clause 5)	Not applicable If nothing stated, 28 days
	(d) Principal's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	Not applicable If nothing stated, 50% of amount held
29	Liquidated damages, rate (subclause 34.7)	To be confirmed following Tender Click or tap here to enter text. per day \$ Click or tap here to enter text.per day
30	Bonus for early Practical Completion (subclause 34.8) Not used	
	(a) Rate	Not applicable.
	(b) Limit	Not applicable.
31	Other Compensable Causes (Clause 1(b) and subclause 34.9)	None.

	Separable Portion (Clause 1)	No. 1.2
	Description of Separable Portion (Clause 1)	Engineering Workshop relocation
Item		
7	(a) Date for Practical Completion (Clause 1)	25 September 2026
	OR	
	(b) Period of time for Practical Completion (Clause 1)	Not applicable.
14	Contractor's Security	
	(a) Form (Clause 5)	Two unconditional undertakings (the form in Annexure Part B is approved) given by a financial institution approved by the Principal, each for 50% of the amount in Item 14(b).
	(b) Amount or maximum percentage value of this Separable Portion (Clause 5)	5% of the value of this Separable Portion If nothing stated, 5% of value of this Separable Portion
	(c) If retention moneys, percentage of each Progress Certificate applicable to this Separable Portion (Clause 5 and subclause 37.2)	Not applicable. If nothing stated, 10%, until the limit in Item 14(b)
	(d) Time for provision (except for retention moneys) (Clause 5)	Within Click or tap here to enter text. days after Date of Acceptance of Tender If nothing stated, 28 days
	(e) Additional Security for unfixed plant and materials (subclauses 5.4 and 37.3)	The value of the unfixed plant and materials.

	(f) Contractor's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	50% of amount held If nothing stated, 50% of amount held
15	Principal's Security	
	(a) Form (Clause 5)	Not applicable
	(b) Amount or maximum percentage of value of this Separable Portion (Clause 5)	Nil If nothing stated, nil
	(c) Time for provision (Clause 5)	Not applicable If nothing stated, 28 days
	(d) Principal's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	Not applicable If nothing stated, 50% of amount held
29	Liquidated damages, rate (subclause 34.7)	To be confirmed following Tender Click or tap here to enter text. per day \$ Click or tap here to enter text.per day
30	Bonus for early Practical Completion (subclause 34.8) Not used	
	(a) Rate	Not applicable.
	(b) Limit	Not applicable
31	Other Compensable Causes (Clause 1(b) and subclause 34.9)	None.

	Separable Portion (Clause 1)	No. 2.1
	Description of Separable Portion (Clause 1)	Building 33 (ROK033)
Item		
7	(a) Date for Practical Completion (Clause 1)	7 May 2027
	OR	
	(b) Period of time for Practical Completion (Clause 1)	Not applicable.
14	Contractor's Security	
	(a) Form (Clause 5)	Two unconditional undertakings (the form in Annexure Part B is approved) given by a financial institution approved by the Principal, each for 50% of the amount in Item 14(b).
	(b) Amount or maximum percentage value of this Separable Portion (Clause 5)	5% of the value of this Separable Portion, If nothing stated, 5% of value of this Separable Portion
	(c) If retention moneys, percentage of each Progress Certificate applicable to this Separable Portion (Clause 5 and subclause 37.2)	Not applicable. If nothing stated, 10%, until the limit in Item 14(b)
	(d) Time for provision (except for retention moneys) (Clause 5)	Within Click or tap here to enter text. days after Date of Acceptance of Tender If nothing stated, 28 days
	(e) Additional Security for unfixed plant and materials (subclauses 5.4 and 37.3)	The value of the unfixed plant and materials.

	(f) Contractor's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	50% of amount held If nothing stated, 50% of amount held
15	Principal's Security	
	(a) Form (Clause 5)	Not applicable
	(b) Amount or maximum percentage of value of this Separable Portion (Clause 5)	Nil If nothing stated, nil
	(c) Time for provision (Clause 5)	Not applicable If nothing stated, 28 days
	(d) Principal's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	Not applicable If nothing stated, 50% of amount held
29	Liquidated damages, rate (subclause 34.7)	To be confirmed following Tender Click or tap here to enter text. per day \$ Click or tap here to enter text.per day
30	Bonus for early Practical Completion (subclause 34.8) Not used	
	(a) Rate	Not applicable.
	(b) Limit	Not applicable.
31	Other Compensable Causes (Clause 1(b) and subclause 34.9)	None.

	Separable Portion (Clause 1)	No. 2.2
	Description of Separable Portion (Clause 1)	Building 19 (ROK019)
Item		
7	(a) Date for Practical Completion (Clause 1)	16 July 2027
	OR	
	(b) Period of time for Practical Completion (Clause 1)	Not applicable.
14	Contractor's Security	
	(a) Form (Clause 5)	Two unconditional undertakings (the form in Annexure Part B is approved) given by a financial institution approved by the Principal, each for 50% of the amount in Item 14(b).
	(b) Amount or maximum percentage value of this Separable Portion (Clause 5)	5% of the value of this Separable Portion If nothing stated, 5% of value of this Separable Portion
	(c) If retention moneys, percentage of each Progress Certificate applicable to this Separable Portion (Clause 5 and subclause 37.2)	Not applicable. If nothing stated, 10%, until the limit in Item 14(b)
	(d) Time for provision (except for retention moneys) (Clause 5)	Within Click or tap here to enter text. days after Date of Acceptance of Tender If nothing stated, 28 days
	(e) Additional Security for unfixed plant and materials (subclauses 5.4 and 37.3)	The value of the unfixed plant and equipment.

	(f) Contractor's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	50% of amount held If nothing stated, 50% of amount held
15	Principal's Security	
	(a) Form (Clause 5)	Not applicable
	(b) Amount or maximum percentage of value of this Separable Portion (Clause 5)	Nil If nothing stated, nil
	(c) Time for provision (Clause 5)	Not applicable If nothing stated, 28 days
	(d) Principal's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	Not applicable If nothing stated, 50% of amount held
29	Liquidated damages, rate (subclause 34.7)	To be confirmed following Tender Click or tap here to enter text. per day \$ Click or tap here to enter text.per day
30	Bonus for early Practical Completion (subclause 34.8) Not used	
	(a) Rate	Not applicable.
	(b) Limit	Not applicable.
31	Other Compensable Causes (Clause 1(b) and subclause 34.9)	None.

	Separable Portion (Clause 1)	No. 2.3
	Description of Separable Portion (Clause 1)	Building 34 (ROK034)
Item		
7	(a) Date for Practical Completion (Clause 1)	28 August 2026
	OR	
	(b) Period of time for Practical Completion (Clause 1)	Not applicable.
14	Contractor's Security	
	(a) Form (Clause 5)	Two unconditional undertakings (the form in Annexure Part B is approved) given by a financial institution approved by the Principal, each for 50% of the amount in Item 14(b).
	(b) Amount or maximum percentage value of this Separable Portion (Clause 5)	5% of the value of this Separable Portion. If nothing stated, 5% of value of this Separable Portion
	(c) If retention moneys, percentage of each Progress Certificate applicable to this Separable Portion (Clause 5 and subclause 37.2)	Not applicable. If nothing stated, 10%, until the limit in Item 14(b)
	(d) Time for provision (except for retention moneys) (Clause 5)	Within Click or tap here to enter text. days after Date of Acceptance of Tender If nothing stated, 28 days
	(e) Additional Security for unfixed plant and materials (subclauses 5.4 and 37.3)	The value of the unfixed plant and equipment.

	(f) Contractor's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	50% of amount held If nothing stated, 50% of amount held
15	Principal's Security	
	(a) Form (Clause 5)	Not applicable
	(b) Amount or maximum percentage of value of this Separable Portion (Clause 5)	Nil If nothing stated, nil
	(c) Time for provision (Clause 5)	Not applicable If nothing stated, 28 days
	(d) Principal's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	Not applicable If nothing stated, 50% of amount held
29	Liquidated damages, rate (subclause 34.7)	To be confirmed following Tender Click or tap here to enter text. per day \$ Click or tap here to enter text.per day
30	Bonus for early Practical Completion (subclause 34.8) Not used	
	(a) Rate	Not applicable.
	(b) Limit	Not applicable.
31	Other Compensable Causes (Clause 1(b) and subclause 34.9)	None.

	Separable Portion (Clause 1)	No. 2.4
	Description of Separable Portion (Clause 1)	Building 36 (ROK036)
Item		
7	(a) Date for Practical Completion (Clause 1)	5 May 2028
	OR	
	(b) Period of time for Practical Completion (Clause 1)	Not applicable.
14	Contractor's Security	
	(a) Form (Clause 5)	Two unconditional undertakings (the form in Annexure Part B is approved) given by a financial institution approved by the Principal, each for 50% of the amount in Item 14(b).
	(b) Amount or maximum percentage value of this Separable Portion (Clause 5)	5% of the value of this Separable Portion. If nothing stated, 5% of value of this Separable Portion
	(c) If retention moneys, percentage of each Progress Certificate applicable to this Separable Portion (Clause 5 and subclause 37.2)	Not applicable. If nothing stated, 10%, until the limit in Item 14(b)
	(d) Time for provision (except for retention moneys) (Clause 5)	Within Click or tap here to enter text. days after Date of Acceptance of Tender If nothing stated, 28 days
	(e) Additional Security for unfixed plant and materials (subclauses 5.4 and 37.3)	The value of the unfixed plant and equipment.

	(f) Contractor's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	50% of amount held If nothing stated, 50% of amount held
15	Principal's Security	
	(a) Form (Clause 5)	Not applicable
	(b) Amount or maximum percentage of value of this Separable Portion (Clause 5)	Nil If nothing stated, nil
	(c) Time for provision (Clause 5)	Not applicable If nothing stated, 28 days
	(d) Principal's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	Not applicable If nothing stated, 50% of amount held
29	Liquidated damages, rate (subclause 34.7)	To be confirmed following Tender Click or tap here to enter text. per day \$ Click or tap here to enter text.per day
30	Bonus for early Practical Completion (subclause 34.8) Not used	
	(a) Rate	Not applicable.
	(b) Limit	Not applicable.
31	Other Compensable Causes (Clause 1(b) and subclause 34.9)	None.

	Separable Portion (Clause 1)	No. 2.5
	Description of Separable Portion (Clause 1)	Horticulture (ROK076)
Item		
7	(a) Date for Practical Completion (Clause 1)	20 November 2026
	OR	
	(b) Period of time for Practical Completion (Clause 1)	Not applicable.
14	Contractor's Security	
	(a) Form (Clause 5)	Two unconditional undertakings (the form in Annexure Part B is approved) given by a financial institution approved by the Principal, each for 50% of the amount in Item 14(b).
	(b) Amount or maximum percentage value of this Separable Portion (Clause 5)	5% of the value of this Separable Portion If nothing stated, 5% of value of this Separable Portion
	(c) If retention moneys, percentage of each Progress Certificate applicable to this Separable Portion (Clause 5 and subclause 37.2)	Not applicable. If nothing stated, 10%, until the limit in Item 14(b)
	(d) Time for provision (except for retention moneys) (Clause 5)	Within Click or tap here to enter text. days after Date of Acceptance of Tender If nothing stated, 28 days
	(e) Additional Security for unfixed plant and materials (subclauses 5.4 and 37.3)	The value of the unfixed plant and materials.

	(f) Contractor's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	50% of amount held If nothing stated, 50% of amount held
15	Principal's Security	
	(a) Form (Clause 5)	Not applicable
	(b) Amount or maximum percentage of value of this Separable Portion (Clause 5)	Nil If nothing stated, nil
	(c) Time for provision (Clause 5)	Not applicable If nothing stated, 28 days
	(d) Principal's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	Not applicable If nothing stated, 50% of amount held
29	Liquidated damages, rate (subclause 34.7)	To be confirmed following Tender Click or tap here to enter text. per day \$ Click or tap here to enter text.per day
30	Bonus for early Practical Completion (subclause 34.8) Not used	
	(a) Rate	Not applicable.
	(b) Limit	Not applicable.
31	Other Compensable Causes (Clause 1(b) and subclause 34.9)	None.

	Separable Portion (Clause 1)	No. 2.6
	Description of Separable Portion (Clause 1)	Building 32 (ROK032)
Item		
7	(a) Date for Practical Completion (Clause 1)	5 November 2027
	OR	
	(b) Period of time for Practical Completion (Clause 1)	Not applicable.
14	Contractor's Security	
	(a) Form (Clause 5)	Two unconditional undertakings (the form in Annexure Part B is approved) given by a financial institution approved by the Principal, each for 50% of the amount in Item 14(b).
	(b) Amount or maximum percentage value of this Separable Portion (Clause 5)	5% of the value of this Separable Portion. If nothing stated, 5% of value of this Separable Portion
	(c) If retention moneys, percentage of each Progress Certificate applicable to this Separable Portion (Clause 5 and subclause 37.2)	Not applicable. If nothing stated, 10%, until the limit in Item 14(b)
	(d) Time for provision (except for retention moneys) (Clause 5)	Within Click or tap here to enter text. days after Date of Acceptance of Tender If nothing stated, 28 days
	(e) Additional Security for unfixed plant and materials (subclauses 5.4 and 37.3)	The value of the unfixed plant and materials.

	(f) Contractor's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	50% of amount held If nothing stated, 50% of amount held
15	Principal's Security	
	(a) Form (Clause 5)	Not applicable
	(b) Amount or maximum percentage of value of this Separable Portion (Clause 5)	Nil If nothing stated, nil
	(c) Time for provision (Clause 5)	Not applicable If nothing stated, 28 days
	(d) Principal's Security upon Certificate of Practical Completion is reduced by (subclause 5.4)	Not applicable If nothing stated, 50% of amount held
29	Liquidated damages, rate (subclause 34.7)	To be confirmed following Tender Click or tap here to enter text. per day \$ Click or tap here to enter text.per day
30	Bonus for early Practical Completion (subclause 34.8) Not used	
	(a) Rate	Not applicable.
	(b) Limit	Not applicable.
31	Other Compensable Causes (Clause 1(b) and subclause 34.9)	None.

Annexure Part B — Approved form of unconditional undertaking

Annexure to the Australian Standard General
Conditions of contract for design and construct AS 4902—2000

This form may also be used where the Principal is required to provide an unconditional undertaking, by substituting Principal for Contractor and vice versa, wherever occurring.

Approved form of unconditional undertaking (Clause 1 – Security)

At the request of Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text. (the Contractor) and in consideration of Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text. (the Principal)

accepting this undertaking in respect of the Contract for Click or tap here to enter text. (the Project) Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text. (the Financial Institution) unconditionally undertakes to pay on demand any sum or sums which may from time to time be demanded by the Principal to a maximum aggregate sum of Click or tap here to enter text. (\$ Click or tap here to enter text.)

The undertaking is to continue until notification has been received from the Principal that the sum is no longer required by the Principal or until this undertaking is returned to the Financial Institution or until payment to the Principal by the Financial Institution of the whole of the sum or such part as the Principal may require.

Should the Financial Institution be notified in writing, purporting to be signed by Click or tap here to enter text. for and on behalf of the Principal that the Principal desires payment to be made of the whole or any part or parts of the sum, it is unconditionally agreed that the Financial Institution will make the payment or payments to the Principal forthwith without reference to the Contractor and notwithstanding any notice given by the Contractor not to pay same.

Provided always that the Financial Institution may at any time without being required so to do pay to the Principal the sum of Click or tap here to enter text. (\$ Click or tap here to enter text.) less any amount or amounts it may previously have paid under this undertaking or such lesser sum as may be required and specified by the Principal and thereupon the liability of the Financial Institution hereunder shall immediately cease.

Dated at Click or tap to enter a date. this Click or tap here to enter text. day of Click or tap here to enter text. 20Click or tap here to enter text.

Annexure Part C — Deed of novation

Annexure to the Australian Standard General conditions of contract for design and construct AS 4902—2000

Deed of novation (subclause 9.2(c))

This Deed made the Click or tap here to enter text. day of Click or tap here to enter text. 20Click or tap here to enter text.

between Click or tap here to enter text. (the Principal) of Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text.

and Click or tap here to enter text. (the Contractor) of Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text.

and Click or tap here to enter text. (the Subcontractor) of Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text.

and Click or tap here to enter text. (the Incoming Contractor) of Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text. witness that:

1. Upon receipt by the Subcontractor of the sum certified by the Superintendent as owing under the prior contract described in the Schedule hereto:
 - (a) the prior contract shall be discharged;
 - (b) the Subcontractor shall release the Contractor from the further performance of the prior contract and from all claims and demands in connection with the prior contract;
 - (c) the Incoming Contractor shall punctually perform the obligations of the Contractor under the prior contract as far as they are not performed. The Incoming Contractor acknowledges itself bound by the provisions of the prior contract as if the Incoming Contractor had been named in the prior contract; and
 - (d) the Subcontractor shall punctually perform like obligations and be bound to the Incoming Contractor as if the provisions of the prior contract were incorporated herein.
2. The Principal and Subcontractor each warrant to the Incoming Contractor that:
 - (a) subcontract work carried out to the date hereof is in accordance with the provisions of the prior contract; and
 - (b) all claims and demands in connection with the prior contract have been made to the Contractor.
3. The Principal and Subcontractor each indemnifies the Incoming Contractor from all claims and demands of the Contractor, Principal and Subcontractor in connection with the prior contract.
4. A Dispute between:
 - (a) the Principal and the Subcontractor in connection with the Superintendent's certification of the sum owing under the prior contract; or

- (b) the Incoming Contractor and the Subcontractor in connection with Clause 1(c) or 1(d), shall be resolved pursuant to the provisions of AS 4903—2000 Subcontract Conditions for Design and Construct which for the purposes of this Clause 4 are incorporated herein.

5. This Deed shall be governed by the laws of the jurisdiction stated in Item 8 of the Contract between the Principal and Contractor.

Schedule

Click or tap here to enter text.

In witness whereof the parties have executed this DEED OF NOVATION by affixing their seals.

THE COMMON SEAL of the Principal was affixed to this document in the presence of:

Signed by Secretary/Director

Name: Click or tap here to enter text.

Signed by Director

Name: Click or tap here to enter text.

THE COMMON SEAL of the Contractor was affixed to this document in the presence of:

Signed by Secretary/Director

Name: Click or tap here to enter text.

Signed by Director

Name: Click or tap here to enter text.

THE COMMON SEAL of the Subcontractor was affixed to this document in the presence of:

Signed by Secretary/Director

Name: Click or tap here to enter text.

Signed by Director

Name: Click or tap here to enter text.

THE COMMON SEAL of the Incoming Contractor was affixed to this document in the presence of:

Signed by Secretary/Director

Name: Click or tap here to enter text.

Signed by Director

Name: Click or tap here to enter text.

Annexure Part D — Deed of novation

Annexure to the Australian Standard General conditions of contract for design and construct AS 4902—2000

Note: Usually the Continuing Party is the Subcontractor, Selected Subcontractor or Consultant, as the case may be.

Deed of novation (subclause 9.4)

This Deed made this day of 20

between (the **Outgoing Party**) of ACN ABN

and (the **Incoming Party**) of ACN ABN

and (the **Continuing Party**) of ACN ABN

witness that:

1. On and from the Novation Date (stated in the Schedule):
 - (a) the Continuing Party warrants that, other than any amount specified in the Schedule, no further amount is payable by the Outgoing Party to the Continuing Party under the Prior Contract (described in the Schedule);
 - (b) the Incoming Party shall punctually perform the obligations of the Outgoing Party under the Prior Contract hereto as far as they are not performed. The Incoming Party acknowledges itself bound by the provisions of the Prior Contract as if the Incoming Party had been named as the Outgoing Party in the Prior Contract;
 - (c) the Continuing Party punctually perform like obligations and be bound to the Incoming Party as if the provisions of the prior Contract were incorporated herein;
 - (d) the Outgoing Party and Continuing Party shall each release and forever discharge the other from the further performance of the Prior Contract and from all claims and demands in connection with the Prior Contract.
2. The Continuing Party warrants to the Incoming Party that it has carried out its obligations prior to the Novation Date, in accordance with the provisions of the Prior Contract, including any design work.
3. This Deed shall be governed by the governing law of the Prior Contract between the Outgoing Party and Continuing Party.

Schedule

Prior Contract: means the contract entered into by the Outgoing Party and the Continuing Party for design work in connection with [Click or tap here to enter text.](#) dated [Click or tap here to enter text.](#) and includes any amendment of that Prior Contract prior to the Novation Date.

Novation Date: means [Click or tap here to enter text.](#)

Payments owing from the Outgoing Party under the Prior Contract: [Click or tap here to enter text.](#) (if nothing is stated, no amount is owing).

In witness whereof the parties have executed this DEED OF NOVATION by affixing their seals.

THE COMMON SEAL of the Outgoing Party was affixed to this document in the presence of:

.....
Signed by Secretary/Director

Name: [Click or tap here to enter text.](#)

.....
Signed by Director

Name: [Click or tap here to enter text.](#)

THE COMMON SEAL of the Incoming Party was affixed to this document in the presence of:

.....
Signed by Secretary/Director

Name: [Click or tap here to enter text.](#)

.....
Signed by Director

Name: [Click or tap here to enter text.](#)

THE COMMON SEAL of the Continuing Party was affixed to this document in the presence of:

.....
Signed by Secretary/Director

Name: [Click or tap here to enter text.](#)

.....
Signed by Director

Name: [Click or tap here to enter text.](#)

Annexure Part E — Deletions, amendments and additions

Annexure to the Australian Standard General conditions of contract for design and construct AS 4902—2000

All amendments have been made within the body of the General Conditions of Contract AS 4902-2000. Although this document is based on the Australian Standard General Conditions of Contract AS 4902-2000, a number of amendments, additions and deletions have been made. The General Conditions of Contract AS 4902-2000 must be read subject to these amendments, additions and deletions, and the parties should examine the document closely.

Annexure Part F — Deed of Guarantee and Indemnity

Annexure to the Australian Standard General conditions of contract for design and construct AS 4902—2000

Deed of guarantee and indemnity (subclause 9.4)

This Deed made this Click or tap here to enter text. day of Click or tap here to enter text. 20Click or tap here to enter text.

between Click or tap here to enter text. (the Principal) of Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text.

and Click or tap here to enter text. (the Guarantor) of Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text.

and Click or tap here to enter text. (the Contractor) of Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text.

witnesses that—

Background

- A. The Principal has entered into a Contract with the Contractor for the Insert description of the Works. ("the Contract").
- B. In consideration of the Principal entering into the Contract with Contractor, the Guarantor has agreed to enter into this Deed.

1. Interpretation

- (a) In this Deed:
 - (i) terms defined in the Contract and not otherwise defined in this Deed have the same meanings;
 - (ii) words implying the singular number include the plural and vice versa and words implying persons include firms and corporations,
 - (iii) references to any legislation or to any section or provision of any legislation include any modification or re-enactment of any legislative provision substituted for, and all legislation, and statutory instruments under such legislation;
 - (iv) references to any document (including this Deed) include any amendment to or substitute for such document;
 - (v) references to any party to or in this Deed or any other document include its successors, substitutes and permitted assigns;
 - (vi) references to the 'Guarantor' means each of them severally and both of them jointly; and

- (vii) 'includes' is not a word of limitation.
- (b) To the extent of any inconsistency between this Deed and the Contract, this Deed prevails unless the parties expressly agree otherwise.

2. Guarantee

- (a) The Guarantor unconditionally and irrevocably guarantees to the Principal the completion of the Contractor's obligations under the Contract.
- (b) The Guarantor agrees that if the Contractor does not complete the Works or any part of the Works on or before the Date for Practical Completion nominated in the Contract or if the Works are not completed in accordance with the terms of the Contract, the Guarantor will immediately upon a written notice being given to the Guarantor complete those Works (to the satisfaction of the Principal) at its expense or the Principal may, in its absolute discretion, complete the Works at the expense of the Guarantor.

3. Indemnity

- (a) The Guarantor unconditionally and irrevocably indemnifies the Principal against any costs, expenses (including legal expenses), Claims, damages (including consequential or economic losses):
 - (i) that directly or indirectly arise as a result of the Contractor defaulting or breaching any of its obligations under the Contract or any act or omission of the Contractor in respect of anything directly or indirectly related to the Contract which results in third parties, including Subcontractors, making any Claim upon the Principal whatsoever; and
 - (ii) the Principal suffers as a result of:
 - (A) any legal limitation, disability or lack of capacity, power or authority affecting the Contractor or a Guarantor, personally or in the capacity in which they are purporting to act;
 - (B) any improper exercise of power or authority;
 - (C) any determination of the Contract by the Principal pursuant to Clause 39 of the Contract or in the event of the insolvency or bankruptcy of the Guarantor;
 - (D) any event, action or omission which renders the Contract or this Deed voidable or unenforceable,or any other fact, matter or thing whatever and whether or not any of the matters or facts relating to the above have been or ought to have been within the knowledge of the Contractor.
- (b) The Guarantor's obligations under this Deed are not affected by any act or event, whether on the part of the Contractor, on the part of the Principal, on the part of any Subcontractor or supplier, or on the part of any creditor of the Contractor, which, but for this clause, would operate in law to discharge the Guarantor from its liabilities under this Deed.
- (c) The Guarantor may not rely upon any set-off, counterclaim or cross-demand, against any creditor of the Contractor or against the Principal, to reduce or extinguish the amount of the Guarantor's liability to the Principal.

4. General provisions

- (a) Immediately, upon a liability of the Contractor to any creditor directly or indirectly related to the Works or the Contract becoming a proved debt, the Contractor shall provide a copy of this Deed to that creditor.
- (b) This Deed is governed by the laws in force in the State of Queensland, and the parties submit to the exclusive jurisdiction of the courts of Queensland.
- (c) This Deed records the entire Agreement between the Guarantor, the Contractor, and the Principal.
- (d) To the extent that any provision of this Deed is void or unenforceable, the provision which is void or unenforceable may be severed without affecting the validity and enforceability of all other provisions of this Deed.

In witness whereof the parties have executed this Deed of Guarantee and Indemnity by affixing their seals.

THE COMMON SEAL of (Principal)
was affixed to this document in the presence of:

.....
Signed by Director

Name: Click or tap here to enter text.

.....
Signed by Secretary/Director

Name: Click or tap here to enter text.

THE COMMON SEAL of (Guarantor)
was affixed to this document in the presence of:

.....
Signed by Director

Name: Click or tap here to enter text.

.....
Signed by Secretary/Director

Name: Click or tap here to enter text.

THE COMMON SEAL of (Contractor)
was affixed to this document in the presence of:

Signed by Director

Name: Click or tap here to enter text.

Signed by Secretary/Director

Name: Click or tap here to enter text.

[Note: The execution Clause will need to be amended depending on the nature of the party. For example, a sole director company will sign by the sole director, a multi-party director company will sign by 2 directors or a director and a secretary or as provided in its constitution, and a joint venture may sign by its operator on behalf of the joint venture participants.]

Annexure Part G — Subcontractor Deed of Covenant

Annexure to the Australian Standard General conditions of contract for design and construct AS 4902—2000

Subcontractor deed of covenant

This Deed made the Click or tap here to enter text. day of Click or tap here to enter text. 20Click or tap here to enter text.

between Click or tap here to enter text. (the Principal) of Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text.

and Click or tap here to enter text. (the Contractor) of Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text.

and Click or tap here to enter text. (the Subcontractor) of Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text.

witnesses that—

Background

- A. The Principal and the Contractor have entered into the Contract for the construction of the project identified in item 1 of the Schedule to this Deed (“the Works”).
- B. The Contractor and the Subcontractor have entered into the Subcontract in respect of the performance of the work described in item 2 of the Schedule (“the Subcontract Works”).
- C. The Contractor and the Subcontractor require the Principal, the Contractor and the Subcontractor to enter into this Deed.

1. Interpretation

- (a) In this Deed:
 - (i) terms defined in the Contract and not otherwise defined in this Deed have the same meanings;
 - (ii) words importing the singular number include the plural and vice versa and words importing persons include firms and corporations;
 - (iii) references to any legislation or to any section or provision of any legislation include any modification or re-enactment of, or any legislative provision substituted for, and all legislation and statutory instruments under such legislation;
 - (iv) references to any party to or in this Deed or any other document include its successors, substitutes and permitted assigns; and
 - (v) the following terms shall have the following meanings unless the context otherwise requires:

“Contract” means the Contract between the Principal and the Contractor described in item 3 of the Schedule to this Deed;

“Subcontract” means the subcontract between the Contractor and the Subcontractor described in item 4 of the Schedule to this Deed;

“Subcontract Works” means the Works to be undertaken by the Subcontractor pursuant to the Subcontract.

- (b) To the extent of any inconsistency between this Deed, the Contract or the Subcontract, this Deed prevails unless the parties expressly agree otherwise.

2. Subcontractor's construction covenants

- (c) The Subcontractor undertakes to the Principal to complete the construction of the Subcontract Works:
 - (i) in a thorough and tradesmanlike manner;
 - (ii) with materials of merchantable quality and which are fit for their purpose;
 - (iii) with proper skill and care; and
 - (iv) in accordance with the Subcontract and the Contract.
- (d) Despite any provision of the Contract or the Subcontract each of the Contractor and the Subcontractor acknowledges and agrees for the benefit of the Principal that:
 - (i) they will punctually perform their respective obligations under the Contract and the Subcontract;
 - (ii) they will notify the Principal of any Dispute and difference between the Contractor and the Subcontractor; and
 - (iii) the Principal owes no obligation to the Subcontractor unless it otherwise agrees in accordance with this Deed.

3. Indemnity

The Subcontractor shall indemnify the Principal for any loss, cost, expense or damage the Principal suffers or incurs as a result of any breach by the Subcontractor of any of the covenants under this Deed or any conditions of the Subcontract and, without limitation, any breach of Clause 2 of this Deed.

4. General

- (a) No failure to exercise and no delay in exercising, on the part of the Principal, any right or remedy under this Deed shall operate as a waiver, nor shall any single or partial exercise of any right or remedy preclude any other or further exercise, of that or any other right or remedy.
- (b) The rights and remedies provided in this Deed are cumulative and are not exclusive of any rights or remedies provided by law or any other such right or remedy.
- (c) The Contractor shall pay all stamp duty payable in respect of this Deed.
- (d) To the extent that any provision of this Deed is void or unenforceable, the provision which is void or unenforceable may be severed without affecting the validity and enforceability of all other provisions of this Deed.

- (e) Except as expressly contemplated by this Deed neither the Contractor nor the Subcontractor may assign or transfer any of its rights or obligations under this Deed or the Subcontract.
- (f) This Deed is governed by the laws in force in the State of Queensland, and the parties submit to the non-exclusive jurisdiction of the courts of Queensland.

Schedule

Documents—

- 1 The Works
- 2 The Subcontract Works
- 3 Details of Contract
- 4 Details of Subcontract

In witness whereof the parties have executed this Deed of Covenant by affixing their seals.

THE COMMON SEAL of (Principal)
was affixed to this document in the presence of:

Signed by Director

Name: Click or tap here to enter text.

Signed by Secretary/Director

Name: Click or tap here to enter text.

THE COMMON SEAL of (Contractor)
was affixed to this document in the presence of:

Signed by Director

Name: Click or tap here to enter text.

Signed by Secretary/Director

Name: Click or tap here to enter text.

THE COMMON SEAL of (Subcontractor)
was affixed to this document in the presence of:

Signed by Director

Name: Click or tap here to enter text.

Signed by Secretary/Director

Name: Click or tap here to enter text.

[Note: The execution Clause will need to be amended depending on the nature of the party. For example, a sole director company will sign by the sole director, a multi-party director company will sign by 2 directors or a director and a secretary or as provided in its constitution, and a joint venture may sign by its operator on behalf of the joint venture participants.]

Annexure Part H — Deed of Warranty

Annexure to the Australian Standard General conditions of contract for design and construct AS 4902—2000

Deed of warranty

This Deed made the Click or tap here to enter text. day of Click or tap here to enter text. 20Click or tap here to enter text.

and Click or tap here to enter text. (“the Principal”) of Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text.

and Click or tap here to enter text. (“the Warrantor”) of Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text.

witnesses that—

Background

- A. The Principal and the Contractor have entered into the Contract described in item 2 of the Schedule (“the Contract”) pursuant to which the Contractor has agreed to perform the work described in item 3 of the Schedule (“the Works”).
 - B. The Warrantor has Contracted with the Contractor to supply the goods or materials described in item 4 of the Schedule (“the Goods”).
 - C. The Warrantor has agreed to give the warranties and indemnity in this Deed to the Principal in consideration of the Contractor agreeing to employ the Warrantor and the Principal agreeing to accept the Warrantor as a supplier of the Goods.
1. The Warrantor:
 - (a) warrants to the Principal that the Goods shall be in accordance with the quality and/or standard stipulated by the Contract and to the extent that the quality and/or standard is not so stipulated, shall be of merchantable quality and be fit for the purpose or purposes for which it is required; and
 - (b) gives the warranty more particularly set out in item 5 of the Schedule with respect to the Goods.

The above warranties shall be in addition to and shall not derogate from any warranty implied by law in respect of the Goods.

2. The Warrantor will, at its expense, replace and/or make good to the reasonable satisfaction of the Principal, so much of the Goods as within the period described in item 6 of the Schedule shall be found to be of a lower quality or standard than that referred to in Clause 1 or shall show deterioration of such extent that in the opinion of the Principal the Goods ought to be made good or replaced in order to achieve fitness for the purpose or purposes for which it is required and whether this is on account of utility, performance, appearance or otherwise.

3. The Warrantor will meet the cost of any work necessary to any part of the Works to enable the requirements of Clause 2 of this Deed to be carried out and/or necessary to make good the Works afterwards.
4. The decision of the Principal as to:
 - (c) the Goods failing to comply with quality or standard as above mentioned or otherwise failing to comply with the foregoing warranties; and/or
 - (d) as to the extent of replacement and/or making good which shall be necessary to properly remedy the Defects; and/or
 - (e) as to the extent of any work required under Clause 3 of this Deed,shall be notified in writing to the Warrantor and shall be final and binding upon the parties.
5. The Warrantor will within a reasonable time after written notification to the Warrantor of a decision of the Principal as to work required replace and/or make good the Goods or parts thereof and/or meet the costs of any work required by Clause 3 of this Deed, whether or not any Dispute or difference exists between the parties, and the Warrantor agrees to indemnify and keep indemnified the Principal against any direct, indirect or consequential loss or damage of any nature whatsoever sustained by them or either of them, directly or indirectly arising out of any breach of the warranties, covenants or other conditions given by the Warrantor.
6. If within the time prescribed in Clause 5 (and the Principal's decision as to what is a reasonable time shall be final and binding upon the parties) the Warrantor fails to fully and properly carry out the said work, the Principal may carry out such work, or cause the same to be carried out, and the Warrantor agrees to indemnify and keep indemnified the Principal against all the costs and expenses of and incidental to the carrying out of the work and also against any direct, indirect or consequential loss or damages sustained by the Principal as a result of the Warrantor's failure.
7. The provisions of this Deed shall come into operation in favour of the Principal as soon as it has been executed by the Warrantor, notwithstanding that it may not have been or may not thereafter be executed by the Principal.
8. Nothing contained in this Deed is intended to nor shall render the Principal in any way liable to the Warrantor in relation to any matters arising out of the Contract or otherwise.
9. The parties agree that this instrument is and shall operate as a Deed.

Schedule

1	Name and Address of Warrantor: Click or tap here to enter text.
2	The Contract (Recital A)
3	The Works (Recital A)
4	The Equipment (Recital B)

5	Detailed Warranty of Warrantor (Clause 1(b))
6	Period of Years (Clause 2) Click or tap here to enter text. years from the Date of Practical Completion of the Works as defined in the Contract

In witness whereof the parties have executed this Deed of Warranty by affixing their seals.

THE COMMON SEAL of (Principal)
was affixed to this document in the presence of:

.....
Signed by Director

Name: Click or tap here to enter text.

.....
Signed by Secretary/Director

Name: Click or tap here to enter text.

THE COMMON SEAL of (Warrantor)
was affixed to this document in the presence of:

.....
Signed by Director

Name: Click or tap here to enter text.

.....
Signed by Secretary/Director

Name: Click or tap here to enter text.

[Note: the execution Clause will need to be amended depending on the nature of the party. For example, a sole director company will sign by the sole director, a multi-party director company will sign by 2 directors or a director and a secretary or as provided in its constitution, and a joint venture may sign by its operator on behalf of the joint venture participants.]

Annexure Part I — Deed of Release and Waiver

Annexure to the Australian Standard General conditions of contract for design and construct AS 4902—2000

Deed of release and waiver

This Deed made the Click or tap here to enter text. day of Click or tap here to enter text. 20Click or tap here to enter text.

between Click or tap here to enter text. (the Principal) of Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text.

and Click or tap here to enter text. (the Contractor) of Click or tap here to enter text. ACN Click or tap here to enter text. ABN Click or tap here to enter text.

witnesses that—

1. Basis of release and waiver

This Release and Waiver relates to a contract (**Contract**) between the Principal and the Contractor with respect to the following Works and/or services.

2. Release and waiver

Pursuant to the Contract and in consideration of the amount set out in item 1.4 below (**Total Contract Sum**) which has been or is to be paid to the Contractor, the Contractor fully releases and discharges the Principal (and its employees, Consultants and agents) from and against all Claims, demands and causes of action and proceedings of every kind and nature which the Contractor may or might have had or might assert arising directly or indirectly out of the Contract or The Works and/or services under the Contract or in relation to the Contract and in accordance with the terms of this deed except for its rights (if any) with respect to the amounts (if any) set out in items 2.3 and 3.2 below and the exceptions to this release and waiver set out below.

The exceptions to this Release and Waiver (if any) are:

Click or tap here to enter text.

3. Terms of release and waiver

- (a) The Contractor accepts the amount set out in item 2.4 (**Total Payment Due**) as the Final Payment under the Contract except if it has any rights with respect to the amounts set out in items 2.3 and 3.2 and the exceptions to this Release and Waiver set out in this Release and Waiver.
- (b) The Contractor certifies that its Subcontractors, suppliers and all persons who have performed Works and/or services (including the supply of goods) in connection with the

Contract and the Works and/or services under or in relation to the Contract have been paid in full, and the Contractor agrees to provide the Principal upon demand, evidence of such payment as may be reasonably required.

- (c) The Contractor certifies that all wages due and owing to its employees and the employees of its Subcontractors and suppliers have been paid in full to this date and that all obligations to make payments with respect to them, whether as a result of a statutory obligation or otherwise, have been paid in full.
- (d) The Contractor indemnifies the Principal against and waives and relinquishes all or any Claims, liens, encumbrances, levies, attachments and all other rights whether known or unknown arising directly or indirectly out of the Contract or the Works and/or services under, or in relation to, the Contract.
- (e) The Contractor undertakes that if the Principal is called upon to pay for or defend against any liens, Claims or demands of any kind arising directly or indirectly out of the Contract or the Works and/or services under the Contract in relation to the Contract which the Contractor is obliged to pay and discharge, the Contractor shall indemnify the Principal from and against any such payment or defence (including any reasonable legal fees and costs it incurs), and will at the request of the Principal and its own expense take over and assume the defence and liability for any such lien, Claim or demand.
- (f) The Contractor confirms that the payments made by the Principal shall not constitute an acceptance of defective or improper work or services or relieve the Contractor from any of its obligations arising directly or indirectly out of the Contract the Works and/or services under, or in relation to, the Contract.
- (g) The Contractor indemnifies the Principal from all and any proceedings brought by persons in relation to the Works and/or services performed by the Contractor in respect of the WUC.
- (h) The Principal shall not be obliged to certify or arrange to make the payment referred to in item 2.4 nor certify or arrange to release any cash retention or other withholding or the non cash Security or retention, unless and until the Principal receives this Release and Waiver signed by the Contractor.
- (i) Where relevant, references, to the Principal includes employees, agents and/or Contractors.

4. Financial status

1	Account Details	Amount (\$) (Exc GST)	Amount (\$) (Incl GST)
1.1	Original Contract Sum		
1.2	Variations or other Contract adjustments		
1.3	Any other adjustments (e.g. statutory provisions)		
1.4	Total Contract Sum		

2	Payment Due	Amount (\$) (Exc GST)	Amount (\$) (Incl GST)
2.1	Total Contract Sum as per item 1.4 above		
2.2	Less previous payments		
2.3	Less cash retention or any other withholding (if any) which will be held by the Principal subsequent to this date		
2.4	Total Payment Due		

3	Non cash Security and/or retention	Amount (\$) (Exc GST)	Amount (\$) (Incl GST)
3.1	Amount of non-cash Security or retention (if any) held by the Principal due to be released at this date		
3.2	Balance of non-cash Security or retention (if any) which shall be held by the Principal subsequent to this date		
3.3	Total		

In witness whereof the parties have executed this Deed of Release and Waiver by affixing their seals.

THE COMMON SEAL of (Principal)
was affixed to this document in the presence of:

.....
Signed by Director

Name: Click or tap here to enter text.

.....
Signed by Secretary/Director

Name: Click or tap here to enter text.

THE COMMON SEAL of (Contractor)
was affixed to this document in the presence of:

.....
Signed by Director

Name: Click or tap here to enter text.

Signed by Secretary/Director

Name: Click or tap here to enter text.

Draft

Annexure Part J — Statutory declaration

Annexure to the Australian Standard General conditions of contract for design and construct AS 4902—2000

Oaths Act 1867 (sections 13C, 13E, 14)

QUEENSLAND STATUTORY DECLARATION

Insert full name and address of person making the declaration. An address can be listed as "Queensland" or "Australia" if it would be unsafe to reveal this information, such as if there are worries about domestic, family, or sexual violence.

I, Click or tap here to enter text.
of Click or tap here to enter text.

do solemnly and sincerely declare that

1. I am the declarant's job title for name of Contractor ABN Click or tap here to enter text. ("Contractor") engaged by name of Principal to carry out The Works under the Contract dated insert date ("the Works") and I am duly authorised to make this declaration on the Contractor's behalf.
2. All workers (including all workers employed by Subcontractors) who at any time have been engaged on the Works have been paid, in accordance with the relevant award or industrial instrument (and otherwise in accordance with all relevant Legislative Requirements), including the *Fair Work Act 2009* (Cth)), all moneys due and payable to them up to the date of this declaration in respect of their engagement of the Works.
3. All Subcontractors, suppliers and Consultants of the Contractor have been paid all that has been claimed by them up to the date of this declaration in respect of their part of the Works other than in respect of the following amounts for the following reasons:

Subcontractor's name	Amount still unpaid	Details of unpaid payment claim	Date subcontractor carried out relevant work or supplied related goods or services	Reason amount was not paid in full

4. The Contractor is solvent and is not subject to an act of insolvency as that term is defined in subclause 39.11.

Set out matter/s to be declared in numbered paragraphs.

and I make this solemn declaration conscientiously believing the same to be true and by virtue of the provisions of the *Oaths Act 1867*.

☐ If completing this declaration and you need more space, please attach any additional pages to this form and tick the box to indicate that additional pages are attached.

The contents of this statutory declaration are true, except where they are stated on the basis of information and belief, in which case they are true to the best of

my knowledge. I understand that a person who makes a declaration that the person knows is false in a material particular commits an offence.

I state that:

- ☐ This declaration was made in the form of an electronic document ⁱ
- ☐ This declaration was electronically signed ⁱⁱ
- ☐ This declaration was made, signed and witnessed under part 6A of the *Oaths Act 1867*ⁱⁱⁱ

(tick if applicable)

Full name and signature of person making the declaration. If using a substitute signatory, only insert the name of signatory, leave the signature of signatory panel blank, and complete the next section.

DECLARED by

[full name of signatory]

[signature of signatory]

[insert place where signatory is located]

[date]

(If applicable)

Signed for and at the direction of the signatory by

Full name and signature of substitute signatory (cross out if not applicable).

Refer to the **Fact Sheet - Who can sign a statutory declaration or affidavit as a substitute signatory.**

[full name of substitute signatory]

[signature of substitute signatory]

Substitute signatory to include additional information if directed over AV link. Refer to the **Fact Sheet - Who can sign a statutory declaration or affidavit as a substitute signatory.**

[Australian legal practitioner/government legal officer/employee of the Public Trustee, as applicable]^{iv}

Insert date of signing.

Declared on ____ day ____ month ____ year

In the presence of:

Full name and signature of authorised witness. Refer to the **Fact Sheet - Who can witness a statutory declaration or affidavit in Queensland.**

[full name of witness]

[signature of witness]

Qualification of
witness (e.g lawyer,
JP, Cdec, etc).

[type of witness]

____ day ____ month ____ year
[date]

[witness seal of office, if applicable]

*Witness must include
additional information
under section 13E of
the Oaths Act 1867.
Refer to the **Fact
Sheet - Witness
information for
statutory
declarations or
affidavits.***

[witness's place of employment /
employment address / home address /
telephone number / email address / law
practice, as applicable]^v

Special witness

*If this form has been
electronically signed
or witnessed over AV
link, the special
witness must declare
which of the following
apply to the
witnessing of this
form.*

- ☐ I am a special witness under the *Oaths Act 1867*
(see section 12 of the *Oaths Act 1867*)
- ☐ This document was made in the form of an electronic document ^{vi}
- ☐ I electronically signed this document ^{vii}
- ☐ This statutory declaration was made, signed and witnessed under part 6A of the
Oaths Act 1867 – I understand the requirements for witnessing a document by
AV link and have complied with those requirements ^{viii}

**The endnotes are to assist in the completion of the form and do not need to be witnessed or
submitted with your form.**

-
- i Tick this box if you electronically signed the document, or if you physically signed the document over AV link and then sent a scanned copy of that document to the witness.
- ii Tick this box if you or your substitute signatory electronically signed the document using an accepted method under the *Oaths Act 1867*. Do not tick this box if you signed the document on paper.
- iii Tick this box if the document was made over AV link.
- iv A person may be directed by AV link to sign a document for a signatory only if the person is: an Australian legal practitioner; or a government legal officer under the *Legal Profession Act 2007* (who is an Australian lawyer but not an Australian legal practitioner and witnesses documents in the course of the government work engaged in by the officer); or is an employee of the public trustee (s 31P, *Oaths Act 1867*).
- v Legal practitioners who witness this document as a special witness must include their law practice (s 13E *Oaths Act 1867*).
- vi Tick this box if you electronically signed the document or if you physically signed the document and sent a scanned copy of that document to the signatory.
- vii Tick this box if you electronically signed the document using an accepted method under the *Oaths Act 1867*. Do not tick this box if you signed the document on paper.
- viii Tick this box if the document was made over AV link.